



File No.: EXP202212877

SANCTIONING PROCEDURE RESOLUTION

SANCTIONING PROCEDURE RESOLUTION.....	1
BACKGROUND.....	3
FIRST:.....	3
SECOND:.....	3
THIRD:.....	3
3.1.- Urgent precautionary measure for the removal of content from the claimed party.....	3
3.2.- Request for information from MEDIASET ESPAÑA COMUNICACIÓN S.A.	4
3.3.- Incorporation of information and documentation into the inspection proceedings.....	5
FOURTH: Business volume.....	5
FIFTH: Agreement to initiate sanctioning procedure.....	5
SIXTH: Allegations to the Initiation Agreement.....	5
First.- DILIGENT CONDUCT. LACK OF UNLAWFULNESS.....	6
Second.- TOTALLY DISPROPORTIONATE SANCTION.....	12
Third.- Request for evidence.....	19
SEVENTH: Evidence practice.....	19
EIGHTH: Supplementary allegations to the Initiation Agreement.....	23
First.- Prior negligence of third parties.....	24
Second.- Diligence of the media outlet.....	25
Third.- Absence of liability of 'Público'.....	26
NINTH: Proposal for Resolution.....	27
TENTH: Response to the allegations to the initiation agreement.....	27
FIRST.- On the diligent conduct of DISPLAY and the lack of unlawfulness.....	27
SECOND.- Disproportionate sanction.....	33
THIRD.- Absence of culpability and unlawfulness of DISPLAY. Fictitious data	40
ELEVENTH: Allegations to the Proposal for Resolution.....	43
1. Violation of the principle of responsibility:.....	43
C/ Jorge Juan, 6	
www.aepd.es	
28001 – Madrid	
sedeagpd.gob.es	

2. Violation of the principle of proportionality:.....	48
3. Violation of the principle of typicity.....	59
PROVEN FACTS.....	59
FIRST:.....	59
SECOND:.....	60
THIRD:.....	60
FOURTH:.....	62
FIFTH:.....	63
SIXTH:.....	64
SEVENTH:.....	65
EIGHTH:.....	66
NINTH:.....	67
TENTH:.....	68
ELEVENTH:.....	77
TWELFTH:.....	78

LEGAL GROUNDS.....	78
I Competence.....	78
II Summary of the facts.....	79
III Response to the allegations regarding the Proposal for Resolution.....	79
1. Violation of the principle of responsibility.....	79
2. Violation of the principle of proportionality.....	84
3. Violation of the principle of typicity.....	93
IV Right to data protection.....	93
V Right to information.....	94
VI Limits to the Fundamental Right to Freedom of Information.....	95
VII Balance between the Fundamental Right to Freedom of Information and the Fundamental Right to the Protection of Personal Data.....	97
VIII Obligations of the data controller.....	99
IX Classification and qualification of the infringement.....	99
X Sanction for the infringement.....	100

From the actions carried out by the Spanish Agency for Data Protection and based on the following

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/102

BACKGROUND

FIRST:

On April 21, 2022, the GOVERNMENT DELEGATION AGAINST GENDER VIOLENCE (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection (hereinafter, AEPD). The complaint is directed, among others, against DISPLAY CONNECTORS, S.L. with NIF B65749715 (hereinafter, the defendant or DISPLAY). The reasons on which the complaint is based are as follows: The claimant reported the publication in various media outlets of a news story illustrated with a video that shows images (seconds 21 to 24) of a computer screen displaying an Excel sheet with the personal data of 56 women registered in the VioGén system as victims of gender violence and various classifications based on their specific circumstances.

The claimant provided links to the news published on the websites of the media involved, including the following link:

- ***URL.1

SECOND:

On April 22, 2022, in accordance with Article 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the complaint filed by the claimant was admitted for processing.

THIRD:

The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

3.1.- Urgent precautionary measure for the removal of content to the defendant.

During the investigative actions, it was confirmed that the defendant published the video in which personal data of women registered in the VioGén system was visible at the following link:

- ***URL.1

On April 22, 2022, an urgent precautionary measure for the removal of content was directed to the defendant, requiring the urgent removal of the video both from the aforementioned web address and from any other address related to the entity, as well as communication to this Agency of compliance with this measure.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

4/102

No response was received from the defendant regarding the urgent removal order of the content and, therefore, it did not respond to the request made in point 3 of the aforementioned order, in which we indicated the following:

“3. - Require DISPLAY CONNECTORS, S.L. to inform this Spanish Agency for Data Protection about the execution of the measure.”

However, this AEPD confirmed the removal of the content.

3.2.- Request for information to MEDIASET ESPAÑA COMUNICACIÓN S.A.

On October 3, 2022, a request for information was made to MEDIASET ESPAÑA COMUNICACIÓN S.A. (hereinafter, MEDIASET), since the Atlas Agency depends on it, in which it was requested, among other issues:

- The corporate name of all clients to whom the video was transferred, indicating whether the publication on their web portals was done automatically or not.
- The agreements or content contracts under which the video was transferred.

On October 13, 2022, a response was received from MEDIASET to the previous request for information, indicating, among other issues, the following:

- It states that it made the video available to its clients on March 31, 2022.
- It states that publication in digital media is not automatic: MEDIASET makes the content available to clients, and they decide whether to download it or not.
- It states that MEDIASET has DISPLAY CONNECTORS, S.L. as a client.

It attaches a service provision and rights transfer contract signed on ***DATE.1 between MEDIASET ESPAÑA COMUNICACIÓN, S.A. and DISPLAY CONNECTORS, S.L., from which the following is highlighted:

In point 2 of the aforementioned contract, it is stated, “That DISPLAY is interested in being provided with a service for the supply of images of informative content for its public communication through its website www.publico.es, or any other that, with the same purpose, replaces it.”

Furthermore, in Clause Four “Characteristics,” it is stated that “The videos supplied to DISPLAY in execution of this contract will be carried out as established below:

4.1 CONTENT: Any event of informative interest produced by MEDIASET ESPAÑA or produced by Reuters that takes place in national or international territory and that has been digitized by MEDIASET ESPAÑA will be incorporated into the daily list to which DISPLAY will have access and from which it will select the videos subject to this contract.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

5/102

4.3. ...the material shall be delivered by MEDIASET to DISPLAY through its website ***URL.1o or through an FTP mailbox, with MEDIASET bearing the costs of delivering the videos.”

“...MEDIASET commits to providing e-news services for their reproduction and public communication by DISPLAY through its website.”

3.3.- Incorporation of information and documentation into the inspection proceedings.

On March 6, 2023, the following documents were incorporated into the inspection proceedings:

- The Privacy Policy, which is an integral part of the LEGAL NOTICE of the website www.publico.es (hereinafter, the Website), which states
 - o “The information and personal data that DISPLAY CONNECTORS, S.L. collects from Users when they register and/or access the Website and/or the social media profiles of the newspaper PÚBLICO, and use the services offered therein, as well as the purposes for which DISPLAY CONNECTORS, S.L.

may process such information and the third parties to whom it may communicate the same and under what conditions are detailed below (...)

o (...) The rights of access, rectification, deletion, and, where applicable, opposition, portability, and limitation of processing may be exercised by indicating the Reference: "Data Protection," at the address of DISPLAY CONNECTORS, S.L C/Gran Vía 30, 5th floor 28013, Madrid; or by email at gdpr@publico.es"

FOURTH: Business Volume

According to the report obtained from the AXESOR tool, the entity DISPLAY CONNECTORS, S.L. is a medium-sized company established in 2012, with a turnover of (...) euros in 2021 and (...) euros in 2022.

FIFTH: Agreement to Initiate Sanctioning Procedure

On April 17, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate a sanctioning procedure against DISPLAY CONNECTORS, S.L., in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

SIXTH: Allegations to the Initiation Agreement

Once the aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the summoned party submitted a written statement of allegations in which, in summary, it expressed the following:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/102

First.- DILIGENT CONDUCT. LACK OF ILLEGALITY

In this section, DISPLAY (hereinafter referred to as "Público" as used by DISPLAY in its statement of allegations) raises several issues:

1. 'Público' acted with the minimum diligence required of a digital information medium. It indicates that 'Público' merely published a video news item provided by a content provider, such as the news agency ATLAS, which belongs to one of the most important Spanish (and European) communication groups, namely the MEDIASET Group.

Thus, it indicates that 'Público' acted under the principle of trust towards its provider, as all media do with any prestigious content agency, such as ATLAS. As clients, 'Público' had a contract signed with this provider under which the agency guaranteed that it was responsible for complying with the applicable laws and regulations regarding all the content it supplied to its clients.

It also notes that 'Público' did not carry out specific processing of personal data but acted trusting a well-known agency that provided the images, which, according to the contract, had the guarantee of not infringing any third-party rights or applicable regulations.

As Document No. 1, it attaches a copy of the contract signed with ATLAS, from which it indicates that the following points deserve to be highlighted:

- In recital 3:

"That MEDIASET ESPAÑA, as an entity dedicated to the activities of a news agency, has the knowledge and technical and human resources necessary for the provision of the service of supplying images of informative content within the Internet environment, required by DISPLAY, as well as for the corresponding assignment of rights."

- And in the last paragraph of clause 5:

"MEDIASET ESPAÑA guarantees that it is the legitimate owner of the rights it assigns to DISPLAY under this contract, guaranteeing peaceful exercise by DISPLAY during the term of this contract. Consequently, MEDIASET ESPAÑA will keep DISPLAY harmless against any claims received from

any third party regarding the rights assigned under this contract.”

It points out, therefore, that with the assurance that MEDIASET would keep DISPLAY CONNECTORS, S.L. harmless – without any damage – against claims from third parties, and under that principle of trust when working with one of the largest video agencies in our country that belongs to a group that is, in turn, one of the largest audiovisual communication groups in Europe, ‘Público’ contracted with that provider, making the economic effort represented by the payment of the agreed remuneration, precisely valuing the reliability and guarantee of its content.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
7/102

It concludes that this is the result of the security and full trust in the provider, which is why in ‘Público’ the automatic publication of these videos from the ATLAS Agency was determined, a criterion that was not applied to content from other providers, which could be previously selected or reviewed by ‘Público’ staff.

2. Concurrent acts of negligence by third parties:

DISPLAY points out that according to the signed contract, the ATLAS agency makes its content available to all its clients (among which is the newspaper ‘Público’) for the purpose of being published and disseminated by the media, and therefore it is not merely an intermediary that facilitates third-party files, but rather that the majority of the videos it delivers are complete productions made by ATLAS or also by the news agency Reuters, as established in the first stipulation.

It indicates, therefore, that ATLAS does not provide raw images (sequences of images and sounds of resources) or raw totals (sequences of statements from individuals), so that the media can edit their own videos with their own criteria for selecting images and sounds, but rather that ATLAS delivers ‘final videos’, intended for direct publication and dissemination and that should not be reviewed or modified by the newspaper before publication (although the contract allows it under the exclusive responsibility of the media), because that is what is contracted and that is why the agency is paid, which provides the video already produced and fully finished, edited, narrated, and labeled, with a script determined by the agency ATLAS itself (or Reuters), and with the information to be immediately published.

Therefore, DISPLAY concludes, the ultimate goal of the provider with these videos is not simply to provide them to its clients, but rather that the videos are intended to be published and disseminated directly by the media, without any modification being necessary on the part of the client, as clearly deduced from stipulation 4 of the contract, relating to the “Characteristics” of the videos.

It indicates that ‘Público’ automatically included ATLAS videos in the video section of its website, trusting in the content provided by the agency; but it turned out that such content was not legal because, prior to the publication of the video on the ‘Público’ website, the following negligent acts occurred, which were absolutely determinative of the infringement of data protection regulations that are intended to be sanctioned here, and completely foreign to ‘Público’:

- First, and as stated in the initiation agreement (section VI, p. 9), the recording of the sequence of images from the computer screen of a Civil Guard agent from ***LOCALIDAD.1 was made during an interview conducted by a journalist, we must assume from the ATLAS agency, the original holder of the images. This implies that, during an interview and while being aware that he/she was being recorded by a nearby television camera (given the close-up shot of the images), the Civil Guard agent had the Excel file open on the screen where the data from the “VioGén” database was collected and was making...

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

"scroll" in it, being evident that the personal data contained in that file would be captured by the television camera and, therefore, recorded. DISPLAY understands that the above is the first and most important negligence in this matter, as without this initial action, no personal data would have been revealed, which were – let us not forget – under the responsibility of the Ministry of the Interior as the data controller, with the Secretary of State for Security of the aforementioned Ministry being the creator and responsible for the Comprehensive Monitoring System in cases of Gender Violence (VioGén System).

DISPLAY points out that, moreover, the VioGen system uses a simulator with fictitious databases for training purposes, which do not correspond to real people's data, which could be the case for the images included by ATLAS in its news video, and would explain the lack of diligence with which the Civil Guard agent acted who allowed the content displayed on their computer screen to be recorded. Therefore, the first thing that should be fully confirmed, before continuing with the instruction, is whether the data that appeared on the screen that was recorded by the camera actually contained data of real victims of gender violence or if it was merely a simulator with fictitious personal data.

- Secondly, DISPLAY notes that the production team of the ATLAS agency responsible for selecting the images, editing them, labeling them, and narrating them with the agency's own script, is ultimately responsible for including, during 4 seconds of the news video, the images that – due to a prior negligence of the Civil Guard agent – contained personal data from the "VioGén" database.

It therefore understands that, without this second negligence, added to the first, no personal data would have been disclosed on the 'Público' website, since it is not 'Público' who sought the information, nor who neglected to ensure that the data was not accessible to the television camera, nor who recorded the image, much less who inserted the image into the news video that, we insist, was sold to them as a fully finished product ready for publication.

3. Fully diligent action by 'Público': automatic publication and immediate withdrawal:

DISPLAY points out that in the normal course of its activity – consisting of the legitimate fundamental right to publish truthful information of general interest – 'Público' merely relied on the reputable news video agency ATLAS to acquire its finished videos prepared for immediate publication (with the guarantee of being kept indemnified against claims that third parties might make in relation to them), and adopted an automatic publication system for the videos, based on the principle of trust in the provider as a reliable source of information, as previously mentioned in section 1, to which we refer. Thus, the initial agreement states that "According to what is specified in the content transfer contract between DISPLAY CONNECTORS S.L., the procedure for delivering news between them consists of the news being located by MEDIASET on the Atlas Agency website or in an FTP mailbox, the other party to the contract being C/ Jorge Juan, 6 www.aepd.es 28001 – Madrid sedeagpd.gob.es

responsible for accessing such sites and selecting those contents that were of interest to her, to subsequently publish them in her medium."

However, DISPLAY understands that it is not true that she selected certain contents of her interest to publish them in the digital 'Público', but rather that there was a completely automatic system for publishing all videos from ATLAS, of which Mr. A.A.A. was aware, as the person responsible for the company ***EMPRESA.1., an entity contracted by 'Público' for the provision of certain services related to the operation of its servers and its website. This automatic system consisted of the following process for importing videos from the ATLAS agency onto the 'Público' website:

"1. (...)

2. (...)

3. (...)

DISPLAY accompanies a certificate signed by Mr. A.A.A. regarding the automatic video process that was used in 2022 to publish the videos obtained from the ATLAS agency server (Document No. 2)

Likewise, and as proof of this automatic process, DISPLAY provides (as Document No. 2.bis) a copy of the Judgment (...) in a procedure for violation of the right to honor and personal image followed against DISPLAY CONNECTORS, S.L., precisely for the publication of an ATLAS video in which, by mistake, the image of the plaintiff ((...)) appeared for four seconds, in a news item in which he was

identified with the murderer (...). DISPLAY indicates that the case bears all kinds of similarities with the present one, although in a different area (such as civil law for the protection of honor and personal image), but what is relevant is that in that procedure DISPLAY CONNECTORS, S.L. asserted the automatic system for publishing videos from the ATLAS agency, with Mr. A.A.A. declaring in the trial session, as noted in the sixth legal basis of the resolution (p. 9), where the Judge states:

“The witness Mr. A.A.A., responsible for the delivery and downloading of news from the Altas agency on the Público website, stated that the entire process is automatic.”

Furthermore, it indicates that from ‘Público’ total diligence was exercised to remove the video at the precise moment when the ATLAS agency itself communicated to the newspaper that it contained illegal images:

- On Monday, April 25, 2022, at 11:28 a.m. (likely after receiving the notification of urgent precautionary measures issued by the AEPD), Mr. B.B.B., as ***CARGO.1, sent an email to ‘Público’ requesting the removal of the video from the information in question from the newspaper's publications and its servers, arguing that the video contained “images that cannot be broadcast.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

10/102

It indicates below that the newspaper 'Público' removed the video immediately, and 18 minutes later confirmed to the ATLAS agency that the video had been completely removed from the newspaper's servers. (It provides copies of both emails as Document No. 3)

DISPLAY points out that when 'Público' received on April 29, 2022, the urgent precautionary measure request from the AEPD for the removal of the video in question, the video had already been removed by the newspaper from its servers a week prior, at the request of the ATLAS agency itself, which evidences the diligence and promptness of DISPLAY CONNECTORS, S.L. in removing the images from ATLAS as soon as it became aware of their illegality. It explains that there was no response to the AEPD because the precautionary measure whose compliance was requested had already been fulfilled prior to receiving the request from the State Agency.

It adds that, in addition to the above, starting from May 11, 2023, in light of this and other incidents related to the videos provided by ATLAS (which led to the aforementioned lawsuit and another sanction imposed by the AEPD on 'Público' – in file PS/00194/2022 – also for the publication of video news), the management of the newspaper decided to modify the automatic publication system for video news from the ATLAS agency and establish a manual system, to avoid the publication of videos with potentially illegal and problematic content.

It attaches as Document No. 4 screenshots that it indicates are communications sent by the management of 'Público' (Ms. C.C.C., as ***POSITION.2') and the response given by Mr. A.A.A. – from the company ***COMPANY.1., to deactivate the automatic publication process of the videos from Atlas.

DISPLAY concludes that, therefore, no form of negligence is perceived in the actions of the digital medium under investigation, and thus it does not deserve any sanction, in light of the circumstances of the case.

It reviews Article 130.1 of Law 30/1992, of November 26, on the Legal Regime of Public Administrations and the Common Administrative Procedure, indicating that it enshrined the introduction into sanctioning administrative law of the subjective element of the illicit, which must be present in any case for a behavior, typical and unlawful, to be classified as an administrative infringement.

It continues to indicate that the currently in-force Law 40/2015, of October 1, on the Legal Regime of the Public Sector, in its Article 28 establishes the following:

“1. Only individuals and legal entities, as well as, when a law recognizes them the capacity to act, groups of affected parties, unions, and entities without legal personality and independent or autonomous assets, that are responsible for the same by way of intent or negligence, may be sanctioned for acts constituting administrative infringement.”

It also indicates that this requirement of intent or, at the very least, culpability in the field of administrative illicit acts, is reiterated ad nauseam by the jurisprudence of the 11/102

Supreme Court, subsequently summarizing several Judgments from the aforementioned Court, as well as from the Constitutional Court.

DISPLAY indicates that, by applying the constitutional doctrine invoked, which has been observed by this same AEPD in its resolutions (such as the one issued in file no. E/01654/2012), the applicability in the administrative sanctioning procedure of the principle “nullum crimen sine culpa” is unequivocal, which is flagrantly violated in the Agreement.

DISPLAY concludes that, having demonstrated the good faith with which it acted, relying on the information provided by a prestigious agency belonging to a leading media group in Europe when publishing the video, by virtue of the contract that binds them, and immediately removing the video from its servers upon becoming aware of the possible illegality of its content, the essential culpability element in any action subject to sanction does not exist; therefore, this party considers the imposition of any sanction to be inappropriate.

Second. - TOTALLY DISPROPORTIONATE SANCTION

DISPLAY alleges, in a subsidiary manner, in the event that it is considered that its conduct is indeed unlawful, the total disproportion of the amount of the sanction contemplated in the Initiation Agreement (300,000 euros), given the circumstances of the case, since:

- The sanction is excessive in relation to the billing and economic results of the sanctioned party;
- The AEPD incorrectly assesses the aggravating circumstances considered for quantifying the sanction;
- And the AEPD, in addition to the above, does not consider other mitigating circumstances that should have been taken into account when calibrating the proposed sanction.

Thus, it understands that:

1.- Excessive sanction in relation to the results of the activity of DISPLAY CONNECTORS, S.L.

DISPLAY indicates that Article 85.3 of the GDPR establishes a criterion for quantifying economic sanctions for infractions considered very serious of up to a maximum of the extremely high amount of 20,000,000 euros or “in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount.”

That is to say, the regulation establishes a maximum for sanctions for very serious infractions of 20 million euros or, if higher, 4% of the turnover of the previous year.

Thus, it indicates that in the case of DISPLAY, the turnover during the financial year 2021 amounted to ***AMOUNT.1 euros, as evidenced by the Annual Accounts filed with the Commercial Registry (attached as Document No. 5).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

12/102

In this way, it concludes that one of the maximum limits for sanctioning DISPLAY that must be considered in accordance with the aforementioned Article 85.3 of the GDPR is the amount of ***CANTIDAD.2 euros, an amount resulting from applying 4% to the revenue of the sanctioned company during the fiscal year 2021, prior to the events that are intended to be sanctioned.

It continues to point out that the proposed sanction represents nothing less than X,XX% of the total revenue for the fiscal year 2021 and considering that the result of the aforementioned fiscal year was a loss of ***CANTIDAD.3 euros, and that there are accumulated losses of ***CANTIDAD.4 euros, it results that the imposition of a sanction that represents XXX% of the losses from the previous fiscal year could easily lead DISPLAY to a current insolvency situation that would result in its liquidation, cessation of its activity, and the loss of the 55 jobs it currently employs.

Furthermore, it mentions the very limited performance that 'Público' obtained from the publication of

the video in question, indicating the following:

- The video was published in the video section of the newspaper's website, which was automatically fed with the 20 daily videos provided by ATLAS, but it was not given any special relevance, nor was it disseminated through any of the other communication channels that 'Público' uses on social media, such as YouTube, Instagram, Facebook, or Twitter, where the video was not even made available to readers or users;
- The consequence of the above is that the video subject to this file had only and exclusively 385 views during the entire time it was published, according to the information provided by the Google Analytics tool that records the number of views of the page where it was published (385 compared to a total of (...) pages viewed of the total newspaper in the same period, that is, an absolutely insignificant figure).

Document No. 6 is attached, containing information about the dissemination of the video from its publication until its removal, which is in the archives of Google Analytics – which are designated for evidentiary purposes, in case such dissemination is not deemed proven – which evidences the low number of views of the video news from which this file originates.

- Document No. 7 is also attached, containing information provided by Google Analytics about the 25 URLs with the most viewed videos on 'Público' during the same period in which the ATLAS video was published, where the first place is occupied by a video with (...) views, almost 14 times more than the one analyzed here; and also Document No. 8, which provides information from YouTube about the videos published on 'Público's' channel on that online video platform during the same period from March 31 to April 26, 2022 (in which the ATLAS video is not present, obviously, since, as explained, it was only published in the video section of the 'Público' newspaper's website and not on other channels), from which it results that the total views reached (...).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

13/102

Therefore, DISPLAY points out that the 385 views of the video from which the sanctioning file originates are, in comparative terms, certainly insignificant, and unequivocally demonstrate the null economic and commercial performance that DISPLAY obtained from the publication of the ATLAS video that contained the personal data from which the file originates.

DISPLAY concludes that this clearly highlights the disproportionate nature of the sanction that is intended to be imposed.

2.- The aggravating factors considered are not correctly assessed:

In this regard, it points out that the aggravating circumstances that the Initiation Agreement takes into account to quantify the sanction are erroneous and, in others, non-existent.

2.1.- The first aggravating factor presented

In this section, regarding the aggravating factor related to the "scope or purpose of the data processing operation, as well as the affected parties (Article 83.2.a GDPR), DISPLAY states that:

- The quality (very low, due to its lack of clarity) of the images and the limited duration (barely 4 seconds) make it completely impossible to recognize the full name of any of the affected individuals if the video is viewed at its normal speed.

In other words, it is entirely necessary to perform an intentional act to access the personal data in question, such as pausing the image, and even then, its poor quality and low definition make it very difficult (and in many cases impossible) to read the names and surnames of the affected individuals.

- It is also not true that the number of affected individuals amounts to 56; rather, according to what this party has been able to verify, only a maximum of 31 individuals can be seen during the 4 seconds that the image lasts (a 45.5% decrease), of which in many cases the name and/or surname cannot even be read well.

In proof of the above, DISPLAY attaches the frames corresponding to seconds 21 to 24, inclusive, of the video in question, as Documents No. 9 to 12, indicating that the following can be verified:

- The list begins with 16 names and surnames (many of which are truly illegible, making it impossible to identify the person);
- Following this first list, there is a section titled "PTES. OP," which contains 4 individuals.
- Then there is the section "ACTIVA SIN O.P.," where the names and surnames of 3 individuals are listed.
- Following that is the section "ACTIVAS NO LOCALIZABLES," which lists 5 individuals.

C/ Jorge Juan, 6
 www.aepd.es
 28001 – Madrid
 sedeagpd.gob.es
 14/102

- And finally, the section "NEWLY CEASED" appears, with 3 individuals.
 DISPLAY concludes that considering the loss of disposition and control over personal data as an aggravating factor, putting at risk the possibility of identifying women affected by gender-based violence, is not justified given the circumstances; and even less so to understand that there have been 56 affected individuals when the images refer to at most 31 women, many of whom cannot even be identified by viewing the images in the file.

2.2.- The second aggravating circumstance:

In this section, regarding the aggravating factor related to "The intent or negligence of the infringement by the claimed party (Article 83.2.b GDPR)," DISPLAY states that:

It refers to what was indicated in the first allegation regarding its lack of negligence. However, it adds that the AEPD considers it negligent not to ensure a procedure to protect personal data "especialmente considerando que es una entidad cuya actividad implica el procesamiento continuo de los datos personales de los usuarios." And it understands that this assessment is equally erroneous, since DISPLAY is dedicated to the editing of the digital general information newspaper 'Público', whose activity is not the processing of users' data, but the publication of information and current news, which do not necessarily have to contain personal data and, if they do contain them, they are not data of the newspaper's users.

It continues to indicate that the newspaper 'Público' also offers reader registration, as well as subscription to paid content, which does require - then indeed - the processing of users' personal data, data for which DISPLAY is responsible, and which has never had any incidents related to them, let alone any sanctioning file, as the AEPD is perfectly aware.

It points out that it is another matter that, in the development of its activity of publishing truthful and general interest information, the newspaper may face exceptional situations in which some personal data of public figures or even of some other person related to the information is disclosed, as may be the case that led to the initiation of this file. But that is not the norm in the activity of 'Público' and much less the publication of sensitive data about individuals, and therefore, considering this circumstance as an aggravating factor to establish that the sanctioned party has not established any specific procedure to guarantee the protection of personal data "in such sensitive circumstances" is not in accordance with the law.

Moreover, DISPLAY adds, when there should have been no need to establish specific control over video images produced by a trusted provider such as the ATLAS agency, which, in principle, should not contain any personal data that 'Público' would have to worry about, and which were automatically incorporated into the video section of the 'Público' website, by virtue of a contract under which MEDIASET must keep DISPLAY completely indemnified.

C/ Jorge Juan, 6
 www.aepd.es
 28001 – Madrid
 sedeagpd.gob.es
 15/102

against any claims received from third parties as a result of the publication of the videos provided by the agency.

2.3.- The third aggravating factor consists of considering the existence of two prior sanctioning files processed against DISPLAY.

In this regard, DISPLAY points out that their existence is certain, but that, however, it considers it erroneous to take the indicated circumstances into account to appreciate this aggravating factor, as it understands that the AEPD overlooks the following:

- The sanction of file PS/00194/2022 arises from another video from the same agency ATLAS, to which the considerations already made regarding the non-negligent conduct of 'Público' apply (based on the trust relationship with a professional and prestigious provider in the provision of a service that should not imply the processing of personal data);
- In both files, it is evidenced that the source of the information is in no case 'Público' (but rather third-party sources), as well as the indisputable diligence of 'Público' in the removal of the personal data contained in the information, as well as the assumption of responsibility and the prompt payment of the proposed sanctions, which is not valued –as it should have been– as evidence of DISPLAY's willingness to always collaborate with the AEPD, assuming the unintentional errors (even if they stem from the negligent actions of third parties ultimately) by paying the sanctions without opposing or appealing.

(Attached as Documents No. 13 and 14 are the receipts for the prompt payment of two assumed sanctions)

2.4.- DISPLAY points out that it has also been considered as an aggravating factor, in attention to the categories of affected personal data, that "the dissemination of the news implies the certain possibility of recognizing 56 victims of gender violence, which constitutes a serious harm to those affected, as such personal circumstance is linked to their safety, health, etc."

It also indicates that it is appreciated that "there could even be the circumstance that they are also victims of crimes against sexual freedom or sexual integrity, for which a special need for protection is also foreseen."

DISPLAY argues that the aggravating factor appreciated is also not legally justified, since:

- The first aggravating circumstance already appreciated in the Initiation Agreement is being duplicated, which stated that "it is considered that the nature of the infringement is very serious since it entails a loss of disposition and control over the personal data (names and surnames) of persons who have been victims of gender violence and that by disseminating such personal data there is a certain risk that such persons may be recognized by third parties, with the serious damages and harms that this would cause them. It is also considered relevant the number of affected persons, which amounts to 56."

DISPLAY points out that it is reiterated that these are persons who are victims of gender violence (as an element –sensitive data– that aggravates the facts), that a certain risk is generated that they may be recognized (as an aggravating element as well), and that the number of affected persons is high (56, although we have already demonstrated that this is erroneous, since at most 31 women could have been affected, although not even that many as the data of some of them are completely illegible).

DISPLAY understands that, by application of the principle of non bis in idem, typical of criminal law but fully applicable to the field of administrative sanctioning law, it is unacceptable to appreciate the same aggravating circumstances duplicatively, resulting in an increase in the amount of the sanction to totally disproportionate figures, in relation to the economic activity carried out by the sanctioned entity.

2.5.- And finally, the link of the infringer's activity with the processing of personal data is also considered as an aggravating factor (Article 76.2.b LOPDGDD).

In this regard, DISPLAY reiterates that it does not carry out an activity linked to the processing of personal data, but rather the activity typical of a digital information medium consisting of publishing information (written, photographs, or audiovisual pieces) that, on some occasions and not always, contain personal data which are always related to public figures or those of informational interest, so their publication is justified by the exercise of the fundamental right to publish truthful information, protected in Article 20 of the Constitution. And, only in very exceptional cases –as in the analyzed case due to two prior negligence of third parties unrelated to 'Público'– can any personal data that should not be published be contained in the information.

On the other hand, DISPLAY points out that it is true that the activity of 'Público' does have a link with the processing of personal data of the users of its website and its subscribers to paid services. However, it has never had any incident related to these treatments, which are subject to strict security measures to ensure that the data is not disclosed or improperly processed, nor lost, destroyed, or accidentally damaged, in strict compliance with the GDPR and the LOPDGDD. Therefore, DISPLAY understands that it is not appropriate to appreciate the previous aggravating factor.

3.- DISPLAY alleges that the following mitigating factors have not been appreciated, which concur and allow for a reduction in the unlawfulness of the events that occurred:

3.1.- The level of damages and harms suffered by the affected parties.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
17/102

DISPLAY indicates that the AEPD considers the high risk of identification of the women affected by the publication of their data as an aggravating factor, which is nothing more than that, a risk of suffering damages or harm resulting from such identification. However, it fails to consider that there is absolutely no evidence of any specific case of any affected individual who has experienced that risk resulting in a certain damage or harm; moreover, it is not even recorded that any of the affected individuals have filed a complaint against 'Público', as this was submitted by the Government Delegation against Gender Violence. Thus, considering that the number of potential affected individuals is notably lower than that considered in the Initiation Agreement (31 individuals compared to 56), and that there is no record of any specific case in which a single harm or damage has resulted for any of the 31 affected individuals, this should be taken into account when quantifying the sanction, in accordance with Article 83.2.a) GDPR.

In addition to the above, through the written allegations, DISPLAY offers to, in the event that any specific and real harm has indeed occurred to any of the affected individuals, put all necessary means in place to mitigate and repair it, which can also be considered for the purposes of penalty assessment, in accordance with Article 83.2.c) and f) GDPR.

3.2.- The concurrence of negligent actions by third parties.

DISPLAY points out that, as mentioned in previous sections, the lack of intent by 'Público' is evident and that the disclosure of the data arises from a concatenation of negligent acts by third parties unrelated to the proceedings (the Civil Guard agent interviewed by ATLAS agency personnel and the agency itself, when producing the published video). Therefore, it argues that this circumstance – which it believes should exempt the digital newspaper from responsibility – if not appreciated as an exemption from such responsibility, should be considered as a mitigating factor, under Article 83.2.b) and d) GDPR.

3.3.- Immediate withdrawal of the information.

DISPLAY argues that the extraordinary diligence of 'Público' in withdrawing the information that infringed the data protection rights of the affected individuals immediately upon being requested by the ATLAS agency on April 22, 2022, even before receiving the subsequent requirement (on April 29) from the AEPD, should be considered, which the AEPD does not do. DISPLAY indicates that this circumstance should also be framed under Article 83.2.f) GDPR, to the extent that 'Público' acted with all diligence cooperating with the AEPD in order to remedy the infringement and mitigate its possible adverse effects.

3.4.- The very limited dissemination of the video and the zero financial gains obtained by DISPLAY.

In relation to this issue, DISPLAY refers to what has already been stated about the practically nonexistent dissemination of the ATLAS video through the 'Público' website, with only 385 views, which translates to DISPLAY CONNECTORS, S.L. not obtaining any financial benefit derived from the infringement, which should also be considered, pursuant to Article 83.2.k) GDPR.

3.5.- The particularly intense and determined activity of 'Público' in defense of the collective of abused women and its public recognition.

DISPLAY understands as a mitigating factor applicable to the circumstances of the case, under Article 83.2.k) GDPR, the activities carried out by the newspaper in defense of the collective of abused women. To this end, it lists in its written allegations a series of topics and actions that it claims to have undertaken in recent years regarding the fight against gender-based violence, to which it refers. DISPLAY argues that all the aforementioned circumstances should serve to mitigate the eventual unlawfulness of the conduct of 'Público', reducing the hypothetical sanction to a minimum amount and, therefore, very far from the excessive amount of 300,000 euros proposed in the Initiation Agreement. DISPLAY concludes its written allegations requesting that the present sanctioning file be archived without imposing any sanction; or, alternatively, that any possible infringement attributed be graded in accordance with the criteria set forth in this document, agreeing to impose a minimum sanction.

Third.- Request for evidence.

Furthermore, in accordance with Articles 76 and following of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, DISPLAY requests that a period for evidence be opened for the practice of the following means of evidence it proposes:

1. Documentary evidence: That the documents already in the administrative file, as well as those provided in this written allegation, be accepted as documentary evidence;
2. Further documentary evidence consisting of a written response from the Government Delegation against Gender Violence: it requests that an official letter be sent to the aforementioned body so that the Government Delegate can express whether DISPLAY, as the publishing company of the digital newspaper 'Público', is a medium that has distinguished itself by its determined defense of women, in general, and of women victims of gender violence, in particular, and whether it has been characterized by the fight against all forms of gender violence, actively and continuously collaborating with the Government Delegation against Gender Violence in multiple activities.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

19/102

3. Witness Evidence: It is proposed that Mr. A.A.A. be summoned to testify as a witness, (...) from the ATLAS agency on the website of the newspaper 'Público' on the date when the news that gives rise to this file was published.

4. Expert Evidence: In the event that the existence of an automatic system for publishing videos from the ATLAS agency on the website of the newspaper 'Público' in 2022 is not considered proven, it is announced that an expert report will be provided by a competent technician designated by this party, which will certify the procedure for obtaining the videos from the ATLAS agency by DISPLAY CONNECTORS, S.L. and their publication on the website of the newspaper 'Público', on the date when the video news that gives rise to this sanctioning file was published.

5. Reproduction of the spoken word, sound, and image before the Instructor and the Secretary of the file, corresponding to seconds 21 to 24 of the video provided by the ATLAS agency that must be included in the file (or, if not, this party offers to provide it for reproduction). The frames of the indicated seconds have already been submitted with this document, in compliance with the provision established in Article 382.1 of the Civil Procedure Law.

SEVENTH: Practice of Evidence.

On November 6, 2023, the instructor of the procedure agrees to open a period for the practice of evidence, in which the following is agreed:

1. The claim filed by the DELEGATION OF THE GOVERNMENT AGAINST GENDER-BASED VIOLENCE and its documentation, the documents obtained and generated during the admission phase of the claim, and the report of prior investigative actions that are part of procedure AI/00172/2022 are considered reproduced for evidentiary purposes.
2. Likewise, the allegations to the initiation agreement of the referenced sanctioning procedure, submitted by DISPLAY CONNECTORS, S.L. (hereinafter DISPLAY), and the documentation accompanying them are considered reproduced for evidentiary purposes.
3. To carry out a diligence regarding the ownership of the domain of the website

<https://www.publico.es/>, which will be incorporated into this file for evidentiary purposes.

4. To carry out a diligence regarding the reproduction of certain images from the video where the names of the women victims of gender-based violence are visible, which will be incorporated into this file for evidentiary purposes.

In relation to this matter, DISPLAY requests “Reproduction of the spoken word, sound, and image before the Instructor and the Secretary of the file, corresponding to seconds 21 and 24 of the video provided by the ATLAS agency that must be included in the file (or, if not, this party offers to provide it for reproduction. The frames of the indicated seconds have already been submitted with this document, in compliance with the provision established in Article 382.1 of the Civil Procedure Law.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

20/102

In this regard, given that no name of any woman victim of gender-based violence is mentioned in the video, what is relevant in the present case is the visualization of the names, so the diligence will focus on reproducing the images through clips, frames, etc., from the video where the names are visible.

5. Evidence consisting of a computer report to be carried out by a competent technician to be designated by DISPLAY.

DISPLAY requests this evidence indicating that “in the event that the existence in 2022 of an automatic system for publishing the videos of the ATLAS agency on the website of the newspaper ‘Público’ is not considered proven, it is to be understood that the provision of a computer expert report to be carried out by a competent technician designated by this party is announced, which will certify the procedure for obtaining the videos from the ATLAS agency by DISPLAY CONNECTORS, S.L. and their publication on the website of the newspaper ‘Público’, on the date when the video news that gives rise to this sanctioning file was published.”

Therefore, if DISPLAY deems it appropriate, it may submit this evidence within the period of ten working days granted.

6. (...) the practice of the following evidence proposed by DISPLAY CONNECTORS, S.L.:

a) Documentary evidence consisting of a written response from the Government Delegation against Gender-Based Violence.

DISPLAY requests this documentary evidence indicating that “it is requested that an official letter be sent to the aforementioned body so that, by the Government Delegate, it is stated whether DISPLAY CONNECTORS, S.L., as the publishing company of the digital newspaper ‘Público’, is a means of information that has distinguished itself by its strong defense of women, in general, and of women victims of gender-based violence, in particular, and whether it has been characterized by the fight against all forms of gender-based violence, actively and continuously collaborating with the Government Delegation against Gender-Based Violence in multiple activities.”

However, it is considered inappropriate since the fact that it is or is not a means of communication characterized by the above would in no way alter the facts committed (publication of the video in which the names and surnames of women victims of gender-based violence are visible) and constitutive of the alleged infringement (violation of Article 5.1.c. of the GDPR), and, therefore, of the responsibility in which, if applicable, it may have incurred.

b) Testimonial evidence from Mr. A.A.A.

DISPLAY requests this evidence indicating that “Mr. A.A.A. be summoned, (...) from the ATLAS agency on the website of the newspaper ‘Público’ on the date when the news that gives rise to this file was published.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

21/102

This evidence is denied as unnecessary since it is already included in the file and provided by DISPLAY along with its written allegations, as “Document 2”, a declaration signed by Mr. A.A.A., dated September 5, 2023, in his capacity as (...) ***COMPANY.1., in which, after indicating that he is a company contracted by DISPLAY for the provision of consulting services and services related to the operation of its servers, editorial tools, and its website among others, he proceeds to detail precisely the aforementioned process of uploading and publishing the videos from the ATLAS agency on the website of the newspaper ‘Público’.

Notwithstanding the above, in the event that DISPLAY deems it appropriate, it may submit, within the deadline of the evidence period opened on the occasion of this notification, any documentation it considers necessary for the defense of its rights and interests, including the statements and expert evidence it deems appropriate.”

To this end, the Instructor carried out the following evidence:

a. Diligence regarding the legal notice of the website

<https://www.publico.es/aviso-legal#analytics-pie:aviso-legal>

To this end, on October 17, 2023, the instructor of the procedure carried out diligence in which the legal notice of the website <https://www.publico.es/aviso-legal#analytics-pie:aviso-legal> is reproduced, by virtue of which the owner of said website is DISPLAY CONNECTORS, S.L., with CIF B65749715, being this entity responsible for all the content published under that domain.

It is included as Annex I to the diligence, a screenshot of the legal notice of this website.

b. Diligence regarding the printing of several images from the video published on the website [publico.es](https://www.publico.es)

To this end, on October 18, 2023, the instructor of the procedure carried out diligence in which several images from the video that is in the file and was published on the website [publico.es](https://www.publico.es) are reproduced for evidentiary purposes, where the personal data of 51 women registered in the VioGén system as victims of gender-based violence and different classifications based on their specific circumstances are visible.

On October 24, a response was received from DISPLAY to the proposed evidence, in which it attaches the following documentation and indicates the following:

1.- As Document No. 15 (following the sequential numbering of the documents submitted with our written allegations to the Initiation Agreement of the Sanctioning File of September 5, 2023), a notarial requirement act at the request of DISPLAY, authorized by the Notary of Madrid, Mr. D.D.D.D., on October 16, 2023, with number XXXX of his protocol, in which the actions carried out by the forensic computer expert Mr. E.E.E. are certified, connecting from a computer of the notary's office to extract a series of necessary evidences for the...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

22/102

the preparation of an expert report, and also certifies the (...) of a single compressed file generated by the aforementioned expert with the evidence extracted from the notary's computer.

2. As Document No. 16, the expert report prepared and signed by the aforementioned forensic computer expert Mr. E.E.E. is submitted to the file using the mentioned (...) – which guarantees that the file “perito.tgz” generated before the notary has not undergone any manipulation, being authentic and complete— from which the following relevant conclusions arise for the purposes of this sanctioning procedure:

- In the section “Analysis of the changes made to the configuration file ‘***FICHERO.1’,” on page 26 of the report, it is indicated:

- ☐ That is to say, it can be concluded unequivocally from the analysis of the extracted digital evidence that, on 11/05/2023 at 12:34:04 UTC+2, a change was made to the configuration file “***FICHERO.1” so that all videos downloaded from that moment from the Atlas agency server would be marked as “inactive.”

□ This also allows us to deduce that, until 11/05/2023 at 12:34:04 UTC+2, due to the absence of the parameter “(...)” in the configuration file “***FICHERO.1” for the Atlas agency, all videos from this agency were downloaded from the server and published automatically, without any need for interaction.

And in the section “Opinion and conclusions” on page 28 of the report, particularly on pages 29 and 30, the following are presented, which are relevant for these purposes:

□ It has been evidenced that, since 11/05/2023 at 12:34:04 UTC+2, there was a change in the configuration file related to the Atlas agency, where the parameter “(...)” was added.

□ It can be concluded that, after this change, and after a detailed analysis of the source code of the program responsible for downloading and indexing the videos, all those downloaded from the Atlas agency server from that date are marked as inactive, requiring manual interaction to change this value so that it is visible to anyone from the URL <https://www.publico.es/publico-tv/>.

□ The aforementioned behavior was evidenced before the notary from the URL ***URL.2, corresponding to the management panel of videos to be published at <https://www.publico.es/publico-tv>. Thus, it was recorded with the public faith of the notary that an attempt was made to access from the notary's computer to the URL corresponding to a video that was marked as “Inactive,” which was not viewable. Subsequently, this value was manually changed to “Active” and the changes to that video were updated. After refreshing the page in the notary's browser, it was observed that it was now visible. Immediately afterwards, this video was changed back to its original state (“Inactive”) and upon refreshing again in the browser, the video was no longer available.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

23/102

- The analysis conducted on the evidence also allows us to deduce that until 11/05/2023 at 12:34:04 UTC+2, due to the absence of the parameter (...) in the configuration file “***FICHERO.1” for the Atlas agency, all videos from this agency were downloaded from the server and published automatically, without any need for interaction.

3. That, as provided in the resolution of October 6, 2023 issued by the instructor in this file, the result of the agreed tests may lead to the performance of others; and for the proper evaluation of the expert evidence provided through Document No. 2 submitted with this writing, which must be carried out in accordance with the criteria established in the Civil Procedure Law, as stipulated in art. 77.1 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, it is appropriate by virtue of the provisions of art. 347.1 of the aforementioned Civil Procedure Law, and in the interest of this party, it is requested that expert D. E.E.E. proceed to the ratification of his report before the instructor of the file, as well as to explain his opinion or some of its points, whose meaning was not considered sufficiently expressive for the purposes of the evidence, as well as to respond to questions and objections regarding method, premises, conclusions, and other aspects of the report that may be raised, or respond to requests for expansion of the report to other related points that may be required.”

EIGHTH: Additional allegations to the Initiation Agreement

On November 13, 2023, DISPLAY submitted a written statement of additional allegations in which, in summary, it stated the following:

First. - Prior negligence of third parties.

As a complement to this allegation already made in the first written statement of allegations submitted (“Diligent conduct. Lack of unlawfulness”), DISPLAY makes the following statements:

1.- The State Security Forces and Corps (FFCCSE), on occasions when they present data from the Comprehensive Monitoring System in cases of Gender Violence (referred to as the “VioGén” System) to third parties (sometimes media outlets), usually illustrate their analysis, evaluation, or information about the system with images from the “VioGén” database. This is not an occasional or sporadic occurrence, but can be classified as a common practice when recording audiovisual resources to

discuss this system.

2.- As evidence of the previous statement, several examples from recent years are listed below:

- Whenever the FFCCSE, for example, the Civil Guard or National Police, show real data from the "VioGén" System, they cover it so that the cameras cannot record it.

This can be verified, for example, in this video from Radio Televisión Española from 2017, when the system was presented, which is available at the following URL:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

24/102

<https://www.rtve.es/play/videos/telediario/td1-violencia-genero-010317/3930435/>

It can also be verified in the following screenshot of the video designated for the appropriate evidentiary purposes:

- It is also common for personnel accessing this database from other official bodies, such as the Ministry of Justice, for example, to act in this manner, as is the case in this course of the Center for Legal Studies (CEJ) during the "Presentation Day of the Urgent Forensic Risk Assessment Protocol for Gender Violence," in which attendees were instructed on the operation of "VioGén," as seen in the following video available on the YouTube platform at the following URL (see from min. 2:13:50, of which a screenshot is copied below):

https://www.youtube.com/watch?v=y9KeDn5kgI8&ab;_channel=CEJMinisteriodeJusticia

- On other occasions, the FFCCSE do not hide the fields, but simply show a simulation with fictitious data, but do not provide real information that appears in the "VioGén" database. In this regard, see the information issued by Radio Televisión Española about the "VioGén" system available at the following URL (specifically min. 0:43, of which a screenshot is also shown below):

<https://www.rtve.es/play/videos/rtve-igualdad/viogen-coordinaractuaciones-capacidades-fuerzas-seguridad/6835176/>

Second. - Diligence of the information medium.

DISPLAY indicates that for a media outlet, it is impossible to know whether the images of the "VioGén" system being shown by the FFCCSE contain real data from the database or fictitious data. Therefore, it must be presumed that, coming from official bodies (FFCCSE, Ministries, etc.), their action has been diligent regarding the protection of personal data, so if the data has not been hidden, it is a simulation. Moreover, in addition to the previous presumption, DISPLAY points out that it must be taken into account that journalists cannot access those data in the "VioGén" system in any way to verify whether they are real or fictitious data, as stated in the document "The Police Assessment of the Risk of Violence Against Women Partners in Spain," published by the Secretary of State of the Ministry of the Interior in September 2018, that only a few users can enter that database and each has a unique code so that it can be audited who has accessed this data and revealed it.

Attached as Document No. 17 (following the correlational order of the documents provided by her) is the aforementioned document from the Ministry of the Interior, which is available at the URL:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

25/102

https://www.interior.gob.es/opencms/pdf/archivos-ydocumentacion/documentacion-y-publicaciones/publicaciones-descargables/seguridadciudadana/La_valoracion_policial_riesgo_violencia_contra_mujer_pareja_126180887.pdf,

on page 75 it can be read:

"As happens in any information system where personal data is collected, in compliance with the Organic Law on Data Protection (15/1999), users access the System with a personal and non-transferable username and password, which allows auditing their activities, and they have

limitations, both in terms of the information they can access and the functionalities they can activate, that is, each one has a specific profile, with differentiated levels of privileges."

On the other hand, the State Pact against Gender Violence of 2017 and its subsequent revisions have made clear the requirement to protect the data of victims of gender violence within their protocols related to police risk assessment. And one of its most important measures is the mandate that the FFCCSE prevent anyone who could be the perpetrator of a gender violence crime from accessing the data contained in the "VioGén" System.

Thus, the document from the Ministry of the Interior provided as Document No. 17 ("The Police Assessment of the Risk of Violence Against Women Partners in Spain"), on page 85 includes some of the proposals made regarding the "VioGén" system and the Police Risk Assessment Protocol for Violence Against Women, indicating measure No. 81 that is proposed:

"Prevent access to VioGén and/or restrict it in those police databases that may contain data of victims to members of the State Security Forces and Corps personally involved as perpetrators in cases of any form of gender violence."

That is to say, DISPLAY asserts, the degree of protection for these victims is such that even members of the FFCCSE who could be perpetrators of any form of gender violence are barred from consulting the "VioGén" system.

Third. - Absence of responsibility of 'Público'

DISPLAY argues that, in light of all the above, no responsibility can be derived from the actions of PÚBLICO regarding the disclosure of the data that appeared in the video from the "Atlas" Agency, in a recording of the screen of a computer of an agent of the Civil Guard of ***LOCALIDAD.1, for the following reasons:

- PÚBLICO assumes the good conduct of the FFCCSE regarding compliance with the protocols of the Ministry of the Interior or those included in the State Pact against Gender Violence. And therefore, it presupposes and takes for granted that an agent of the FFCCSE will never publicly display real data of victims integrated into the "VioGén" system, especially when they are being subjected to

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

26/102

an audiovisual recording that can later reproduce those data, as it would be seriously contravening such protocols.

- As can be seen in the videos mentioned above, in their relationship with the media regarding the "VioGén" system, the FFCCSE always conceal the sensitive data of the system or show simulated data, so that real data is never disclosed, which means there was no reason for PÚBLICO to think that it was real data (in the event that the content of the video had been reviewed before its publication, which, as we have demonstrated in this sanctioning file, was not the case, since the video provided by a reliable information agency like "Atlas" was automatically published on the newspaper's website).

- Thus, in the case of the video in question, its recording was not carried out by personnel from PÚBLICO who could have orally verified whether the data shown by the agent was simulated or not, but by the "Atlas Agency." We assume that the aforementioned Agency also did not orally verify whether the data shown was real or fictitious, and that they relied on the scrupulous compliance by the FFCCSE with their obligations and protocols for managing the "VioGén" system and the non-disclosure to third parties of data concerning victims of gender-based violence contained in the system, which is why they recorded and produced the informative piece that they later provided to PÚBLICO for automatic publication on the newspaper's website. Once PÚBLICO receives the video and automatically hosts it on its website, in light of all the aforementioned, it can only assume that the FFCCSE agent—first—acts in accordance with the established protocols and in no case is showing real data and that the "Atlas Agency"—afterwards—has verified that this is the case before providing the video to PÚBLICO for publication.

For all of which, DISPLAY insists on the lack of culpability and unlawfulness in its conduct, which does not make it deserving of the imposition of any sanction.

NINTH: Proposal for Resolution

On December 5, 2023, a proposal for resolution was made, proposing that the Director of the Spanish Agency for Data Protection sanction DISPLAY CONNECTORS, with NIF B65749715, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, with an administrative fine of €4,000,000 (four million euros) and for an infringement of Article 32 of the GDPR, classified under Article 83.5 of the GDPR, with a fine of €187,000 (ONE HUNDRED EIGHTY-SEVEN THOUSAND EUROS).

TENTH: Response to the allegations regarding the initiation agreement

In response to the allegations presented by the accused entity, the following is noted:

FIRST.- Regarding the diligent conduct of DISPLAY and the lack of unlawfulness

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

27/102

In this section, DISPLAY claims that it acted with the diligence expected of a digital information medium and that it is not responsible for what happened, supporting this with several arguments:

1. That it relied on a major provider, Grupo Mediaset, acting under the principle of legitimate trust, as it has a contract with them under which Agencia Atlas was responsible for complying with the applicable laws and regulations regarding all the content it supplied to its clients. Therefore, it understands that it did not specifically process any personal data, but acted trusting a reputable agency that provided the images, which, according to the contract, were guaranteed not to infringe any third-party rights or applicable regulations.

2. That there is a concurrence of prior negligent actions by third parties.

First, it points out the negligence in the premises of the Guardia Civil, as they allowed the recording of images that contained data from the VioGen database. Without this initial negligence, no personal data would have been revealed.

Secondly, it points to Agencia Atlas as ultimately responsible for the inclusion of images containing personal data for 4 seconds. It insists that Atlas sold it a fully finished product ready for publication and that DISPLAY did not seek the information, nor did it neglect to ensure that the data was not accessible to the television camera, nor did it record the image, let alone insert the image into the video news.

3. That it limited itself to trusting the reputable agency Atlas, which is why it adopted an automatic video publication system, based on the provider as a reliable source of information, so it is not true that DISPLAY selected specific content of interest to publish in the digital newspaper “Público,” as a fully automatic system is established.

In this regard, and as a preliminary matter, it should be clarified that through this sanctioning procedure, the processing of data consisting of the dissemination (publication) of personal data of individuals who are victims of gender-based violence carried out by the responding party is being analyzed.

For these purposes, the GDPR defines in its Article 4.2 the processing of personal data: “any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, limitation, erasure or destruction.” (the underlining is ours).

For its part, Article 4.7 of the GDPR defines as “‘data controller’ or ‘controller’: the natural or legal person, public authority, agency or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the controller or the specific criteria for its...”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

Appointment may be established by Union Law or by the Member States;”.

As established in the Guidelines 07/2020 of the European Data Protection Board on the concepts of data controller and processor in the GDPR, the concept has five main components: “the natural or legal person, public authority, service or other body”, “determines”, “alone or jointly with others”, “the purposes and means” and “of the processing”.

Furthermore, the concept of data controller is a broad concept that aims to provide effective and complete protection to data subjects. This has been determined by the case law of the Court of Justice of the European Union. For all, we will cite the Judgment of the CJEU in the Google-Spain case of May 13, 2014, C-131/12, which broadly considers the data controller to ensure “effective and complete protection of data subjects”.

Thus, the Guidelines 07/2020 on the concepts of data controller and processor in the GDPR specify that “the data controller is the party that determines why the processing takes place (that is, ‘for what purpose’ or ‘for what reason’) and how this objective will be achieved (that is, what means will be employed to achieve it)”.

Since it is clear that the responding party decides on the purposes of the processing, that is, determines that the purpose of the processing is informational, it is necessary to focus on whether it also has the power to decide on the means of processing, which the responding party denies, arguing that the news in question comes from the Atlas Agency and that the publication is carried out automatically, without any manual intervention.

In accordance with what is stated in the Proven Fact Fifth, in the contract signed between the Atlas Agency and DISPLAY on ***DATE.1, it is indicated in the section EXPOSE the following:

“1. That DISPLAY is a company whose main activity consists of providing information on current news, having the necessary means and authorizations for this purpose, and that distributes the newspaper Público in digital format through the URL: www.publico.es

2. That DISPLAY is interested in being provided with a service for the supply of images of informative content, for its public communication through its website www.publico.es or any other that, with the same purpose, may replace it (hereinafter the Website)”

(...)

In its First Clause, the following is indicated: “(...)”.

In the section “4. CHARACTERISTICS”, of the aforementioned contract, the following is stated: “The videos will be supplied to DISPLAY in execution of this contract, and will be carried out as established below:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

4.1 CONTENT: Any event of informational interest produced by MEDIASET ESPAÑA or produced by Reuters that takes place in national or international territory and has been digitized by MEDIASET ESPAÑA will be included in the daily list to which DISPLAY will have access, from which it will select the videos subject to this contract.

(...)

4.3 MEDIASET ESPAÑA guarantees that the material of the supplied videos will have the necessary quality for public communication and reproduction. In any case, the material will be delivered by MEDIASET ESPAÑA to DISPLAY through its website ***URL.1 or through an FTP mailbox, with MEDIASET ESPAÑA bearing the costs of delivering the videos.

In accordance with the above, Atlas makes available to DISPLAY a series of news items, from which the latter can select those it deems appropriate, download them, and proceed to publish them on its website.

Ultimately, the responding party has the decision-making power regarding which contents from the Atlas Agency it publishes and which it does not. In this regard, concerning DISPLAY’s claim that it is

not true that it can select the videos since there is a completely automatic publication system for all of them without human intervention, it should be noted that this automatic system or process is not something that the Atlas Agency has established and is not an unavoidable or inevitable situation for DISPLAY, as this automatic system has been voluntarily established precisely by DISPLAY.

Thus, the responding party has expressly indicated in its written submissions that "as a result of this security and full trust in the provider, it was determined in 'Público' to automatically publish these videos from the Atlas Agency, a criterion that was not applied to contents from other providers, which could be previously selected or reviewed by 'Público' staff."

Therefore, it is DISPLAY that decided to establish a completely automatic system for publishing the videos on its website, using "a software program that connected to the FTP service of Atlas and downloaded the new videos that the agency was generating. This program was executed periodically (once every hour) in an automated manner, without any manual intervention," as certified by a document signed on September 5, 2023, and submitted by DISPLAY as Document No. 2 along with the written submissions to the Initiation Agreement, by the person responsible for the company ***EMPRESA.1., contracted by DISPLAY for the provision of certain services related to the operation of its servers and its website. In this regard, we refer to Proven Fact Seventh.

Regarding the submission by DISPLAY, as evidence of the automatic process, of the Judgment (...) in a procedure for violation of the right to honor and personal image followed against DISPLAY CONNECTORS, S.L., precisely for the publication of a video from ATLAS in which, by mistake, the image of the plaintiff appeared, it should be mentioned that the claim was dismissed, applying the doctrine of neutral reporting, and taking into account the circumstances.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

30/102

concretely in that case, as it was understood that there was no unlawful interference with the claimant's right to honor. Therefore, it has nothing to do with the present sanctioning procedure.

Furthermore, it should be noted that the responsibilities arising from the civil sphere are not the same as those arising from the administrative sphere due to non-compliance, in this case, with obligations regarding data protection. Likewise, as pointed out in the Proven Facts Eighth and Ninth, subsequent to the complaint that gives rise to the present sanctioning procedure, DISPLAY decided to change this automatic video publication system to a manual system, in order to "avoid the publication of videos with potentially illegal and problematic content."

Therefore, DISPLAY, as the data controller, is the one that has defined both the purpose (informative) and the means, in this case: obtaining news videos through an agency and establishing an automatic system for downloading and publishing those videos on its website.

Furthermore, the responding party has the power to decide how to obtain the information and, thus, instead of opting for it to be supplied by a news agency, it could have chosen for the event to be covered by one of its journalists, for example. Likewise, instead of opting for an automatic download and publication, it could have chosen one that did not involve such an automated process. Moreover, even in the case that the Atlas system involved an automatic download and publication and that such a process could not be avoided - which has already been shown not to be the case - DISPLAY always has the option to decide not to contract with it, that is, not to use a system that does not allow it to establish control over the personal data it publishes and that, therefore, does not allow it to comply as a data controller with its legal obligations in this matter.

And a reflection of all this is that after the publication of the video and after the complaint submitted and the order for the withdrawal of the video directed by this Agency, DISPLAY has opted to modify the automatic system it had established for one that allows for manual intervention, as reflected in Proven Fact Ninth.

In this order of things, it must be made clear that it is unacceptable for the fundamental right to the protection of personal data to be subordinated or subject to the technology used in the treatments or to technical or technological issues, as this would constitute a breach of the GDPR, which, in its Article 25

"Data protection by design and by default" determines precisely the opposite:

"1. Taking into account the state of the art, the cost of application, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity that the processing entails for the rights and freedoms of natural persons, the data controller shall implement, both at the time of determining the means of processing and at the time of the processing itself, appropriate technical and organizational measures, such as pseudonymization, designed to effectively apply the principles of data protection, such as data minimization, and to integrate the necessary safeguards into the processing, in order to comply with the requirements of this Regulation and protect the rights of data subjects.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

31/102

2. The data controller shall implement appropriate technical and organizational measures to ensure that, by default, only personal data necessary for each specific purpose of the processing is subject to processing..." (the underlining is ours)

Notwithstanding the above, the choice of one means or another for the publication of the content does not change the commission of the infringement that concerns us now, consisting of having published on its website a video in which personal data of women victims of gender-based violence included in the VioGen system are visible.

For all the above, it has been established that DISPLAY is responsible for the processing it carries out, as it defines the purpose of the processing of personal data that its activity entails and chooses the means it deems appropriate. This is independent of the actions and responsibilities that third parties may have incurred, as the negligence or illegal actions of third parties do not exclude its own, which consists of disseminating (publishing) excessive personal data, not covered by the GDPR, thereby breaching it.

Therefore, the negligent actions that third parties may have incurred do not exempt DISPLAY from having to comply with data protection regulations nor do they prevent the processing it carries out from violating such regulations.

This is so because it is the publication of the video on its website, containing personal data (name and surname and various classifications based on their specific circumstances) of women victims of gender-based violence, carried out by the defendant that is the subject of this procedure. Therefore, what will be assessed is its action, that is, the compliance or non-compliance with the obligations imposed by the GDPR as the data controller.

Regarding the assertion that it fully relied on Agencia Atlas and that this agency was responsible for complying with the current legislation and regulations concerning all the content it provided to its clients, it is noted that, regardless of how the contractual relationship between both companies is internally structured (which, moreover, in the contract does not assume responsibility on the part of Agencia Atlas as understood by the defendant), it is DISPLAY that must comply with the data protection regulations regarding the processing it carries out, specifically, the dissemination or publications it makes in its digital newspaper "Público." In this case, it is emphasized that DISPLAY is responsible for the publication of the video in question in its digital medium, which constitutes a breach of the GDPR.

Finally, regarding the claim that DISPLAY acted with total diligence as it proceeded to withdraw the video at the precise moment when Agencia Atlas itself communicated to the newspaper that it contained illegal images, providing as evidence two communications, one from Agencia Atlas on 25/04/22, in which it requests the withdrawal of the video and another, a few minutes later, in which they respond that it has already been withdrawn, it is noted, on the contrary, that it did not proceed to the immediate withdrawal of the video as indicated, since, as has been established in Proven Fact Three, MEDIASET had to send it 3 communications (on April 1, April 8, and April 25, 2022) until, finally, on April 25, it proceeded to its withdrawal. This delay caused that, with

C/ Jorge Juan, 6

www.aepd.es
28001 – Madrid
sedeagpd.gob.es
32/102

Date: April 22, 2022, this Agency proceeded to issue a withdrawal order of the video directly to DISPLAY.

Furthermore, once the aforementioned order was received by DISPLAY on April 22, 2022, as evidenced by the acknowledgment of receipt in the file to which we refer, it did not respond to this Agency regarding compliance with the measure as required in said order.

DISPLAY also claims that it cannot be sanctioned since, having acted diligently, it is being held to an objective responsibility, which violates the principle of culpability that governs our legal system and requires the concurrence of some form of intent or fault.

In response to this, as previously stated in earlier sections of this legal basis, the infringing conduct attributed to DISPLAY is due to publishing on its website a video containing personal data that should not appear as it constitutes a breach of Article 5.1(c) of the GDPR, since they are not necessary for the intended purpose. The lack of due diligence is evident in the failure to establish adequate control to prevent the publication of excessive personal data and, furthermore, by having established an automatic system that, as indicated, did not allow for prior control of any publication.

The principle of culpability is required in the sanctioning procedure, but the principle of fault does not imply that only intentional actions can be sanctioned. The Supreme Court (STS April 16, 1991, and STS April 22, 1991) considers that from the culpability element it follows “that the action or omission, qualified as an administratively sanctionable infringement, must be, in any case, attributable to its author, by intent or negligence, imprudence or inexcusable ignorance.” The same Court reasons that “it is not enough...for exculpation against a typically unlawful behavior to invoke the absence of fault” but it is necessary “that the diligence required by the one claiming its non-existence has been employed.” (STS January 23, 1998).

Furthermore, the National Court in matters of personal data protection has stated that “simple negligence or failure to comply with the duties imposed by law on those responsible for files or data processing to exercise utmost diligence is sufficient...” (SAN June 29, 2001).

This lack of diligence by DISPLAY, as the data controller, in determining an inadequate means that, as indicated, does not allow it to carry out adequate control of the personal data processing it performs, as well as the fact of having published a video with personal data that should not be visible, due to being excessive for the intended purpose, constitutes the element of culpability.

Regarding DISPLAY's reference to file No. E/01654/2012, processed by this Agency, to support the argument that the applicability of the principle “nullum crimen sine culpa” in the sanctioning procedure is unequivocal, it is noted.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
33/102

that in said file the proceedings against the accused were archived by virtue of the principle of presumption of innocence, due to the lack of sufficient evidence to attribute any infringement, as the complainant did not provide, despite being requested to do so, any document that would allow verification of the version of the facts offered by the complainant or at least facilitate a prima facie case.

Therefore, there is no relationship between the reasons for archiving that file and what DISPLAY is now arguing, in addition to the fact that the applicable regulations were different as the GDPR was not in force at that time.

For all the above, it is concluded that DISPLAY is responsible for ensuring that everything published on its website complies with data protection regulations, whether they are videos, photos, audio, written articles, etc., (as stated in Proven Fact Ten) and cannot shield itself and claim as an exemption from its responsibility both the prior actions of third parties and the fact of having adopted an automatic

system to publish the videos produced by Agencia Atlas.

SECOND. - Disproportionate sanction

In this section, DISPLAY argues the following:

A) Disproportionate sanction in relation to the results of DISPLAY's activity

DISPLAY indicates that, in accordance with the provisions of Article 83.5 of the GDPR, one of the maximum limits for sanctioning is 4% of the turnover, and given that during the 2021 financial year its turnover amounted to ***AMOUNT.1 euros, 4% of that is ***AMOUNT.2 euros, which means that the proposed sanction of 300,000 euros exceeds that limit.

In response to what has been alleged, several points should be noted.

Firstly, Article 83.1 of the GDPR establishes that administrative fines for infringements of the GDPR must be "...effective, proportionate, and dissuasive in each individual case," indicating next in paragraph 2 of the aforementioned provision that "Administrative fines shall be imposed based on the circumstances of each individual case, as an additional or substitute measure to those contemplated..." (the underlining is ours). It then establishes certain circumstances to be taken into account.

Thus, the calculation of the amount of the fines is left to the decision of the supervisory authority, subject to the rules provided in the GDPR. In this context, the GDPR requires, as has been pointed out, that the amount of the fine be effective, proportionate, and dissuasive in each case (Article 83, paragraph 1, of the GDPR). Furthermore, when setting the amount of the fine, the supervisory authorities will duly take into account a list of circumstances relating to the characteristics of the infringement (its severity) or the nature of the offender (Article 83, paragraph 2, of the GDPR). Finally, the amount of the fine shall not exceed the maximum amounts provided for in Article 83, paragraphs 4, 5, and 6, of the GDPR. Therefore, the quantification of the amount of the fine is based on a specific assessment carried out in each case, within the parameters provided by the GDPR.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

34/102

Furthermore, it should be noted that the calculation of a fine is not a mere mathematical exercise, as the circumstances of the specific case are the determining factors that lead to the final amount, which may be, in all cases and for each infringement, a different amount up to the legal maximum.

Secondly, regarding the maximum limit, DISPLAY is charged with the infringement of Article 5.1.c) of the GDPR, which is classified under Article 83.5.

In this regard, Article 83.5 of the GDPR states that infringements of the provisions indicated "...shall be subject to administrative fines of up to 20,000,000 EUR, or, in the case of an undertaking, an amount equivalent to a maximum of 4% of the total global annual turnover of the previous financial year, opting for the higher amount" (the underlining is ours).

Well, upon reviewing the allegations made regarding the lack of proportionality of the sanction and considering the concurrent circumstances in the specific case, it can be understood that it may be disproportionate, which allows us to adjust the initial amount, estimating this allegation based on the total global annual turnover of DISPLAY for the previous financial year (2022).

In this sense, the Guidelines 04/2022 of the EDPB on the calculation of fines under the GDPR, version 2.0, adopted on May 24, 2023, state that "131. Article 83, paragraphs 4 to 6, of the GDPR establishes that the total global annual turnover of the previous financial year will be used. Regarding the question of what event the term 'previous' refers to, the case law of the CJEU in competition law must also apply to GDPR fines, so that the relevant event is the fine decision issued by the supervisory authority and not the time of the infringement or the judicial decision."

The estimation of the allegation does not affect the consideration and concurrence of the aggravating circumstances identified by the AEPD, nor does the fine lose its individualized, deterrent, and effective nature in light of the allegations made. The allegation is only estimated concerning the element related to the proportionality of the sanction.

B) The aggravating factors considered are not correctly assessed

In this section, DISPLAY disagrees with the aggravating factors considered in the Initiation Agreement for quantifying the sanction, understanding them to be erroneous. Thus, it alleges the following:

- Aggravating factor related to the scope or purpose of the operation, as well as to the affected parties (Article 83.2.a) of the GDPR)

DISPLAY considers that it is completely impossible to recognize the full name of any of the affected individuals if the video is viewed at its normal speed, making it entirely necessary to pause the image, and even then, its poor quality and low definition make it very difficult to read the names and surnames of the affected individuals. Furthermore, it points out that it is not true that the number of affected individuals amounts to 56, but at most...

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
35/102

of 31 and, furthermore, in many cases, the name and/or surnames cannot even be read clearly, as evidenced by the frames provided as Document No. 9 to 12.

In this regard, it is noted that, in accordance with what is indicated in the Sixth Background Fact and in the Eleventh Proven Fact, this Instructor proceeded, on October 18, 2023, to carry out diligence related to the printing of several images from the video published on the website publico.es. In this diligence, in which the printing of several images from the video in the file is reproduced for evidentiary purposes, the personal data of 51 women registered in the VioGén system as victims of gender-based violence are visualized, showing their names and surnames, as well as different classifications based on their specific circumstances.

Therefore, it has been established that the personal data of 51 women victims of gender-based violence were published. The fact that this is 5 fewer than those indicated in the Initiation Agreement does not imply a decrease in the severity of the infringement, for the purposes of Article 83.2.a) of the GDPR. Moreover, even in the event that, as claimed by the respondent, 31 were affected, it would still be a high number in this regard, considering the high risk of damage and harm that the dissemination of their identity may pose to those affected.

-

Aggravating factor regarding the existence of intent or negligence in the infringement by the respondent (Article 83.2.b) of the GDPR)

DISPLAY insists again on the lack of negligence in its actions, referring to what has been previously alleged in this regard.

It also adds that the assessment that DISPLAY is an entity whose activity involves continuous processing of personal data is erroneous, as its activity is not the processing of data, but the publication of information and current news, which does not have to contain personal data and which, only in exceptional situations, discloses some personal data of public figures.

In response to this, firstly, regarding DISPLAY's claim that it acted at all times with due diligence, its negligent conduct has already been addressed in Section One of this Legal Basis, to which reference should be made.

Secondly, it is noted that this Agency has not indicated that DISPLAY's activity is the processing of personal data, but rather that its activity—publication of information and current news, as it is termed—entails continuous processing of personal data. Thus, it cannot be overlooked, in addition to the processing of personal data of users subscribed to paid content, that its activity of publishing information and news continuously involves the processing of personal data (images of people appearing in the videos, identifying data of some of them, etc.). In this regard, it is indisputable that a media outlet, such as DISPLAY, due to the activity it performs, entails continuous processing of personal data in which it must pay special attention to compliance with the GDPR in the publications and disseminations it carries out.

C/ Jorge Juan, 6
www.aepd.es

-

Aggravating factor related to all previous infractions committed by the data controller (Article 83.2.e) of the GDPR)

DISPLAY argues that it is incorrect to consider this since the sanction from file PS/00194/2022 arises from another video by the same agency Atlas, to which the considerations made regarding its non-negligent conduct are applicable. Furthermore, it insists that in both files it is evidenced that the origin of the information is in no case from DISPLAY, but from third-party sources, and that it acted diligently in the removal of personal data, as well as in assuming responsibility and promptly paying the sanctions imposed there, which should be valued as evidence of DISPLAY's willingness to always cooperate with the AEPD.

In this regard, it is emphasized that it is not appropriate to accept in any way what is claimed by the respondent.

Firstly, because in PS/00555/2022, following the Initiation Agreement, it availed itself of the prompt payment using the two reductions allowed by law, which implied the acknowledgment of responsibility by DISPLAY. That is to say, the respondent acknowledged its responsibility regarding the facts attributed to it, which also constituted an infringement similar to the one currently in question.

Secondly, the lack of diligence of DISPLAY when publishing the video in question has already been argued. Likewise, it is not appropriate, as has also been previously pointed out, to accept its lack of responsibility in the fact that the origin of the video comes from third-party sources, since the infringement attributed to it is not that of having produced the video, but of having published it on its website. Therefore, regardless of the possible responsibility or lack of diligence of third parties, DISPLAY cannot evade its own as the data controller that it performs, in accordance with its own purposes and in accordance with the means it has established for this.

Regarding the removal of the videos or publications in question, as well as the prompt payment made by DISPLAY in the two previous sanctioning procedures to this one, it is entirely unacceptable that they can be considered as mitigating factors or as an expression of collaboration with the AEPD. Thus, the removal of what was published was not carried out spontaneously by DISPLAY, but was a consequence of orders issued by this Agency, which are mandatory, and therefore do not reflect a collaborative behavior but a procedure required by law.

As for the claim that the payment of the sanctions, availing itself of one of them to the possibility of prompt payment, constitutes a collaborative behavior with this Agency, it is entirely unacceptable since the payment of the sanctions is mandatory, with prompt payment being a possibility allowed by law that the sanctioned party can voluntarily avail itself of, so it can in no case be considered a mitigating factor in subsequent infringing conduct.

Regarding PS/00194/2022, in it DISPLAY did not make any allegations, being sanctioned for the same infringement that is now attributed to it.

-

Aggravating factor related to the categories of personal data affected by the infringement (Article 83.2.g of the GDPR)

DISPLAY understands that it is being penalized twice for the same circumstance of dealing with personal data of women victims of gender-based violence, which it believes constitutes a violation of the principle of non bis in idem. In this regard, it is noted that the first aggravating circumstance taken into account (Article 83.2.a GDPR) refers to the loss of availability of the affected personal data, as they have been published. The aggravating factor focuses on the fact that, having been published (on a web portal), the loss of control is absolute and the high risk it entails given that the affected

individuals are victims of gender-based violence. Regarding this aggravating factor (Article 83.2.g of the GDPR), the focus is on the category of affected personal data, which is considered sensitive due to the individuals being victims of gender-based violence.

-

The link between the infringer's activity and the processing of personal data (Article 76.2.b of the LOPDGDD)

DISPLAY insists that it does not engage in an activity related to the processing of personal data, but rather carries out the activity typical of a digital information medium. In this regard, reference should be made to the arguments previously presented concerning the aggravating factor related to the existence of intent or negligence in the infringement by the respondent party, in the sense that its activity of publishing information and news does indeed involve continuous processing of personal data, characteristic of a digital communication medium.

For the reasons stated, all these allegations regarding the applied aggravating circumstances should be dismissed. Furthermore, reference should also be made to the reasons presented for the application of each aggravating circumstance indicated in the Initiation Agreement of the current sanctioning procedure, which are reproduced in Legal Basis X of this Proposal.

C) No mitigating factors are appreciated

Under this section, DISPLAY proceeds to indicate certain circumstances that it believes should be considered to mitigate the sanction:

-

The level of damages suffered by the affected individuals

DISPLAY indicates that it has been applied as an aggravating factor the high risk of identification of the women affected by the publication of the data, which is nothing more than that, a risk of suffering damages derived from such identification; however, the AEPD fails to consider that there is no evidence of any specific case of any affected individual who has seen that risk materialize into a certain damage or harm. Moreover, there is no record of any claim from any affected individual. Likewise, it offers that if any affected individual has suffered any specific and real damage or harm, it will put all necessary means to...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

38/102

to mitigate or reduce it, and this must be considered for the purposes of mitigating the sanction, in accordance with Article 83.2.c of the GDPR.

In this regard, it is noted that the fact that there is no evidence of the materialization of harm or damage to any of the affected parties cannot imply a mitigation of the sanction because, conversely, if such materialization were to be confirmed, it would constitute an aggravating circumstance.

Furthermore, the absence of evidence that the high risk (which has been caused precisely by the negligent and contrary actions to the GDPR of DISPLAY) has materialized into a specific and effective damage or harm does not prevent the risk of identification of the affected parties from being very high, as well as the probability that it may result in serious damages and harms to them. The position of the respondent, dismissing this risk by stating that “this is nothing more than that, a risk of suffering damages and harms resulting from such identification,” is not acceptable in any way. Precisely, the obligations imposed by the GDPR on data controllers are established with the aim of protecting the rights of the data subjects from the perspective of the risks present in the processing of personal data, identifying the risks, assessing them, evaluating them, and implementing technical and organizational measures of all kinds to mitigate or avoid the probability of materialization.

For the same reason, it cannot be accepted as a mitigating factor that it is now generically offered, in the event that any of the affected parties has suffered any specific harm, to put measures in place to mitigate and repair them, since Article 83.2.c of the GDPR refers to taking into account “any measures taken by the controller or processor to alleviate the damages and harms suffered by the data subjects,” meaning certain and already adopted measures, and not possible future measures that could

supposedly be adopted in the event that any of the affected parties suffered any harm.

-

Concurrent negligent actions of third parties

DISPLAY insists again here that the disclosure of data it has made is due to a concatenation of negligent acts by third parties unrelated to it.

In this regard, it has already been made clear that the possible liability of third parties does not exempt or mitigate the liability it has incurred by publishing personal data on its website. Therefore, reference should be made to all the previous arguments already presented.

-

Immediate withdrawal of the information

It is not appropriate to consider this as a mitigating factor, as has already been argued previously.

However, it should be added that it did not proceed with the immediate withdrawal of the video as it insists, since it has been established in Proven Fact Three that MEDIASET had to send it 3 communications (on April 1, April 8, and April 25, 2022) until, finally, on April 25, it proceeded with its withdrawal. This delay caused that, with

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

39/102

Date: April 22, 2022, this Agency proceeded to issue a withdrawal order of the video directly to DISPLAY.

Furthermore, once the aforementioned order was received by DISPLAY on April 22, 2022, as evidenced by the acknowledgment of receipt in the file to which we refer, it did not respond to this Agency regarding compliance with the measure as required in said order.

-

The extremely limited dissemination of the video and the null benefits obtained

DISPLAY claims, providing supporting documentation in this regard, that the video only had 385 views, which translates into no benefit, which should be considered as a mitigating factor under Article 83.2.k) of the GDPR.

In this regard, it should be noted that, regarding this criterion, Article 76.2 of the LOPDGDD, in its letter c), includes among the criteria that must be weighed when determining the amount of the sanction “the benefits obtained as a result of the commission of the infringement” and not the absence of these benefits. The Judgment of the National Court, dated 05/05/2021, refers to the necessity for the “fact-based” premise contemplated in the regulation to apply a certain criterion of graduation, and, as stated, the absence of benefits is not among the circumstances regulated in the cited article.

This criterion of graduation is established in the LOPDGDD in accordance with the provisions of Article 83.2.k) of the GDPR, according to which administrative fines will be imposed taking into account any “aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement,” understanding that avoiding a loss has the same nature for these purposes as obtaining benefits.

If we add to this that the sanctions must be “effective, proportionate, and dissuasive in each individual case,” in accordance with the provisions of Article 83.1 of the GDPR, admitting the absence of benefits as a mitigating factor is not only contrary to the factual premises contemplated in Article 76.2.c), but also contrary to what is established in Article 83.2.k) of the GDPR and the principles indicated. Thus, valuing the absence of benefits as a mitigating factor would nullify the dissuasive effect of the fine, as it diminishes the effect of the circumstances that effectively impact its quantification, providing the responsible party with a benefit to which they are not entitled. It would be an artificial reduction of the sanction that could lead to the understanding that violating the regulation without obtaining benefits, financial or otherwise, would not produce a negative effect proportional to the seriousness of the infringing act. In any case, the administrative fines established in the GDPR, in accordance with what is provided in its Article 83.2, are imposed based on the circumstances of each individual case and, in

the present case, it is not considered that the absence of benefits is an adequate and determining graduation factor to assess the seriousness of the infringing conduct.

-

The especially intense and determined activity of “Público” in defense of the collective of abused women and its public recognition

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

40/102

DISPLAY intends to assert, under Article 83.2.k), that the activities it indicates were carried out from the newspaper in defense of women victims of gender-based violence should be considered as mitigating factors.

In this regard, it must be clarified that what is reproached here is not whether it participates actively or in any other way in the defense or public recognition of women victims of gender-based violence, but rather the non-compliance with the GDPR for having published excessive data for the intended purpose, thereby contravening Article 5.1.c) of the same, conduct which is classified as an infringement in Article 83.5 of the aforementioned Regulation.

Therefore, these last considerations alleged should not be taken into account.

THIRD.- Absence of culpability and unlawfulness of DISPLAY. Fictitious data

Finally, as supplementary allegations to those initially presented by DISPLAY, it indicates that, in accordance with the examples provided, when the Ministry of the Interior or the State Security Forces and Corps (hereinafter FCSE) show real data contained in the VioGen system, they cover (obfuscate) it, or when they do not, the data is fictitious, it must be concluded that the personal data appearing in the video published on its website is fictitious.

That is to say, in light of the examples provided, it must be presumed that, since the images come from official bodies (FCSE, Ministry, etc.), their actions have been diligent regarding the protection of personal data, so that if the data has not been concealed, it is a simulation.

Furthermore, DISPLAY mentions certain action protocols under which only a few users can access the VioGen system. Therefore, it concludes that, assuming DISPLAY trusts the good practices of the FCSE regarding the action protocols, it presumes and takes for granted that an agent of the FCSE would never publicly show real data of victims integrated into the VioGen system and that, if it does, it is contravening those protocols.

For all these reasons, DISPLAY concludes that, once it receives the video and automatically hosts it on its website (relying on Atlas), it can only assume, in light of the above, that the FCSE agent, first, acts in accordance with the established protocols and is in no case showing real data, and that, second, the Atlas Agency has verified that the above is true before providing the video.

In response to this, it should be noted, first of all, that DISPLAY again attempts to shift its responsibility for the infringement it has committed onto the actions of third parties.

In this regard, it has already been argued that the conduct reproached to DISPLAY is that of having published personal data on its website that has constituted a violation of the GDPR. As the data controller, it decided the purposes of such publication and, likewise, the means, being solely the defendant that decided that it would be.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

41/102

this publication, as indicated, was done in a completely automatic manner and based on the trust placed in its content provider, which were all decisions made solely and exclusively by DISPLAY, making it, therefore, the only responsible party for them.

Secondly, regarding the assertion that, given the examples provided, the data was fictitious or

simulated, it is stated that in those examples, all personal data that appears, whether obfuscated or simulated, is presented in a context of training or conferences.

Thus, the data shown that appears obscured refers to a conference offered by the Ministry of the Interior and published on the YouTube platform.

As for the other examples, in which data appears in the VioGen system, they are all within the training context. That is to say, they are courses or there is a news coverage (TVE) about a training course on how the VioGen system works for individuals belonging to the FCSE. Therefore, the very context and the images themselves indicate that they are fictitious data or, at the very least, allow for a high probability of deducing this.

However, in the case at hand, the context is completely different, as it involves a recording made in 2010 in which there is no context of training or broadcasting of a conference, but rather an informative context, aimed at gathering accurate and truthful information for the purpose of disseminating it, if applicable, later.

Thus, as stated in the Sixth Proven Fact, in order to clarify the origin of the sensitive information shown in the video containing personal data of victims of gender-based violence, a request for information was made to the responsible party MEDIASET, receiving a response on May 27, 2022 (Registration number (REGAGE22e00021099623) in which MEDIASET states verbatim:

“MEDIASET ESPAÑA limited itself to recording an interview in the premises of the Civil Guard of ***LOCALIDAD.1 in the context of which the screen of a computer was incidentally recorded where the Excel sheet was being displayed at that moment. MEDIASET ESPAÑA records the screen itself, not the content, to illustrate and contextualize the aforementioned interview...”

As noted in the aforementioned Sixth Proven Fact, on August 3, 2022 (registration number REGAGE22e00033828775), a new document was received from MEDIASET in response to another request from this Agency in which:

1. A video is attached that verifies the recorded interview referred to in the previous document. The following is confirmed:

- It is a scene where a Civil Guard officer appears in close-up, sitting in an office with the screen of a computer next to her and responding to questions posed by a second person (who does not appear in the video) who seems to be the interviewing journalist.
- In the video provided, the computer screen is shown blurred.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

42/102

- The following conversation takes place between the interviewer and the Civil Guard officer:

(...)

At the end of the interview, the computer screen is focused and a sign appears with the text

“***CARTEL.1”.

Therefore, neither what MEDIASET indicated nor the context of the video suggests that the personal data is not real.

Finally - and further to this and without it affecting in any way the infringement committed and its responsibility - regarding the assertion that DISPLAY acted with total diligence and, therefore, without any culpability, since, given that the FCSE always conceal sensitive data from the VioGen system or that, when they do not, it is because they are simulated data, which led it to trust that there was no reason that could have made it think that they were real data, it is stated that, firstly, DISPLAY only became aware of the origin of the images in question upon the initiation of the present sanctioning procedure, as it expressly acknowledges in its written allegations. Secondly, as it has recognized, it had implemented a system whereby, without prior visualization or knowledge, it automatically downloaded and published the contents offered by the Atlas agency.

Therefore, at no time prior to the publication of the video did it proceed to carry out the previous analysis nor could it presume any prior action by any agent of the FCSE that would lead it to trust in

the lawfulness of the images.

For all the above reasons, the allegations made are dismissed.

TWELFTH:

Allegations

to

the

Resolution Proposal

On December 27, 2023, a document was received in this Agency, in due time and form, from DISPLAY in which it presents allegations to the resolution proposal in which, in summary, it states that:

1. Violation of the principle of responsibility:

DISPLAY points out that the principles of criminal law apply to the sanctioning administrative process –as reiterated by Jurisprudence, see Supreme Court Judgments of January 25, 1983, March 16, 1988, or October 16, 1991. Among them, the principle of culpability stands out (as stated in the Supreme Court Judgments of October 1, 1982, and March 18, 1992, administrative responsibility, just like criminal responsibility, must be based on the performance of personal or culpable acts by the sanctioned party).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

43/102

However, DISPLAY indicates that the proposed sanction imputes to ‘Público’ a negligent action, as established in its Legal Basis III, regarding the allegations made by this party concerning the initiation agreement, which states:

“It is evident that there was a lack of due diligence in the fact of not having established an adequate control to prevent the publication of excessive personal data and, furthermore, by having established an automatic system that, as indicated, did not allow it to carry out prior control before any publication. (...)

Furthermore, the National Court in matters of personal data protection has declared that “simple negligence or failure to comply with the duties imposed by law on those responsible for files or data processing is sufficient to require them to exercise due diligence...” (SAN June 29, 2001).

This lack of diligence on the part of DISPLAY, as the data processor, in determining an inadequate means that, as indicated, does not allow it to carry out adequate control of the personal data processing it performs, as well as the fact of having published a video with personal data that should not be visible, as they are excessive for the intended purpose, constitutes the element of culpability.”

DISPLAY points out that the newspaper acted with the minimum diligence required of a digital information medium, given that:

- It limited itself to publishing a video news item provided by an information content provider, such as the news agency ATLAS, which belongs to one of the most important Spanish (and European) communication groups, namely the MEDIASET Group.
- It acted under the principle of trust towards its provider, as all media do with any prestigious content agency, as is the case with ATLAS.

As a client, ‘Público’ had a contract signed with this provider under which the agency guaranteed that it was responsible for complying with the current legislation and regulations regarding all the content it supplied to its clients.

DISPLAY understands that good evidence that ‘Público’ acted with average diligence and following the usual practices of the sector (it is not feasible to review in full, throughout its duration, each and every one of the videos that news agencies provide to the medium, so it is reasonable that those from a prestigious agency like ATLAS were automatically uploaded to ‘Público’s’ website) is that there were many other information media – in fact, a total of 16 – that published the same ATLAS video, without prior review, as stated in MEDIASET’s allegations (p. 28 of the administrative file).

DISPLAY indicates that, to also determine the proportionality of the proposed sanction, it must know the sanctions that the AEPD has proposed for each of these digital information media that, like 'Público', uploaded the same video news item to their respective websites.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
44/102

Therefore, DISPLAY states that it did not carry out specific processing of personal data, but acted relying on a reputable agency that provided the images, which, according to the contract, were guaranteed not to infringe any third-party rights or applicable regulations.

DISPLAY refers again to the contract signed with ATLAS, highlighting its recital 3 and the last paragraph of its clause 5, which is the result of this security and full trust in the supplier, leading to the automatic publication of these videos from the ATLAS Agency.

DISPLAY indicates, in addition to the above, that the proposed resolution ignores that in this case there is an evident concurrence of prior negligent actions by third parties:

Thus, according to the signed contract, the ATLAS agency makes its content available to all its clients (among which is the newspaper 'Público') for the purpose of being published and disseminated by the media, and therefore, it is not merely an intermediary that facilitates third-party files, but rather that most of the videos it delivers are complete productions made by ATLAS or also by the news agency Reuters, as established in the first clause of the contract itself:

That is to say, DISPLAY points out that the agency does not provide raw images (sequences of images and sounds of resources) or raw totals (sequences of statements from individuals), for the media to edit their own videos with their own criteria for selecting images and sounds, but rather ATLAS delivers 'final videos', intended for direct publication and dissemination, which would not need to be reviewed or modified by the newspaper before publication, since the Agency delivers the already produced and fully finished video, edited, narrated, and labeled, with a script determined by the ATLAS agency itself (or Reuters), and with the information to be immediately published.

Therefore, DISPLAY states that the ultimate goal of the supplier with these videos is not simply to provide them to its clients, but that the videos are intended to be published and disseminated directly by the media, without any modification being necessary on the part of the client, as clearly deduced from clause 4 of the contract, relating to the "Characteristics" of the videos.

DISPLAY concludes that it cannot be understood as negligent that 'Público' automatically included the videos from ATLAS in the video section of its website, trusting in the content provided by such a prestigious news agency, as did 15 other digital information media similar to 'Público'.

DISPLAY points out that it later turned out that such content was not legal because, prior to the publication of the video on the 'Público' website, the following negligent acts occurred, which were absolutely decisive for the publication of the personal data for which a sanction is proposed against 'Público', although completely unrelated to this media:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
45/102

A) Firstly, as stated by MEDIASET (pages 36 and 42 of the file), the recording of the sequence of images from the computer screen of an agent from the Gender Violence Unit of the Civil Guard of ***LOCALITY was made during an interview conducted on November 25, 2010, twelve years prior to the video news that was provided to the media, asserting that "the screen of a computer was additionally recorded where at that moment the Excel sheet was displayed. MEDIASET ESPAÑA records the screen itself, not the content, to illustrate and contextualize the aforementioned interview" (page 36 of the file).

Therefore, DISPLAY indicates that there is evident negligence on the part of the Ministry of the Interior (specifically of the interviewed agent), since during that interview and while being aware that she was

being recorded by the television camera (given the close-up shot of the images), the Civil Guard Agent had open on her screen the Excel file where the data from the “VioGén” database was collected and was scrolling through it, making it evident that the personal data contained in that file would be captured by the television camera and, therefore, recorded.

DISPLAY points out that this constitutes the first and most significant negligence that ultimately leads to the publication of the data, as without this initial action, no personal data would have been revealed, which were – let us not forget – under the responsibility and custody of the Ministry of the Interior, with the Secretary of State for Security of the aforementioned Ministry being the creator and responsible for the Comprehensive Monitoring System in cases of Gender Violence (the “VioGén” System).

Thus, had the video news been viewed prior to its publication, it would have been normal to think that the data presented were not real but fictitious, given that the “VioGén” system uses a simulator with fictitious databases for training purposes, which do not correspond to data of real persons, considering:

- The complete lack of diligence with which the Civil Guard agent acted, allowing the content displayed on her computer screen to be recorded.
- As was made evident in our written allegations (pages 347 to 478 of the file, to which we refer) dated November 13, 2023, it is common for the State Security Forces and Corps (FFCCSE) to present data from the “VioGén” System to third parties (sometimes to media outlets), often illustrating their analysis, evaluation, or information about the system with images from the “VioGén” database; and when they show real data from the “VioGén” System, they cover it so that the cameras cannot record it. This can be verified, for example, in the video from Radio Televisión Española from 2017, when the system was presented, which is available at the following URL:

<https://www.rtve.es/play/videos/telediario/td1-violencia-genero010317/3930435/>

- It is also common for personnel accessing this database from other official bodies, such as the Ministry of Justice, to act in this manner, as was the case during the course of the Legal Studies Center (CEJ) in the “Day of 46/102

presentation of the urgent forensic risk assessment protocol for gender-based violence”, in which attendees were instructed on the operation of “VioGén”, as seen in the video available on the YouTube platform at the following URL (starting from min. 2:13:50, the screenshot of which is copied below)

https://www.youtube.com/watch?v=y9KeDn5kgI8&ab_channel=CEJMinisteriodeJusticia

- And on other occasions, the FFCCSE do not hide the fields but simply show a simulation with fictitious data, without providing real information that appears in the “VioGén” database. In this regard, see the information issued by Radio Televisión Española about the “VioGén” system available at the following URL (specifically min. 0:43, the screenshot of which is also shown below)

<https://www.rtve.es/play/videos/rtve-igualdad/viogen-coordinaractuaciones-capacidades-fuerzas-seguridad/6835176/>

DISPLAY understands that for the media outlet receiving those images, it is impossible to know whether the images of the “VioGén” system being shown by the FFCCSE contain real data from the database or if they are fictitious data. In principle, it should be presumed that, coming from official bodies of the Administration, their action has been diligent regarding the protection of personal data, so if the data has not been hidden, it is a simulation.

DISPLAY points out that it was completely unaware of both the recording and the interview that was conducted (in fact, it became aware of that context when it was provided with the file), so for ‘Público’ it was not possible to know if the data was real or fictitious, and it should be logically presumed that they must be fictitious since they were not obscured, for the reasons already mentioned.

DISPLAY alleges, regarding the negligence of the Public Administration itself in the handling of the data that led to the registration of the data that was later published, that this constitutes a violation of the principle of responsibility and the principle of legitimate trust in the actions of the Administration, in accordance with the following jurisprudence:

- The Judgment of Chamber 3 of the Supreme Court of 25/11/1981 which deals with the concurrence of fault of the administration: “the Jurisprudence - judgments of October 6, 1978, October 1, April 17, and November 22, 1979 among many others - has declared that in matters of culpability, whatever the

area of law being evaluated, it cannot be resolved by mere presumptions or indications, but the will of the author must be taken into account and that their action, the subject of the sanctioning file, must be intended by them, knowing the significance and scope of it, which is a consequence of an analogical application of the precepts that follow the criminal and sanctioning order, although adequately nuanced." "since the sanctioned entity incurs in an interpretation made in good faith and born from the error produced by the Administration, we find ourselves before a lack of voluntariness or subjective intent in the commission of the sanctionable act, that

47/102

prevents any liability claim from arising and, consequently, it is appropriate to dismiss the present appeal and confirm the appealed judgment."

The doctrine is explained in the judgment of October 5, 1990: "As this Chamber has declared in repeated judgments, of which its latest ones from February 1, May 3, and June 8, 1990, are a sample, in the conflict that arises between the 'strict legality' of administrative action and the 'legal certainty' derived from it, the latter prevails over the former, when the Administration, through unequivocal external acts, prompts the administered party to carry out an activity that incurs necessary economic expenses (...) since the aforementioned doctrine of this Chamber embraces a principle that, although not foreign to our Legal System under the denomination of 'bona fides', has been adopted by the jurisprudence of the Court of Justice of the European Community under the heading of 'principle of protection of the legitimate trust of the citizen' in the actions of the Administration, which in turn benefits from the principle of 'presumption of legality of administrative acts', although that principle does not apply to cases of any type of subjective psychological conviction in the particular, but rather when such 'trust' is based on signs or external facts produced by the Administration that are sufficiently conclusive to induce the individual to trust in the 'appearance of legality' that the administrative action through specific acts reveals, moving the will of the administered party to carry out certain acts, economic investments, material and personal means, which later do not align with the true will of the Administration and its consequences, revealed and produced after the material realization of those acts by the individuals; especially when such 'formal appearance of legality' that induced rational confusion in the interested party resulted in practical damages and losses for them that, legally, they should not have to bear."

B) Secondly, DISPLAY points out that the production team of the ATLAS agency of MEDIASET ESPAÑA, which was responsible for selecting the images, editing them, labeling them, and narrating them with the script from the agency itself, is ultimately responsible for including, during 4 seconds of the video news, the images that—due to prior negligence by the Civil Guard agent—contained personal data held in the "VioGén" database.

DISPLAY indicates that there has been subsequent fraudulent action (or at least serious negligence) by MEDIASET ESPAÑA in introducing, twelve years after recording them, the images into the video news provided to the media, given that:

1.- In the video contained in the administrative file submitted by MEDIASET as Document No. 1 to its writing of August 3, 2022 (video file in MP4 format named "Documento_Num_1"), on pages 42 to 44 of the file, a recording of a computer monitor of the Civil Guard is observed in which the image is blurred and it is not possible to read a single name, and no 'scroll' is performed on the screen.

From the above, it can be unequivocally inferred that this 2010 video does not correspond

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

48/102

with the images included in 2022 in the video news that led to the sanctioning file.

2.- The images of the video news (file in MP4 format titled "Video" in the file) consist of a recording of a screen where some of the names can indeed be read, and a "scroll" is performed, allowing new names to appear while others disappear.

DISPLAY points out that the above demonstrates that by including images captured twelve years later from the Civil Guard barracks in ***LOCALITY.1 during the interview conducted in 2010 with the agent

specialized in gender violence, MEDIASET ESPAÑA removed the blurring of the images and used others where the aforementioned “scroll” was indeed performed, thus increasing the likelihood that personal data that was later disclosed could be seen more clearly and in greater quantity. And it is inexplicable that, in light of the above, MEDIASET decided to include images with clear and visible names and with a “scroll” instead of the fixed and blurred image that it had, as evidenced by the video it itself provided to the file (“Document_Num_1”).

DISPLAY warns that without this second negligence, added to the first, no personal data would have been disclosed on the ‘Público’ website, since it is not ‘Público’ that sought the information, nor who neglected to ensure that the data was not accessible to the television camera, nor who recorded the image, much less who inserted the image making it clear in the video news that, we insist, was sold to it as a finished product completely ready for publication.

2. Violation of the principle of proportionality:

DISPLAY argues that the proposed sanction of 187,000 euros is disproportionate to the alleged infringement committed, given the circumstances of the case, as well as the activity of ‘Público’, thus violating Article 83.1 of the GDPR, which obliges the AEPD to ensure that the imposition of fines for infringements of paragraphs 4, 5, and 6 of the same article “are in each individual case effective, proportionate, and dissuasive.”

Thus, DISPLAY understands that the Proposal for Resolution does not take into account – except to reject them – the arguments put forward by the sanctioned party as grounds for exemption from liability which, if not as extenuating circumstances, at least should be considered to reduce the amount of the sanction, as mitigating factors, since they are duly accredited in the file.

A) Disproportion of the sanction concerning the factual circumstances that concur:

DISPLAY maintains that the following factual circumstances present in the case have not been considered and should serve to mitigate its responsibility and translate into the moderation of the sanction given that:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
49/102

1.- There is a clear concurrence of faults in this case that cannot be overlooked: ‘Público’ would have acted with negligence caused by prior acts of third parties constituting serious negligence (completely unrelated to the newspaper) that were necessary and decisive for the personal data to be disclosed on the ‘Público’ website.

2.- ‘Público’ acted with the average diligence of any digital information medium (like the other 15 that published the same information), in the normal course of its activity – consisting of the legitimate fundamental right to publish truthful information of general interest – and limited itself to relying on the reputable news video agency ATLAS of MEDIASET ESPAÑA to acquire its finished videos prepared for immediate publication. For this reason, it had an automatic publication system for these particular videos, based on the principle of trust in the provider as a reliable source of information, as has been sufficiently proven in the file.

3.- Following the act that is the subject of the sanctioning file, ‘Público’ acted diligently by proceeding to the immediate removal of the information and even modifying the automatic video publication system to prevent any other illegal information from ATLAS from being published. DISPLAY concludes that total diligence was exercised in the removal of the video at the precise moment when the ATLAS agency itself communicated to the newspaper that it contained illegal images, noting that the video had already been removed a week before receiving the request from the AEPD for its removal on the following April 29, 2022 (pages 18 and 23 of the file), which evidences the diligence and promptness of DISPLAY CONNECTORS, S.L. in removing the images from ATLAS as soon as it became aware of their illegality.

In this regard, DISPLAY explains that it did not respond to the AEPD because the precautionary measure whose compliance was requested had already been fulfilled prior to receiving the request from the State Agency. DISPLAY points out that starting from May 11, 2023, in light of this and other

incidents related to the videos provided by ATLAS (one of which led to another sanction imposed by the AEPD on 'Público' in the file PS/00194/2022 also for the publication of a video news item), the automatic publication system for video news from the ATLAS agency was modified, and a manual system was established to avoid the publication of videos with potentially illegal and problematic content. Since 'Público' has already taken measures on its own initiative to prevent the same infringement from occurring in the future with any other video from ATLAS, the deterrent purpose of the administrative fine loses all reason, which must be taken into consideration when determining its amount.

However, DISPLAY notes that this measure taken by the data controller to modulate the severity of the proposed sanction is not considered in the Proposal for Resolution, contrary to the Guidelines on the application and determination of administrative fines for the purposes of the GDPR adopted on October 3, 2017.

50/102

forward "Guidelines WP 253") by the Working Party on Data Protection of Article 29, which states when interpreting Article 83.2.c) of the GDPR regarding "any measures taken by the data controller or processor to mitigate the damages and losses suffered by the data subjects":

"This provision acts as an assessment of the degree of responsibility of the data controller once the infringement has occurred. It can encompass cases where the controller or processor has clearly not exhibited reckless/negligent behavior, but rather where they have done everything possible to correct their actions once the infringement was known."

The instructor appreciates the concurrence of up to five aggravating circumstances that she considers for quantifying the sanction and qualifying it as serious, which are referred to as "graduation circumstances."

A.1.- The first aggravating circumstance presented in the agreement is the consideration of the affected data subjects.

DISPLAY points out that the first observation is that, in contrast to the Initiation Agreement of the sanctioning file, the number of affected individuals is reduced from 56 to 51 (a 10% decrease), which, however, is not taken into account to modulate the severity of the infringement, nor the amount of the proposed sanction.

Moreover, DISPLAY understands that the principles of proportionality and typicity are violated because the assessment of the sanction is based on an uncertain fact, namely that the data of 51 women can be clearly identified in the video published by 'Público', given that, even when pausing the image at the four seconds in which the images of the Civil Guard agent's screen are shown, the reality is that, according to the diligence instructed in the file on pages 274 to 277 of the case, both inclusive, it is only possible to identify, with significant effort, the following personal data (name and surname, in some cases very difficult to read) of FORTY WOMEN (not 51 as stated in the Proposal for Resolution, nor much less 56 as mentioned in the initiating agreement of the file).

Additionally, DISPLAY indicates that this figure must be related to the damages and losses that the holders of the damages have suffered, to determine the severity of the infringement. This is indicated by the Guidelines WP 253 when stating that "the nature of the infringement, but also 'the scope or purpose of the processing operation in question, as well as the number of affected data subjects and the level of damages and losses they have suffered' will be indicative of the severity of the infringement," and also establishes that:

"The following factors must be evaluated in a combined manner, that is, the number of data subjects along with the possible impact on them.

The number of data subjects must be evaluated to determine whether it is an isolated fact or symptomatic of a more systematic violation or a lack of adequate routines. This does not mean that isolated facts should not be sanctioned, as an isolated fact could affect many data subjects.

Depending on the circumstances of the case, this will relate to, for example, the total number of applicants in the database in question, the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

number of users of a service, the number of clients, or the population of the country, as applicable.

(...)

If damages have been suffered or are likely to be suffered due to the infringement of the Regulation, the supervisory authority must take this into account when selecting the corrective measure, even if the supervisory authority lacks the competence to grant specific compensation for the damages suffered."

DISPLAY points out that it has not been considered in the proposed resolution that, in the present case:

- The number of affected individuals reveals that this is an isolated incident that is also preceded and motivated by previous negligence unrelated to 'Público', and not due to a lack of adequate routines. DISPLAY insists that the hiring of a prestigious news agency to provide audiovisual content to the website of the digital newspaper under investigation, relying on the legality of such content, cannot be understood as a lack of routines or adequate controls on the part of 'Público'.
- Furthermore, the number of affected individuals—40 in total, as evidenced in this document—is a relatively low number in relation to the total number of cases recorded in the "VioGén" database as of April 2022, which amounted to 686,420 cases, according to the report with the official statistics published by the Ministry of the Interior, which is provided as Document No. 1 of this writing. That is to say, the published data represents 0.000058273% of the total data held in the "VioGén" database, which has also not been taken into account when assessing the severity of the infringement and the amount of the sanction.
- It has also not been taken into account that, although a certain risk was created with the publication of the data, the reality is that there is no evidence of real and certain damages suffered in any of the 40 cases, despite the fact that the data was disseminated by various media—not only by 'Público'—which has also not been considered in the proposed resolution.
- Additionally, regarding the risk that the affected individuals could be effectively recognized, a "certain risk" is mentioned, but the circumstances we have highlighted in light of the video produced by ATLAS are not taken into account, such as the very low quality (due to its lack of clarity) of the images and the limited duration (barely 4 seconds) which makes it completely impossible to recognize the full names of any of the affected individuals if the video is viewed at normal speed. That is to say, an intentional act is completely necessary to access the personal data in question, such as pausing the image, and even then, its poor quality and low definition make it very difficult (and in many cases impossible) to read the names and surnames of the affected individuals.

Thus, DISPLAY concludes that, considering that the number of possible affected individuals is notably lower than that considered in the Proposed Resolution (40 individuals versus 51), and that there is no specific case in which a single detriment or damage has been derived for any of the 40 affected individuals, this should be taken into account when quantifying the sanction, in accordance with Article 83.2.a) of the GDPR.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

taking into consideration the offer made by DISPLAY CONNECTORS, S.L. to, in the event that a specific and real harm has occurred or occurs in the future to any of the affected parties, put all necessary means to mitigate and repair it, which must also be considered for the purposes of penalty assessment, in accordance with Article 83.2.c) and f) of the GDPR.

A.2.- The second aggravating circumstance is the consideration of the existence of negligence.

In this regard, DISPLAY points out that the negligence attributed to this party is for not establishing a procedure to ensure the protection of personal data "especially considering that it is an entity whose activity involves continuous processing of users' personal data," and therefore understands once again that the principles of legality and proportionality are being infringed, because it is overlooked that:

- DISPLAY is dedicated to the publication of the digital general information newspaper 'Público', in the exercise of a Fundamental Right such as publishing truthful information of general interest. That is the essential activity of 'Público': it is not the processing of users' data, but the publication of information and current news, which do not have to contain personal data and, if they do, they are not data of the newspaper's users, but of individuals related to newsworthy events that are considered of interest and therefore are published.

- On the other hand, the newspaper 'Público' also offers reader registration, as well as subscription to paid content, which then does require the processing of users' personal data, data for which DISPLAY is responsible and has never had any incidents related to them, let alone any sanctioning file, as the AEPD is perfectly aware.

- Thus, in the development of its activity of publishing truthful information of general interest, the newspaper occasionally faces exceptional situations in which some personal data of public figures or even of other individuals related to the information is disclosed, as may be the case that led to the initiation of this file. But they are not users of the newspaper, nor is this common in the activity of 'Público': it is uncertain that the activity of 'Público' involves continuous processing of users' personal data. And even less common is the publication of sensitive data about individuals, and therefore considering this circumstance as an aggravating factor to establish that the sanctioned party has not established any specific procedure to guarantee the protection of personal data "in such sensitive circumstances" is not legally justified.

A.3.- The third aggravating factor consists of considering the existence of two previous sanctioning files processed against DISPLAY CONNECTORS, S.L. whose existence is certain.

However, DISPLAY points out that it should be mentioned that it is erroneous to consider that this is indicative of the attitude of the respondent, revealing persistent problems in it as a data controller, since the AEPD overlooks the following:

- The sanction from file PS/00194/2022 arises from another video from the same agency ATLAS of MEDIASET ESPAÑA, to which the considerations already made regarding the non-negligent action of 'Público' are applicable.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

53/102

(based on the trust relationship with a professional and reputable provider in the provision of a service that should not involve the processing of personal data)

- This infringement also occurred as a result of prior negligence by third parties that caused the unwanted dissemination of data on the 'Público' website in a completely involuntary manner; and in both cases, the infringement results from actions consisting of the publication of information from reliable sources (one of which is the ATLAS agency itself, as previously mentioned), in which 'Público' did not have a proactive role regarding the content that violated data protection regulations.

- In both files, it is evidenced that the source of the information is in no case 'Público' (but rather third-party sources), as well as the indisputable diligence of 'Público' in removing the personal data contained in the information, as well as the assumption of responsibility and prompt payment of the proposed sanctions, which is not valued – as it should have been – as evidence of DISPLAY CONNECTORS, S.L.'s willingness to always collaborate with the AEPD, assuming the unintentional errors (even if they stem from negligent actions of third parties ultimately) by paying the sanctions without opposing or appealing.

Furthermore, DISPLAY points out that, when analyzing this aggravating factor of previous sanctions, the AEPD is neither fair nor proportionate because it completely ignores DISPLAY's precedents in the defense of women victims of gender-based violence, in which it has distinguished itself and championed against other media outlets, as extensively detailed in our written submissions to the Initiation Agreement to which we refer.

Thus, it is in accordance with the principle of proportionality that, when it comes to sanctioning an infringement of personal data regulations that particularly affects women victims of gender-based

violence, the supervisory authority should consider not only the high level of intent of the infringer but also their prominent role in the fight against this scourge and in defense precisely of the group that has been affected by the infringement (due, in the first instance, to negligence by third parties, one of which is a Public Administration such as the Ministry of the Interior).

A.4.- It is also considered an aggravating factor, taking into account the categories of personal data affected.

DISPLAY argues that the principles of typicity and proportionality are also violated here, because 51 people are being considered as affected (when there are only 40, as we have evidenced) and mere conjectures are being considered as aggravating factors, such as the possibility that the affected individuals may be victims of crimes against sexual freedom or integrity (they may also not be).

Thus, DISPLAY points out that it must first be asked whether the infringement affects the processing of special categories of data established in Articles 9 or 10 of the Regulation, and it must be concluded that the names and surnames of 40 women who are in a database of cases related to gender-based violence do not constitute special categories of personal data as contemplated in the aforementioned articles of the GDPR, namely:

- They are not personal data that reveal ethnic or racial origin, political opinions,

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

54/102

religious or philosophical beliefs, or the union affiliation of individuals, nor does it involve genetic data, biometric data aimed at uniquely identifying a natural person, health-related data, or data related to the sexual life or sexual orientation of any person (art. 9 GDPR).

- Nor are they personal data related to convictions and criminal offenses or related security measures based on Article 6, paragraph 1 of the GDPR (art. 10 GDPR), which aims to protect such data concerning individuals charged.

- Furthermore, it is also considered that the published data is of very poor quality both visually (it is very difficult, in some cases impossible, to decipher them) and temporally, as these are data that were captured in 2010 and are included by MEDIASET ESPAÑA in information from March 2022, twelve years later.

- The first aggravating circumstance already noted in the Proposal for Resolution is being duplicated, which we recall stated that “the nature of the infringement is considered very serious since it entails a loss of disposition and control over the personal data (names and surnames) of individuals who have been victims of gender-based violence and that by disseminating such personal data there is a real risk that such individuals may be recognized by third parties, with the serious damages and harms that this would cause them. Furthermore, the number of affected individuals is relevant, amounting to 51.”

In other words, DISPLAY warns that it is reiterated that these are individuals who are victims of gender-based violence (as a sensitive data element that aggravates the facts), that there is a certain risk of them being recognized (as an aggravating element as well), and that the number of affected individuals is high (51, although we have already demonstrated that this is incorrect, as at most 40 women whose names and surnames are legible could have been affected). By application of the principle of non bis in idem, which is characteristic of criminal law but fully applicable to the field of administrative sanctioning law, it is unacceptable to appreciate the same aggravating circumstances duplicatively, resulting in an increase in the amount of the sanction to totally disproportionate figures, in relation to the economic activity carried out by the sanctioned entity.

A.5.- Finally, the connection of the offender with the processing of personal data is also considered an aggravating factor.

In this regard, DISPLAY reiterates that it does not engage in an activity related to the processing of personal data, but rather the activity typical of a digital information medium consisting of publishing information (written, photographs, or audiovisual pieces) that, on some occasions and not always, contains personal data which are always related to public figures or those of informational interest, thus justifying their publication by the exercise of the fundamental right to publish truthful information,

protected under art. 20 of the Constitution. And, only in very exceptional cases –as in the analyzed case due to two previous negligence incidents by third parties unrelated to ‘Público’– can any personal data that should not be published be contained in the information.

On the other hand, DISPLAY points out that it is true that the activity of ‘Público’ does have a connection with the processing of personal data of the users of its website and its subscribers to paid services. However, it has never had any incidence.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
55/102

related to these treatments, which are subject to strict security measures to ensure that the data is not disclosed or improperly processed, nor lost, destroyed, or accidentally damaged, in strict compliance with the GDPR and the LOPDGDD.

Therefore, DISPLAY understands that it is not appropriate to appreciate the aforementioned aggravating circumstance, and doing so violates the principles of legality and proportionality.

B) Disproportion of the sanction concerning the economic circumstances involved:

DISPLAY indicates that the principle of proportionality has also been violated in the proposed sanction by not taking into minimal consideration the following circumstances:

B.1.- The very limited dissemination of the video and the zero financial returns obtained by DISPLAY CONNECTORS, S.L.

In relation to this issue, DISPLAY refers to what has already been stated in its written allegations to the Initiation Agreement (p. 131 and following of the file, and in particular, from p. 148) regarding the practically nonexistent dissemination that the ATLAS video had through the 'Público' website.

That is to say, the 385 views of the video that is the subject of the sanctioning file are, in comparative terms, certainly insignificant, and unequivocally demonstrate the zero economic and commercial return that DISPLAY obtained from the publication of the ATLAS video that contained the personal data related to the sanctioning file, and that it did not obtain any financial benefit derived from the infringement, which must also be considered, pursuant to art. 83.2.k) GDPR.

B.2.- Disproportionate sanction in relation to the results of the activity of DISPLAY CONNECTORS, S.L.

DISPLAY indicates that, although the Proposal for Resolution does consider this element for the graduation of the sanction (which in the Initiation Agreement was set at the exorbitant amount of 300,000 euros), the proposed figure of 187,000 euros remains completely disproportionate in relation to the total turnover of DISPLAY CONNECTORS, S.L.

As is known, art. 85.3 GDPR establishes a criterion for quantifying economic sanctions for very serious infringements of up to a maximum of the extremely high amount of 20,000,000 euros or "in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year," opting for the higher amount. That is to say, the regulation establishes a maximum for sanctions for very serious infringements of 20 million euros or, if higher, 4% of the turnover of the previous year.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

56/102

Thus, DISPLAY points out, the turnover during the 2021 financial year amounted to ***AMOUNT.1 euros, as evidenced by the Annual Accounts filed with the Commercial Registry, which were attached as Document No. 5 to our written allegations to the Initiation Agreement (document available on pages 195 to 229 of the file).

Without ignoring that the maximum limit is 20 million euros, DISPLAY understands that it cannot be overlooked that one of the maximum limits for sanctioning DISPLAY that must be considered

according to the aforementioned art. 85.3 GDPR is the amount of ***AMOUNT.2 euros, the amount resulting from applying 4% to the turnover of the sanctioned company during the 2021 financial year, prior to the events that are intended to be sanctioned.

In fact, the proposed sanction of 187,000 euros represents no less than (...) % of the total turnover for the 2021 financial year; (...) it turns out that the imposition of a sanction of 187,000 euros could easily lead DISPLAY CONNECTORS, S.L. to a situation of insolvency that could lead to the cessation of its activity and the loss of more than 55 jobs that it currently employs.

Moreover, this economic situation of DISPLAY CONNECTORS, S.L. does not respond to a specific or exceptional circumstance, but rather the last six accounting years whose accounts are approved and filed with the Commercial Registry (from 2017 to 2022, both inclusive) show similar figures:

ANNUAL ACCOUNTS DISPLAY CONNECTORS, S.L.

Financial Year Net Turnover Result

(...)

The annual accounts of DISPLAY for the years 2022, 2020, and 2018 (which include the data for 2021, 2019, and 2017, respectively) are attached as Documents No. 2, 3, and 4.

Thus, the last closed financial year (2022) is the only one that shows timid profits (...), so a sanction of 187,000 euros represents almost (...) the profit obtained (for the first time in the company since its incorporation) of ***AMOUNT.4 euros.

In DISPLAY's view, all the above considered together is sufficiently illustrative of the enormous disproportion that the proposed sanction holds both with the economic reality of DISPLAY and with the other sanctions that have been imposed on the newspaper 'Público' (always for information provided by third parties unrelated to the newspaper) which amounted to 50,000 and 30,000 euros (p. 240 and 241 of the file), that is, a total of 80,000 euros. In other words, the proposed sanction represents 233.75% of the sum of the other two sanctions imposed on 'Público' in the past, which also illustrates its disproportion.

C) Disproportion in relation to other media that committed the same act:

DISPLAY points out that, when determining the amount of the sanction proposed for 'Público', the instructor omits any reference to the sanctioning files.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

57/102

which we assume must have been initiated both against MEDIASET ESPAÑA (ATLAS Agency) and the other 15 digital media outlets that, in addition to Público, carried out exactly the same act as DISPLAY CONNECTOR, S.L., which was to publish the video information provided by ATLAS on their respective websites.

These media outlets are listed in the "Agreement for the Adoption of Provisional Measures" issued in case EXP202204792, which is also included in this file (p. 15):

DISPLAY understands that information regarding the proposed sanctions in each of the aforementioned sanctioning files must be brought into this case in order to determine the proportion that they bear to the one proposed for DISPLAY in relation to the same facts, which is requested through a supplementary request, it should be noted that this diligence could not be requested earlier given that until this party received the complete transfer of the file, it could not know which other digital media had suffered the same problem as 'Público' with the video provided by the AGENCIA ATLAS of MEDIASET ESPAÑA.

DISPLAY concludes that all the above circumstances should serve to mitigate the potential unlawfulness of 'Público's' conduct and to calibrate the sanction that may be imposed in the event that an infringement categorized as very serious is deemed to have been committed, reducing the hypothetical sanction to an amount that should be far removed from the disproportionate sum of 187,000 euros of the Proposal for Resolution, and that should be set taking into due account.

For all these reasons, DISPLAY requests that the present sanctioning file be archived without the imposition of any sanction; or, subsidiarily, that any possible infringement attributed be graded in

accordance with the allegations set forth in this document, reducing the potential sanction to be imposed to a non-arbitrary amount that is proportionate to the circumstances of the case and that corresponds with other sanctions imposed by the AEPD on third parties for the publication of the same personal data or for similar facts.

Finally, DISPLAY, in accordance with Articles 76, 82, 87, 89.2, and related provisions of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, requests that the practice of new documentary evidence be agreed upon as a complementary action, given that:

1.- In contravention of the provisions of Article 82.1 of the LPACAP, in the resolution of October 6, 2023, which agreed to open a period of evidence for 10 days, the complete administrative file was not disclosed, but we were informed: "On another note, regarding the request for access to the file made by DISPLAY in its written allegations to the Agreement to Initiate the sanctioning procedure, it is indicated that after the evidence period has concluded, a copy of the file will be sent to you, including the new documentation generated as a result of the evidence practiced."

2.- Thus, this party could not propose the evidence that is fundamental to its right to assess the lack of arbitrariness and the proportionality of the sanction intended to be imposed on DISPLAY CONNECTORS, S.L., which is the most documentary evidence.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

58/102

consisting of incorporating into this file the proposed resolutions or, if applicable, the sanctioning resolutions imposed by the AEPD in the sanctioning files that have been initiated due to the publication of the same personal data that gives rise to the proposed sanction against DISPLAY in the following digital media listed in the "Agreement for the Adoption of Provisional Measures" issued in EXP202204792 (as noted on page 15 of this file):

(...)

For the reasons stated, DISPLAY requests that the aforementioned evidentiary means be considered proposed and admitted, as this party has not had the opportunity to propose it until now because the AEPD has not provided the complete sanctioning file to date, agreeing to open an exceptional evidentiary period of sufficient duration in which to carry out, with whatever else is deemed legally appropriate.

3. Violation of the principle of typicity.

Finally, it should be noted that DISPLAY has alleged a violation of the principle of typicity arguing, on the one hand, that it is not true that the personal data of 51 women victims of gender-based violence is displayed, but rather that of 40, as well as claiming that it does not agree with the circumstances that have been taken into account to aggravate the sanction.

In this regard, it should be indicated that this is not related to the principle of typicity in sanctioning matters, as the events that occurred constitute a violation of Article 5.1.c) of the GDPR, the infringement of which is typified in Article 83.5 of the GDPR, regardless of the number of victims of gender-based violence affected.

Therefore, the arguments put forth by DISPLAY to allege the supposed violation of the principle of typicity actually refer, on the one hand, to the discussion about the proven fact that the data of 51 women victims of gender-based violence have been affected, an argument that has been adequately addressed in the previous points of this Legal Basis and, on the other hand, to DISPLAY's belief that the circumstances considered as aggravating factors for the sanction are not applicable, allegations that have also been duly responded to and argued in this Legal Basis.

For all the above reasons, the allegations made are dismissed.

From the actions carried out in this procedure and from the documentation in the file, the following has been established:

PROVEN FACTS

FIRST:

On April 21, 2022, the complainant filed a complaint with the AEPD. The complaint reports the

publication in various media of a news item illustrated with a video in which images appear (from seconds 21 to 24) of a computer screen displaying an Excel sheet with the personal data of women registered in the VioGén system as victims of gender-based violence and various classifications based on their specific circumstances.

The complainant provided links to the news published on the websites of the media in question, including the following link:

- ***URL.1

SECOND:

The General Subdirectorate for Data Inspection, in the exercise of its investigative activities, verified that the respondent published the video in which personal data of women registered in the VioGén system were visible at the following link:

- ***URL.1

The data displayed are: first and last names and the different classifications they may have according to their specific circumstances ("pending o.p"; "active without o.p"; "active not locatable"; "new ceased")

THIRD:

In the context of the preliminary investigative actions, on April 22, 2022, an urgent precautionary measure for the removal of content was directed to DISPLAY, requiring the urgent removal of the video from both the aforementioned web address and any other address related to the entity, as well as communication to this Agency of compliance with this measure.

No response was received from the respondent to the urgent removal order of the content and, therefore, it did not respond to the request in point 3 of the aforementioned order, which indicated the following:

"3. - Require DISPLAY CONNECTORS, S.L to inform this Spanish Agency for Data Protection about the execution of the measure."

- On April 22, 2022, an urgent precautionary measure for the removal of content was also directed to MEDIASET ESPAÑA COMUNICACIÓN S.A (with acknowledgment of receipt dated April 25, 2022).

In the notification to MEDIASET ESPAÑA COMUNICACIÓN S.A, the following was required:

- The urgent removal of the published video.
- Communication to all media to which the video was provided of the immediate execution of the suppression and blocking of the data.
- Subsequent communication to this Agency of each and every one of the different media to which the aforementioned piece of content was sold (also required to be communicated to this Agency).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

60/102

attached to the notification the list of all the web links where the publication of the video had been detected).

- On May 18, 2022 (Registration Number: REGAGE22e00019344095), a response was received from MEDIASET ESPAÑA COMUNICACIÓN S.A:

1. They affirm that they proceeded to send an email to all their clients requesting the removal of this from their publications (they provide a screenshot as evidence of the message sent to the clients).
2. They affirm that MEDIASET not only sent the email notifying the removal of the video to their clients but also reiterated through numerous calls and emails during the month of April, alerting their clients of the obligation to remove the video.
3. They affirm that as of the date of receipt of the urgent removal order of the content (April 25, 2022), only two links from the provided list maintained the video active, one of which is <https://www.publico.es>. However, they affirm that both proceeded to remove it.

- On October 13, 2022 (Registration Number REGAGE22e00045695614), a response was received from MEDIASET to the request to provide evidence of the notifications and reiterations that MEDIASET indicates it made to its clients during April 2022, indicating the following:

- MEDIASET has DISPLAY CONNECTORS S.L. among its clients.
- They made the video available to their clients on March 31, 2022.
- MEDIASET blocked the video on April 1, 2022, and sent a notification message to their clients to proceed with its removal (they provide a screenshot of the communication):

***IMAGE.1

- After noticing that this removal had not been effectively carried out, they insisted by sending an email on April 8, 2022, to Diario Público (client DISPLAY CONNECTORS S.L). They attach a screenshot that proves this:

***IMAGE.2

- On April 25, 2022, coinciding with the receipt of the provisional removal measure sent by this Agency, they proceeded to send a new email (a screenshot is attached that proves this) and the content was removed by DISPLAY

***IMAGE.3

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

61/102

- By means of a written statement of allegations to the Initiation Agreement (Registration Number: REGAGE23e00059418636), DISPLAY provides two screenshots in which, on one hand, they indicate a communication from the Atlas Agency made on 04/25/2022 at 11:28 a.m., in which they request the removal of the video and, on the other hand, what they indicate as a response communication on the same day at 11:46 a.m., stating that they have proceeded to deactivate and remove the indicated video.

However, this AEPD confirms the removal of the content.

FOURTH:

On October 13, 2022, a written response was received from MEDIASET (Registration Number: REGAGE22e00045695614) as a response to the information request made by this Agency, indicating in the same, among other issues, the following:

- “They made the video available to their clients on March 31, 2022.”
- “MEDIASET ESPAÑA is not aware of how clients publish on their digital media. It is not automatic: MEDIASET ESPAÑA makes the content available to its clients, and they decide whether to download it or not.”
- “MEDIASET has DISPLAY CONNECTORS, S.L as a client.”

FIFTH:

On October 13, 2022, a written response was received from MEDIASET (Registration Number: REGAGE22e00045695614) as a response to the information request made by this Agency and attached a service provision and rights assignment contract signed on ***DATE.1 between MEDIASET ESPAÑA COMUNICACIÓN, S.A. and DISPLAY CONNECTORS, S.L, from which the following is highlighted:

In the section EXPOSE, the following is indicated:

“1. DISPLAY is a company whose main activity consists of providing information on current news, having the necessary means and authorizations for this purpose, and distributing the newspaper Público in digital format through the URL: www.publico.es

2. DISPLAY is interested in being provided with a service for supplying images of informative content, for its public communication through its website www.publico.es or any other that, with the same purpose, replaces it (hereinafter the Website)”

(...)

In its First Clause, the following is indicated:

“(...)”

In the section “4. CHARACTERISTICS,” of the aforementioned contract, the following is stated:

C/ Jorge Juan, 6

www.aepd.es
28001 – Madrid
sedeagpd.gob.es
62/102

“The videos will be supplied to DISPLAY in execution of this contract, and will be carried out as set forth below:

4.1 CONTENT: Any event of informational interest produced by MEDIASET ESPAÑA or produced by Reuters that takes place in national or international territory and has been digitized by MEDIASET ESPAÑA will be included in the daily list to which DISPLAY will have access, from which it will select the videos subject to this contract.

(...)

4.3 MEDIASET ESPAÑA guarantees that the material of the supplied videos will have the necessary quality for public communication and reproduction. In any case, the material will be delivered by MEDIASET ESPAÑA to DISPLAY through its website ***URL.1 or via an FTP mailbox, with MEDIASET ESPAÑA bearing the costs of delivering the videos.”

SIXTH:

In order to clarify the origin of the sensitive information shown in the video containing personal data of victims of gender-based violence, a request for information is made to the responsible party at MEDIASET, receiving a response on May 27, 2022 (Registration number (REGAGE22e00021099623) in which MEDIASET states verbatim:

“MEDIASET ESPAÑA limited itself to recording an interview in the premises of the Civil Guard in ***LOCALIDAD.1, in the context of which the screen of a computer was incidentally recorded where the Excel sheet was being displayed at that moment. MEDIASET ESPAÑA records the screen itself, not the content, to illustrate and contextualize the aforementioned interview...”

On August 3, 2022 (registration number REGAGE22e00033828775), a new document from MEDIASET is received in response to another request from this Agency in which:

1. A video is attached that certifies the recorded interview referred to in the previous document. Upon viewing the video, the following is confirmed:

- It is a scene where, in an office, a Civil Guard officer appears in close-up, sitting in front of a table with a computer screen next to her and responding to questions posed by a second person (who does not appear in the video) who seems to be the interviewing journalist.

- The following conversation takes place between the interviewer and the Civil Guard officer:

(...)

At the end of the interview, the computer screen is focused on and a sign appears with the text “***CARTEL.1”.

2. They claim that the recording took place in the premises of (...).

C/ Jorge Juan, 6

www.aepd.es
28001 – Madrid
sedeagpd.gob.es

63/102

SEVENTH:

DISPLAY submits, along with the written allegations to the Initiation Agreement, on September 5, 2023 (Registration number: REGAGE23e00059418636), as Document No. 2, a Certificate signed by Mr. A.A.A. on September 5, 2023, responsible for the company ***EMPRESA.1., contracted by DISPLAY for the provision of certain services related to the operation of its servers and its website. In said document, the following is certified:

“1. In 2022, on the servers of Público, a software program (hereinafter “importer”) was used that connected to the FTP service of ATLAS and downloaded the new videos that the agency was generating. This program was executed periodically (once every hour) in an automated manner, without any manual intervention. (the underlining is ours)

2. The files downloaded from Atlas consisted of a compressed file in “zip” format that contained four

files:

- (...)
- (...)
- (...)
- (...)

3. The Público importer program downloaded the file from the ATLAS FTP server, unzipped it, and performed the following automatic processing:

- (...)
- (...)
- (...)
- (...):
 - (...)
 - (...)
- (...)
- (...)
- (...)
- (...)
- (...)

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

64/102

EIGHT:

In its written allegations to the Initiation Agreement, submitted by DISPLAY on September 5, 2023 (Registration Number: REGAGE23e00059418636), it states the following:

"From May 11, 2023, in light of this and other incidents related to the videos provided by ATLAS (which led to the aforementioned lawsuit and another sanction imposed by the AEPD on 'Público' – in file PS/00194/2022 – also for the publication of video news), the management of the newspaper decided to modify the automatic publication system of video news from the ATLAS agency and establish a manual system, to avoid the publication of videos with potentially illegal and problematic content." (the underlining is ours)

Attached as Document No. 4 are screenshots of communications issued by the management of 'Público' (Ms. C.C.C., as ***POSITION.2') and the response given by Mr. A.A.A. – from the company ***COMPANY.1., to deactivate the automatic publication process of the Atlas videos.

Mr. A.A.A. indicates in a communication dated 11/05/2023, at 12:37 "(...)"

Ms. C.C.C., in a communication that day at 19:51 indicates "(...)"

NINTH:

- On October 24, during the testing phase, DISPLAY submitted, as "Document No. 15" (Registration Number: REGAGE23e00071793187) a notarized requirement record at the request of DISPLAY CONNECTORS, S.L. authorized by the Notary of Madrid, Mr. D.D.D., on October 16, 2023, with number 4962 of his protocol, in which it is certified that actions were carried out by the forensic computer expert Mr. E.E.E. connecting from a computer in the notary's office to extract a series of necessary evidence for the preparation of an expert report, and also certifies the (...) of a single compressed file generated by the aforementioned expert with the evidence extracted from the notary's computer. In this notarized record regarding the actions performed by the forensic computer expert Mr. E.E.E., it is indicated, among other things, the following:

"(...) from a computer in my notary's office, the expert opens the browser ... I observe what they tell me is the video publication management panel of the media Publico.es

(...) (...), with a frequency of 20 minutes, to establish a connection with certain news agencies for the download of new videos if they exist.

(...) The expert presses an icon that looks like a pencil in a row that indicates "The United States sends a new aircraft carrier to help Israel." In the next window, I observe that the video information

appears at the address ***URL.3, and scrolling down the window, the expert shows me that in the Status field the value "Inactive" is listed.

The expert transcribes the URL into a browser on my notary's computer and it does not display, indicating "The video you are looking for does not exist or is no longer available."

Next, from the same previous panel, the expert edits the video with the URL that was not displaying and marks it as "Active" in its Status and presses the "Update data" button. He waits about 30 seconds... and upon reloading the page from my notary's computer, the video is seen published."

- On October 24, during the testing phase, DISPLAY submitted, as "Document No. 16" (Registration Number: REGAGE23e00071793187) an expert report prepared and signed on October 23, 2023, by the forensic computer expert Mr. E.E.E., in which the following conclusions are indicated:

- Within the section "Analysis of the changes made to the configuration file '***FILE.1'", on page 26 of the report, it is indicated:

"That is to say, it can be concluded unequivocally after analyzing the digital evidence extracted that, on 11/05/2023 at 12:34:04 UTC+2, a change was made to the configuration file '***FILE.1' so that all videos downloaded from that moment from the Atlas agency server are marked as "inactive."

This also allows us to deduce that, until 11/05/2023 at 12:34:04 UTC+2, due to the absence of the parameter "(...)" in the configuration file '***FILE.1' for the Atlas agency, all videos from this were downloaded from the server and published automatically, without any need for interaction." (the underlining is ours)

And in the section "Opinion and conclusions" on page 28 of the report, particularly on pages 29 and 30, it is indicated:

"It has been evidenced that, since 11/05/2023 at 12:34:04 UTC+2, there was a change in the configuration file related to the Atlas agency, where the parameter "(...)" was added.

It can be concluded that, after this change, and after a detailed analysis of the source code of the program responsible for the downloading and indexing of the videos, all those downloaded from that date from the Atlas agency server are marked as inactive, requiring manual interaction to change this value and make it visible to anyone from the URL <https://www.publico.es/publico-tv/>.

The mentioned behavior was evidenced before a notary from the URL ***URL.2, corresponding to the management panel of videos to be published at <https://www.publico.es/publico-tv>. Thus, it was recorded with the public faith of the notary that an attempt was made to access from the notary's computer to the URL corresponding to a video that was marked as "Inactive," which was not viewable. Subsequently, this value was manually changed to "Active" and the changes to that video were updated. After refreshing the page in the notary's browser, it was observed that it was now visible.

Immediately after,

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

66/102

modified said video to the original state ("Inactive") and upon refreshing again in the browser, the video was no longer available.

The analysis conducted on the evidence also allows us to deduce that until 11/05/2023 at 12:34:04 UTC+2, due to the absence of the parameter (...) in the configuration file "***FILE.1" for the Atlas agency, all videos from this agency were downloaded from the server and published automatically, without any need for interaction." (the underlining is ours)

TENTH:

The following diligence from the instructor of the procedure is included in the file:

- Diligence dated October 17, 2023, in which the legal notice of the website

<https://www.publico.es/aviso-legal#analytics-pie:aviso-legal> is reproduced, by virtue of which the owner of said website is DISPLAY CONNECTORS, S.L, with CIF B65749715, this entity being responsible for all content published under that domain.

Included as Annex I to the diligence is a screenshot of the legal notice of this website.

The content of the "legal notice" is reproduced:

“LEGAL NOTICE

This constitutes the Legal Notice and the Terms of Use that regulate access, navigation, and use of the Website of DISPLAY CONNECTORS, S.L. (hereinafter, DISPLAY CONNECTORS, SL), located at the URL www.publico.es.

DISPLAY CONNECTORS, SL is an entity whose registered office is located at Av. DIAGONAL 177, Floor 15, 08018 Barcelona, CIF: B65749715 and registered in the Mercantile Registry of Barcelona, volume 43064, page 191, sheet number B-420272.

To communicate with DISPLAY CONNECTORS, SL directly and effectively, you can contact them at the phone number +34 91 838 77 58.

2.1. These general conditions (hereinafter the General Conditions) regulate access to the contents (hereinafter the Contents) and all services (hereinafter the Services) offered by DISPLAY CONNECTORS, SL through its www.publico.es and/or other websites of DISPLAY CONNECTORS, SL (the Websites), including news and article comment sections, Blogs, chats, and any others, as well as the use of the same by users (those who access the Contents and/or use the Services will be considered Users). However, DISPLAY CONNECTORS, SL reserves the right to modify the presentation, configuration, and content of the Website and the Services, as well as the conditions required for their access and/or use. Access and use of the Contents and Services after the entry into force of their modifications or changes in the conditions imply acceptance of the same.

2.2. However, access to certain contents and the use of certain services may be subject to specific conditions.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

67/102

particular conditions, which, as applicable, will replace, complete, and/or modify these general terms of use, and in case of contradiction, the contradictory terms of the particular conditions will prevail over the General Conditions.

Before using, reserving, and/or contracting such specific products or services offered by DISPLAY CONNECTORS, SL, the User must carefully read the particular conditions created, if applicable, for this purpose by DISPLAY CONNECTORS, SL. The use, reservation, and/or contracting of such specific products or services implies acceptance of the particular conditions that govern them in the version published by DISPLAY CONNECTORS, SL at the time such use, reservation, and/or contracting occurs.

2.3. Access, navigation, and use of the Website entails and implies the User's acceptance of this Legal Notice and the Terms of Use it includes. In this sense, a User is understood to be the person who accesses, navigates, uses, or participates in the services and activities, whether free or for a fee, developed on the Website.

3. ACCESS

3.1. Access to the Contents and the use of the Services provided by www.publico.es is free of charge; however, some of the Services and Contents offered by DISPLAY CONNECTORS, SL to third parties through the Website may be subject to prior contracting and payment of a fee, which will be specified in their own general contracting conditions.

3.2. Access to the Website by minors is prohibited unless they have prior and express authorization from their parents, guardians, or legal representatives, who will be considered responsible for the actions carried out by the minors in their charge, in accordance with current regulations. In any case, it will be presumed that access by a minor to the Website has been made with the prior and express authorization of their parents, guardians, or legal representatives.

3.3. Access and navigation through the Website does not require Registration; however, to access the reservation and/or contracting of certain products and/or services, prior registration in the "User Registration" of this Website will be required by the User selecting an identifier and password.

The password, personal and non-transferable, must be generated by the User in accordance with the strength and complexity rules established at any given time by DISPLAY CONNECTORS, SL. The

password created by the User will have unlimited temporal validity.

If the User selects a password that does not meet the minimum requirements according to the Password Policy approved and in force at DISPLAY CONNECTORS, SL, the User will be notified of this non-compliance and of the conditions that must be met for the password to be effectively valid for registration in the User Registry of DISPLAY CONNECTORS, SL. Nevertheless, the Website has the necessary functionalities for the User to change their password whenever they deem it appropriate, for example, if they suspect or find that the confidentiality of the password has been compromised.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

68/102

3.4. The password shall be personal and non-transferable. The User agrees to use their password diligently and to keep it confidential, not disclosing it to any third party, including DISPLAY CONNECTORS, SL itself. Consequently, Users are responsible for the proper custody and confidentiality of any identifiers and/or passwords they have selected as registered Users of DISPLAY CONNECTORS, SL, and they commit to not transferring their use to third parties, whether temporarily or permanently, nor allowing access to unauthorized individuals. The User shall be responsible for any unlawful use of the Website by any unauthorized third party who uses a password due to negligent use or loss of the same by the User.

In light of the above, it is the User's obligation to immediately notify the managers of the Website of any event that allows the improper use of the identifiers and/or passwords, such as theft, loss, or unauthorized access to them, in order to proceed with their immediate cancellation. Until such events are communicated, DISPLAY CONNECTORS, SL shall be exempt from any liability that may arise from the improper use of identifiers or passwords by unauthorized third parties.

This Website is governed by Spanish laws and by national and international legislation on intellectual and industrial property.

4. INTELLECTUAL AND INDUSTRIAL PROPERTY RIGHTS

This Website is governed by Spanish laws and by national and international legislation on intellectual and industrial property.

DISPLAY CONNECTORS, SL, either on its own or as an assignee or licensee, is authorized or is the holder of all intellectual and industrial property rights of the Website, expressly reserving the same, as reproduction, distribution, and public communication in whole or in part of the same, in any form or by any means without prior authorization from DISPLAY CONNECTORS, SL is expressly prohibited, all in accordance with the provisions of Article 32.1 of the Consolidated Text of the Intellectual Property Law. The User shall refrain from using any system or device capable of accessing or altering the configuration of the Website or its security system.

In no case shall the User's access and navigation of the Website or the use, acquisition, and/or contracting of products or services offered through the Website imply a waiver, transfer, license, or total or partial assignment of such rights by DISPLAY CONNECTORS, SL.

5. USE OF THE PAGE

5.1. The User agrees to use the Services provided by www.publico.es in accordance with the Law and these General Conditions. The User is obliged to refrain from using the Services for illegal purposes or effects or contrary to those established in the General Conditions.

5.2. The User agrees and acknowledges that, in the news comment services, Blogs, sending information through forms, as well as any others that allow the publication of opinions of the Users...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

69/102

Users, advertisements, email chain messages, or any other content that is not related to opinions or discussions about articles or news are not accepted. By using the Services, the User expresses their

agreement with these General Conditions, committing to not use them to send messages that defame or insult, or that contain false information, that is inappropriate, abusive, harmful, pornographic, threatening, damaging to the public image or private life of third parties, or that for any reason violate any law.

5.3. In particular, and by way of mere indication and not exhaustive, the User commits to not collect data for advertising purposes, to not send any type of online advertising, and to not transmit, disseminate, or make available to third parties through the Services provided by www.publico.es any information, messages, graphics, audio or image files, photographs, recordings, software, and in general any kind of material, data, or content that, without being exhaustive:

- (a) involves illegal activities or activities contrary to good faith and public order
- (b) in any way contravenes, belittles, or infringes upon the fundamental rights and public freedoms recognized constitutionally and/or in international treaties and/or in the rest of the Legal System
- (c) induces, incites, or promotes criminal, derogatory, defamatory, or violent actions
- (d) induces, incites, or promotes actions, attitudes, or ideas discriminatory on the basis of sex, race, religion, beliefs, or age
- (e) incorporates criminal, violent, or degrading messages
- (f) induces or incites involvement in dangerous, risky, or harmful practices for health and mental balance
- (g) are false, ambiguous, inaccurate, exaggerated, or out of date, in such a way that they may mislead regarding their subject or the intentions or purposes of the communicator
- (h) are protected by any intellectual or industrial property rights belonging to third parties, without the User having previously obtained the necessary authorization from their holders to carry out the use they are making or intend to make
- (i) violate the trade secrets of third parties
- (j) are contrary to the right to honor, personal and family privacy, or the own image of individuals
- (k) infringe the regulations on the secrecy of communications
- (l) cause difficulties in the normal functioning of the Services due to their characteristics (such as format, length, etc.)

Liability for damages.

The User shall be liable for any breach of the obligations to which they are subject by virtue of these General Conditions or the law in relation to the use of the Services.

6. LICENSE ON COMMUNICATIONS

6.1. In the event that the User sends any type of information to DISPLAY CONNECTORS, SL through the Website, via the channels provided for this purpose on the Page itself, the User declares, guarantees, and accepts that they have the right to do so freely, that such information does not infringe any property rights.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

70/102

intellectual, trademark, patent, trade secret, or any other third-party rights, that such information is not confidential and that such information is not harmful to third parties.

6.2. The User acknowledges assuming responsibility and shall hold DISPLAY CONNECTORS, SL harmless for any communication that they provide personally or on their behalf, with such responsibility extending without any restriction to the accuracy, legality, originality, and ownership of the same.

7. RESPONSIBILITIES AND WARRANTIES

DISPLAY CONNECTORS, SL cannot guarantee the reliability, usefulness, or truthfulness of the services or the information provided through the Website, nor the usefulness or truthfulness of the documentation of the events that can be acquired through the Website, prepared by professionals from very diverse sectors.

Consequently, DISPLAY CONNECTORS, SL does not guarantee nor is it responsible for:

- (i) the continuity of the contents of the Website.

(ii) the absence of errors in such contents or products.

(iii) the absence of viruses and/or other harmful components on the Website or on the server that supplies it.

(iv) the invulnerability of the Website and/or the impenetrability of the security measures adopted therein.

(v) the lack of usefulness or performance of the contents and products of the Website.

(vi) the damages or losses caused, to itself or to a third party, by any person who infringes the conditions, rules, and instructions that DISPLAY CONNECTORS, SL establishes on the Website or through the violation of the security systems of the Website.

Notwithstanding the above, DISPLAY CONNECTORS, SL declares that it has adopted all necessary measures, within its capabilities and the state of technology, to ensure the operation of the Website and to prevent the existence and transmission of viruses and other harmful components to Users.

If the User becomes aware of the existence of any unlawful, illegal content, contrary to the laws, or that could constitute an infringement of intellectual and/or industrial property rights, they must notify DISPLAY CONNECTORS, SL immediately so that it can proceed to adopt the appropriate measures.

Exclusion of warranties and disclaimer of liability

DISPLAY CONNECTORS, SL does not guarantee the availability and continuity of the operation of the Services. DISPLAY CONNECTORS, SL also does not guarantee the usefulness of the Services for carrying out any particular activity, nor their infallibility and, in particular, although not exclusively, that Users can effectively access the various web pages that make up the Forum service, nor that through it, content can be disseminated or made available to

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

71/102

third parties information, data or content or access information, data or content disseminated or made available by third parties.

DISPLAY CONNECTORS, SL assumes no responsibility for any damages of any nature that may arise from the lack of availability or continuity of the operation of the Services, and access to the Contents and service suspensions, and, in particular, although not exclusively, to temporary limitations on access to the various web pages of the comment service. DISPLAY CONNECTORS, SL may at any time temporarily or permanently suspend any Service.

DISPLAY CONNECTORS, SL assumes no responsibility nor guarantees the absence of viruses or other elements in the Contents that may produce alterations in the User's computer system (software and hardware) or in the electronic documents and files stored in their computer system. DISPLAY CONNECTORS, SL assumes no responsibility regarding the truthfulness, legality, accuracy, completeness, currentness, reliability and/or usefulness of the Contents.

DISPLAY CONNECTORS, SL assumes no responsibility for the content or services that exist in links that may be accessed from the Website.

Use of the Services under the Exclusive Responsibility of the User.

The User is aware and voluntarily accepts that the use of the Services takes place, in any case, under their sole and exclusive responsibility. Considering the nature of these Services, the content of the messages published through them expresses solely the opinion of their author. DISPLAY CONNECTORS, SL does not guarantee the accuracy, completeness or usefulness of any message, therefore it will not be responsible for the content of the same.

The User acknowledges and accepts that the use of the Website will be carried out for strictly personal purposes, which implies that it is prohibited for the User to authorize third parties to use the Website in whole or in part or to introduce or incorporate the Contents and Services as part of their own business activity.

Exclusion of warranties and exemption from liability for the use of the Services by Users.

DISPLAY CONNECTORS, SL has no obligation to control the use that Users make of the Services. In particular, DISPLAY CONNECTORS, SL does not guarantee that Users use the Services in

accordance with these General Conditions, nor that they do so diligently. DISPLAY CONNECTORS, SL also has no obligation to verify the identity of Users, nor the truthfulness, validity, completeness and authenticity of the data that Users provide about themselves to other Users. In any case, it retains the data and information that current legislation requires.

Limitation on the Use of the Services.

DISPLAY CONNECTORS, SL reserves the right to deny the use of the Services and to withdraw the information, data and content disseminated or made available to third parties through any of these Services, at any time.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

72/102

moment and without prior notice to those Users who breach these General Conditions. DISPLAY CONNECTORS, SL may delete any messages that it deems inappropriate, out of context, or that do not continue the debate.

8. LINKS

8.1 Links to Other Websites

In the event that the User may find links to other websites on the Website through different buttons, links, banners, etc., these would be managed by third parties. DISPLAY CONNECTORS, SL does not have the authority or human or technical means to know, control, or approve all the information, content, products, or services provided by other websites to which links may be established from the Website.

Consequently, DISPLAY CONNECTORS, SL cannot assume any responsibility for any aspect related to the website to which a link may be established from the Website, specifically, by way of example and not limitation, regarding its operation, access, data, information, files, quality, and reliability of its products and services, its own links, and/or any of its contents, in general.

In this regard, if Users have effective knowledge of the illegality of activities carried out through these third-party websites, they must immediately communicate it to DISPLAY CONNECTORS, SL so that the link to access it can be disabled.

The establishment of any type of link from the Website to another external Website shall not imply that there is any type of relationship, collaboration, or dependence between DISPLAY CONNECTORS, SL and the responsible party of the external Website.

8.2 Links on Other Websites to the Website

If any User, entity, or Website wishes to establish any type of link to the Website, they must adhere to the following stipulations:

- The link must be absolute and complete, that is, it must take the User, with a click, to the actual URL address of the page of the Website that is linked and must completely cover the entire screen of the page of the Website that is linked. Under no circumstances, unless DISPLAY CONNECTORS, SL expressly authorizes it in writing, may the website that creates the link reproduce, in any way, the Website, include it as part of its Website or within one of its "frames," or create a "browser" over any of the pages of the Website.

- On the page that establishes the link, it may not be stated in any way that DISPLAY CONNECTORS, SL has authorized such a link, unless DISPLAY CONNECTORS, SL has expressly done so in writing. If the entity that creates the link from its page to the Website wishes to correctly include on its Website the brand, name, trade name, sign, logo, slogan, or any other type of identifying element of DISPLAY CONNECTORS, SL and/or the Website, it must have prior express and written authorization.

- DISPLAY CONNECTORS, SL does not authorize the establishment of a link to the Website from those websites that contain materials, information, or illegal, degrading, obscene content, and in general, that contravene morality, public order, or generally accepted social norms.

DISPLAY CONNECTORS, SL does not have the authority or human and technical means to know, control, or approve all the information, content, products, or services provided by other websites that have established links to the Website. DISPLAY CONNECTORS, SL assumes no responsibility for any

aspect related to the Website that establishes that link to the Website, specifically, by way of example and not limitation, regarding its operation, access, data, information, files, quality, and reliability of its products and services, its own links, and/or any of its contents, in general.

9. PRIVACY POLICY

The privacy policy of www.publico.es is determined by what is established in the document DATA PROTECTION POLICY.

10. COOKIES

10.1. "Cookies" are small text files that are stored on the user's computer when visiting websites. Their use is very useful for these sites to function more efficiently: for example, if a user selects their preferred language on the "home" page, the website will remember this preference, and the user will be able to continue browsing the website in the chosen language.

10.2. Cookies can be divided into "first-party cookies" and "third-party cookies":

- "First-party cookie": created by the data controller operating the Website, in this case, DISPLAY CONNECTORS as the publisher of the newspaper Público.

- "Third-party cookie": created by data controllers that do not operate the website visited by the user, that is, third companies unrelated to DISPLAY CONNECTORS and Público. For example, the news on Público has a "Facebook Like" button, which installs a cookie that Facebook can read. This is considered a third-party cookie.

10.3. The Público Website uses the following cookies:

(...)

For more information about cookies, how they are used on publico.es, and how to configure your preferences, you can visit the cookie policy page.

10.4. DISPLAY understands that by the user's navigation through the Website, they have been informed and consent to the installation of the aforementioned cookies on their computer.

10.5. In any case, the user will always be able to customize the use of cookies, as well as prevent the collection of cookies by modifying the options of the user's own browser, among the most common:

(...)

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

74/102

10.6. By completely blocking "cookies," you may prevent certain websites from displaying correctly.

11. DURATION AND MODIFICATION

11.1. DISPLAY CONNECTORS, SL may modify the terms and conditions stipulated herein, in whole or in part, by publishing any changes in the same manner as this Legal Notice appears or through any type of communication directed to the Users.

11.2. The temporal validity of this Legal Notice coincides, therefore, with the time of its exposure, until it is modified in whole or in part, at which point the modified Legal Notice will come into effect.

11.3. Regardless of what is provided in the specific conditions, DISPLAY CONNECTORS, SL may terminate, suspend, or interrupt access to the contents of the page at any time without prior notice, with no possibility for the User to claim any compensation. Following such termination, the prohibitions on the use of the contents set forth earlier in this Legal Notice will remain in effect.

12. GENERALITIES

12.1. The headings of the various clauses are for informational purposes only and will not affect, qualify, or expand the interpretation of the Legal Notice.

12.2. In the event of any discrepancy between what is established in this Legal Notice and the specific conditions of each specific service, the provisions of the latter will prevail.

12.3. If any provision or provisions of this Legal Notice are deemed null or unenforceable, in whole or in part, by any competent Court, Tribunal, or administrative body, such nullity or unenforceability will not affect the other provisions of the Legal Notice.

12.4. The non-exercise or non-enforcement by DISPLAY CONNECTORS, SL of any right or provision contained in this Legal Notice will not constitute a waiver of the same, unless recognized and agreed to

in writing by it.

13. JURISDICTION

The relationships established between DISPLAY CONNECTORS, SL and the User will be governed by the provisions of the current regulations regarding applicable law and competent jurisdiction. However, in cases where the regulations provide the possibility for the parties to submit to a jurisdiction, DISPLAY CONNECTORS, SL and the User, expressly waiving any other jurisdiction that may correspond to them, will submit any disputes and/or litigation to the knowledge of the Courts and Tribunals of the city of Barcelona.

14. NEWSLETTERS AND COMMUNICATIONS

Upon logging in for the first time or subscribing to Público, you will be registered for a daily newsletter service with a selection of news from Público, C/ Jorge Juan, 6, www.aepd.es, 28001 – Madrid, sedeagpd.gob.es

75/102

as well as the sending of updates and communications related to Público and its services.”

ELEVENTH:

The following diligence from the instructor of the procedure is included in the file:

- Diligence of October 18, 2023, in which the printout of several images from the video in the file is reproduced for evidentiary purposes, which was published on the website publico.es, where the names and surnames of 51 women registered in the VioGén system as victims of gender-based violence are displayed, as well as the different classifications in which they are found based on their specific circumstances (“PENDING O.P.”; “ACTIVE WITHOUT O.P.”; “ACTIVE NOT LOCATABLE”; “NEW CEASED”)

TWELFTH:

DISPLAY has been previously sanctioned by a firm resolution in the administrative route in the following sanctioning files:

PS/00194/2022: publication on the same website (www.publico.es) of the audio of the statement before the judge of a victim of multiple rape, to illustrate the news related to the holding of the trial, without distorting the victim's voice. The sanctioning resolution, dated May 27, 2022, which is firm in the administrative route, determined the infringement of Article 5.1 c) of the GDPR by understanding that, weighing the Fundamental Rights to Freedom of Information and Data Protection, the defendant has processed data that was excessive as it was not necessary for the purpose for which it was processed.

DISPLAY did not make any allegations in the aforementioned file.

PS/00555/2022: publication, on the same website (www.publico.es) of an expert report in which the name and surname of a minor appears, without obfuscation, to illustrate news related to a well-known and media-covered judicial procedure involving one of their parents. The sanctioning resolution, dated January 10, 2023, which is firm in the administrative route, determined the infringement of Article 5.1 c) of the GDPR by understanding that, weighing the Fundamental Rights to Freedom of Information and Data Protection, the defendant has processed data that was excessive as it was not necessary for the purpose for which it was processed.

Regarding this last case, DISPLAY, after the Initiation Agreement, opted for early payment, with the corresponding reduction of the proposed sanction. It also proceeded to acknowledge its responsibility concerning the infringement attributed to it, which allowed it to benefit from the reduction permitted by law.

LEGAL GROUNDS

I Competence

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

76/102

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and

as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II Summary of the Facts

According to the documentation provided, MEDIASET created a news item illustrated with a video showing a computer screen displaying an Excel sheet with the names and surnames of 51 women registered in the VioGén system as victims of gender-based violence, as well as various classifications of these women based on their specific circumstances (pending O.P., active without O.P., active unlocatable, new ceased).

This news item was made available by MEDIASET on March 31, 2022, to several entities with which it has signed content transfer contracts, including DISPLAY CONNECTORS, S.L. The news was published on various web portals, including www.publico.es, for which the responding party is responsible for processing.

DISPLAY did not proceed to immediately remove the video, as it has been established in Proven Fact Three that MEDIASET had to send it 3 communications (on April 1, April 8, and April 25, 2022) until, finally, on April 25, it proceeded to remove it. This delay caused this Agency to issue an order for the removal of the video directly to DISPLAY on April 22, 2022.

There is no record of a response from DISPLAY CONNECTORS S.L. to the urgent removal order of the content issued by the AEPD, and therefore it did not respond to the request to inform this Agency about the execution of the measure.

However, it has been confirmed that the content was removed following verification carried out in the preliminary investigations.

According to the specifications in the content transfer contract between DISPLAY CONNECTORS S.L., the procedure for delivering news between them consists of MEDIASET locating the news on the Atlas Agency website or in an FTP mailbox, with the other party to the contract being responsible for accessing such sites and selecting those contents that were of interest to them, to subsequently publish them in their medium.

III Response to the Allegations to the Proposal for Resolution

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

77/102

In response to the allegations presented by the responding entity, the following is noted:

1. Violation of the principle of accountability

DISPLAY claims that the principle of culpability has been violated, as it is accused of negligent conduct, when it considers that it acted with the minimum diligence required of a digital information medium, since:

- it limited itself to publishing a video news item provided by the ATLAS Agency, belonging to one of the most important Spanish communication groups, such as the MEDIASET Group.
- it acted under the principle of trust towards its provider, with which it had a signed contract under which the ATLAS Agency was responsible for complying with the legislation and regulations in force regarding all contents.

DISPLAY reiterates the allegations that in the contract signed with the ATLAS Agency, it guaranteed that no third-party rights or applicable regulations were infringed, which determined the adoption of an automatic publication system for these videos.

In this regard, it should be noted that these statements about not being responsible because it relied on a third party were already raised against the Initiation Agreement and responded to by this Agency

in the proposal for resolution, to which reference should be made.

Thus, it was clarified beforehand that it is responsible for the processing it carries out, consisting of the dissemination (publication) on its website of news as a digital communication medium. It was also clarified the processing of personal data that its activity entails and the very concept of "processing of personal data" in accordance with Article 4 of the GDPR, as well as that the responding party decides the purposes of such processing, that is, it determines that the purpose of the processing is informational, and also decides the means of such processing. In the specific case at hand, it decided to proceed with the automatic publication of the videos provided by the ATLAS Agency.

As already indicated at that time, according to the aforementioned contract, Atlas makes available to DISPLAY a series of news items, from which the latter can select those it considers, download them, and proceed to publish them on its website.

In short, the responding party has decision-making power regarding which contents of the Atlas Agency it publishes and which it does not. In this regard, regarding the fact that it had established a completely automatic publication system for all of them without human intervention, it has already been pointed out that such an automatic system or process is not something that the Atlas Agency has established and that is an unavoidable or inevitable situation for DISPLAY, as this automatic system has been established voluntarily precisely by DISPLAY.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

78/102

Therefore, it is DISPLAY that decided to establish a fully automated system for the publication of videos on its website, using "a software program that connected to Atlas's FTP service and downloaded the new videos that the agency was generating. This program ran periodically (once every hour) in an automated manner, without any manual intervention," as certified by the responsible party of the company ***EMPRESA.1., contracted by DISPLAY for the provision of certain services related to the operation of its servers and its website, in a written statement signed on September 5, 2023, submitted by DISPLAY as Document No. 2 along with the written allegations to the Initiation Agreement. In this regard, we refer to Proven Fact Seventh.

Furthermore, as noted in Proven Facts Eighth and Ninth, following the claim that gave rise to the present sanctioning procedure, DISPLAY decided to change this automatic video publication system to a manual system, to "avoid the publication of videos with potentially illegal and problematic content." Therefore, it is DISPLAY, as the data controller, that has defined both the purpose (informative) and the means, in this case: obtaining video news through an Agency and establishing an automatic system for the download and publication of those videos on its website.

Regarding its full trust in the Atlas Agency and that it was responsible for complying with the current legislation and regulations concerning all the content it supplied to its clients, it should be noted, as already indicated in the resolution proposal of the present sanctioning procedure, that regardless of how the contractual relationship between both companies is internally articulated (which, moreover, does not assume responsibility on the part of the Atlas agency as understood by the complainant), it is DISPLAY that must comply with the regulations on data protection for the processing it carries out itself, specifically, the dissemination or publications it makes in its digital newspaper "Público." In this case, it is emphasized that DISPLAY is responsible for the publication of the video in question on its digital medium, which constitutes a breach of the GDPR.

DISPLAY again attempts to evade its responsibility by alleging the prior involvement of third parties (ATLAS and the Ministry of the Interior). In this regard, it is reiterated that DISPLAY is responsible for the processing it carries out, as it defines the purpose of the processing of personal data that its activity entails and chooses the means it deems appropriate. This is regardless of the actions and responsibilities that third parties may have incurred, as the negligence or illegal actions of third parties do not exclude its own, which consists of disseminating (publishing) excessive personal data, not covered by the GDPR, thereby breaching it.

Therefore, the negligent actions that third parties may have incurred do not exempt DISPLAY from

having to comply with data protection regulations nor do they prevent the processing it carries out from violating such regulations.

This is the case because it is the publication of the video on its website, containing personal data (name and surname and various classifications based on their specific circumstances) of women victims of gender-based violence, carried out by the respondent party that is the subject of this procedure. Therefore, what is being assessed is

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

79/102

its actions, that is, the compliance or non-compliance with the obligations imposed by the GDPR as the data controller.

The actions of the member of the law enforcement agencies and ATLAS in the recording, production, and distribution to DISPLAY constitute a different data processing than the one being analyzed.

Therefore, the fact that the source of the information was the ATLAS Agency is not sufficient to exempt the defendant from its responsibility, because what is being judged is not the provision of information by the ATLAS Agency to DISPLAY, but the processing for which the defendant is responsible, namely the dissemination (publication) of the personal data of women victims of gender-based violence that it carried out on its website.

As soon as the information reaches the media outlet, it, as the data controller, is responsible for complying with data protection regulations, and cannot justify non-compliance on the grounds that ATLAS sent the video to DISPLAY, assuming that this allows it to publish without adhering to the provisions of the GDPR and the LOPDGDD.

And as indicated, it is up to the media outlet, in its capacity as the data controller, to decide what and how to publish. It could choose to publish the information as is, opt not to publish, or decide to distort the image in order to prevent the personal data of the women victims of gender-based violence from being recognizable.

It can be concluded that the existence of possible prior non-compliances by third parties does not exempt the media outlet from the obligation to conduct a risk analysis prior to the publication of the news.

If one were to follow the interpretation defended by the defendant, the processing carried out by the media outlet would be entirely subordinated or conditioned by prior actions of third parties, which is not the case here.

Furthermore, it is necessary to cite the Judgment of the Court of Justice of the European Union in the Fashion ID case, C-40/17, ECLI:EU:2018:1039, which rules on a case in which an e-commerce company embedded the "like" social module from the Facebook social network on its website, which meant that personal data of visitors to the e-commerce company's website were transmitted to Facebook regardless of whether the visitors were members of the mentioned social network or if they clicked on the Facebook "like" button. In paragraph 74, it establishes that "On the other hand, and without prejudice to any potential civil liability provided for in national law in this regard, that natural or legal person cannot be considered responsible, in the sense of that provision, for the previous or subsequent operations in the processing chain regarding which it does not determine the purposes or the means."

That is to say, any processing operation carried out within the scope of the defendant (in this case, the dissemination of personal data in connection with the news) must be attributed solely to it, regardless of processing operations that may have been carried out previously by other parties and which, in no case, exempt it from its responsibility. Media outlets, as data controllers, are responsible for...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

80/102

multiple data that they are aware of in the exercise of their journalistic work must know and comply with the regulations regarding data protection, applying, among others, the principle of data minimization enshrined in Article 5.1.c) of the GDPR. Furthermore, DISPLAY reiterates that it was normal to think that the data provided were not real data but fictitious, since the VioGen system uses a simulator with fictitious databases for training purposes that do not correspond to data from real individuals. It also indicates again that when the Ministry of the Interior or the State Security Forces and Corps (hereinafter FCSE) show real data contained in the VioGen system, they obscure it, or when they do not, it is fictitious data; therefore, it must be concluded that the personal data appearing in the video published on its website are fictitious.

That is to say, DISPLAY insists that in light of the examples provided (it reiterates the same examples as in its written allegations to the Initiation Agreement), it should be presumed that, given that the images come from official bodies (FCSE, Ministry, etc.), their actions have been diligent regarding the protection of personal data; thus, if the data has not been concealed, it is a simulation. This serves DISPLAY to argue, in the event of negligence on the part of the Administration itself, that the principle of accountability and the principle of legitimate trust in the actions of the Administration have been violated, bringing up certain jurisprudence from the Supreme Court regarding the principle of good faith and legitimate trust in the actions of the Administration.

In response, it is noted, as indicated in the proposed resolution, to which reference should be made, that DISPLAY is again attempting to shift its responsibility for the infringement it has committed in the actions of third parties.

Thus, it has already been argued that the conduct reproached to DISPLAY is that of having published personal data on its website that constituted an infringement of the GDPR. As the data controller, it decided the purposes of such publication and, likewise, the means, being solely the respondent that decided that such publication should occur, as it indicates, in a completely automatic manner and based on its trust in its content provider, which were all decisions made solely and exclusively by DISPLAY, thus making it the only responsible party for them.

Secondly, regarding the claim that, given the examples provided, the data was fictitious or simulated, it has already been indicated that in those examples all personal data that appears, whether obscured or simulated, is done so in a context of training or conferences. We refer to the arguments made in the Proposed Resolution regarding each example provided by DISPLAY, also concluding that the context of the case at hand is completely different, as it involves a recording made in 2010 in which there is no context of training or a conference being broadcast, but rather an informational context, aimed at collecting accurate and truthful information for the purpose of disseminating it, if applicable, later; therefore, neither the context nor the content of the video suggests that the personal data is not real. Finally, regarding the claim that the negligent action of the Ministry of the Interior is what led it to trust that the content of the video was appropriate, thus violating the...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

81/102

principle of responsibility and legitimate trust, it is necessary to recall, first of all, that DISPLAY only became aware of the origin of the images in question upon the Agreement to Initiate the present sanctioning procedure, as it expressly acknowledges in its written submissions, which means that no legitimate trust in the actions of the Administration could support its own actions given its ignorance of the origin of the images. Secondly, as it has acknowledged, it had implemented a system by which, without prior visualization or knowledge, it automatically downloaded and published the content provided by the Atlas agency. Therefore, at no point prior to the publication of the video did it conduct the necessary prior analysis nor could it presume any prior action by any agents of the FCSE (State Security Forces and Corps) or the Ministry of the Interior that would lead it to trust in the legality of the images, much less any prior action by any Administration that would induce it to believe that it was acting legitimately.

Therefore, it is not appropriate to accept any violation of the principle of legitimate trust in the actions of

Public Administrations.

Furthermore, even assuming that it had previously known the origin of the images containing personal data of victims of gender-based violence and that it had not implemented an automatic process for the publication of the video content and its context, the fact is that the mere suspicion and risk that the data were real should be taken into consideration by the data controller due to the principle of proactive responsibility, conducting a preliminary analysis that clarified this circumstance. This is because whether the data is real or not determines the application of the GDPR itself.

What is unacceptable is failing to comply with the obligations imposed on the data controller by the GDPR, under the pretext of considering, with no support other than mere conviction, that the data is not real.

2. Violation of the principle of proportionality

A) Disproportion of the sanction in relation to the factual circumstances that concur:

DISPLAY reiterates that the proposed sanction is disproportionate to the circumstances of the case, as it has not taken into account that it acted with negligence caused by prior acts of third parties constituting serious negligence, as it relied on the reputation of ATLAS and therefore established an automatic system for the publication of the videos.

In this regard, it is recalled that a lengthy response has already been provided on this issue regarding the negligence incurred by DISPLAY as the data controller that was carried out in violation of the GDPR, which is not undermined by the negligence that, in its case, may have been incurred by others. Therefore, it is appropriate to refer to all that has been indicated in this regard both in the previous point of this Legal Basis and to all that has been argued in response to the allegations made against the Agreement to Initiate, which are transcribed in the Tenth Background of this Resolution.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

82/102

DISPLAY also claims that it has not been taken into account that it proceeded to the immediate removal of the video, even a week before it received the request from the AEPD for its removal, even modifying the automatic publication system to prevent future unlawful information from ATLAS, which constituted a completely diligent action on its part, thereby rendering the deterrent function of the administrative fine meaningless, as well as the circumstance relating to "any measures taken by the data controller or processor to mitigate the damages suffered by the affected parties" should be applied, all in the sense of tempering the sanction.

In this regard, it should first be noted that DISPLAY did not proceed to the immediate removal of the video as it insists, since it has been established in Proven Fact Three that MEDIASET had to send it 3 communications (on April 1, April 8, and April 25, 2022) until, finally, on April 25, it proceeded to its removal. This delay caused this Agency to issue a removal order for the video directly to DISPLAY on April 22, 2022.

Furthermore, once DISPLAY received the aforementioned order on April 22, 2022, as evidenced by the acknowledgment of receipt in the file to which we refer, it did not respond to this Agency regarding compliance with the measure as required in said order. However, regarding the removal of the video in question, it was not carried out spontaneously by DISPLAY, but rather as a consequence of orders issued by this Agency, which are mandatory, thus not reflecting a collaborative behavior but rather a procedure compelled by law.

Secondly, it is not appropriate to consider as a mitigating circumstance the one established in Article 83.2.c) of the GDPR, relating to "any measures taken by the data controller or processor to mitigate the damages suffered by the affected parties," since this circumstance is not fulfilled in the present case, as the removal of the video and the elimination of the automatic publication procedure do not imply that they are aimed at mitigating the damages suffered by the individuals affected by the infringement committed, but rather are aimed at ceasing to violate the data protection regulations by DISPLAY.

Regarding the circumstances considered as aggravating for quantifying the sanction.

A.1.- Article 83.2.a) of the GDPR: the scope or purpose of the processing operation, as well as the affected parties

DISPLAY disagrees that the fact that the number of affected individuals, which amounts to 51, has been considered as an aggravating circumstance.

In this sense, DISPLAY questions that the number has decreased from 56 to 51 and that this has not resulted in a reduction of the sanction. It also questions whether the names and surnames of 51 women are correctly visualized, as it claims that they only pertain to 40 and that it was an isolated incident.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
83/102

In this regard, it is noted that, due to the fact that the respondent indicated in its written submissions to the Initiation Agreement that only the personal data of 31 women were visible, in accordance with what is stated in the Eleventh Proven Fact, the Instructor proceeded, on October 18, 2023, to carry out an action related to the printing of several images from the video published on the website publico.es. In this action, which is considered reproduced for evidentiary purposes, the printing of several images from the video that is part of the file and to which we refer, shows the personal data of 51 women registered in the VioGén system as victims of gender-based violence, in which their names and surnames are visible, as well as different classifications based on their specific circumstances. However, the respondent now indicates that there are 40 women whose personal data are visible. Therefore, it has been established that the personal data of 51 women victims of gender-based violence were published. The fact that this is 5 less than those indicated in the Initiation Agreement does not imply a decrease in the severity of the infringement, for the purposes of Article 83.2.a) of the GDPR. Moreover, even if there had been 31 or 40 affected individuals, it would still be a high number in this regard, considering the high risk of harm that the dissemination of their identity may pose to those affected.

Regarding the severity of the indicated infringement, it does not focus on the level of harm— which is high given the circumstances of the affected individuals— but rather on the fact that the confidentiality of the data has been violated, which entails an irreparable loss of disposition and control over the same.

A.2.- Article 83.2.b) Aggravating factor of negligence.

DISPLAY claims that the assessment that it is an entity whose activity involves continuous processing of personal data is erroneous, as its activity is not the processing of data, but the publication of information and current news, which does not necessarily have to contain personal data and that, only in exceptional situations, discloses some personal data of public figures.

This allegation is a reiteration of what was already stated against the Initiation Agreement, and it has already been responded to that, in the first place, regarding DISPLAY acting at all times with due diligence, its negligent conduct has already been addressed in the First Section of this Legal Basis, as well as in the response given at the time, reproduced in the Tenth Background of this resolution, to which reference should be made.

However, it is reiterated that this Agency has not indicated that DISPLAY's activity is the processing of personal data, but rather that its activity—publication of information and current news, as it is termed—entails the continuous processing of personal data. Thus, it cannot be overlooked, in addition to the processing of personal data of users subscribed to paid content, that its activity of publishing information and news continuously involves the processing of personal data (images of people appearing in the videos, identifying data, addresses, and locations of some of them, etc.).

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
84/102

In this regard, it is indisputable that a media outlet, such as DISPLAY, due to the activity it performs, involves a continuous processing of personal data, for which it must pay special attention to compliance with the GDPR in the publications and broadcasts it carries out.

A.3.- Aggravating factor related to any previous infringement committed by the data controller (Article 83.2.e) of the GDPR:

DISPLAY reiterates that it is erroneous to consider it as such since the sanction of the file PS/00194/2022 arises from another video from the same agency, Atlas, to which the considerations made regarding its non-negligent conduct are applicable, and that the infringement also occurred as a result of prior negligence by third parties that caused the undesired dissemination of the data on the Público website. Furthermore, it insists that in both files it is evidenced that the source of the information is in no case from DISPLAY, but from third-party sources, and that it acted diligently in the removal of the personal data, as well as in assuming responsibility and promptly paying the sanctions imposed there, which should be valued as evidence of DISPLAY's willingness to always collaborate with the AEPD.

In this regard, it is emphasized, as already responded to in the resolution proposal, that it is not appropriate to accept in any way what is claimed by the respondent.

Firstly, because in PS/00555/2022, following the Initiation Agreement, it availed itself of the prompt payment using the two reductions allowed by law, which implied the acknowledgment of responsibility by DISPLAY. That is to say, the respondent acknowledged its responsibility regarding the facts attributed to it, which also constituted an infringement similar to the one currently in question.

Secondly, the lack of diligence of DISPLAY at the time of publishing the video in question has already been argued. Likewise, it is not appropriate, as has also been previously pointed out, to accept its lack of responsibility regarding the fact that the origin of the video comes from third-party sources, since the infringement attributed to it is not the creation of the video, but its publication on its website. Therefore, regardless of the possible responsibility or lack of diligence of third parties, DISPLAY cannot evade its own responsibility as the data controller it performs, in accordance with its own purposes and the means it has established for this.

Regarding PS/00194/2022, DISPLAY did not make any allegations in it, being sanctioned for the same infringement that is now attributed to it.

Moreover, DISPLAY reiterates that its precedents in the defense of women victims of gender-based violence should be taken into account as a mitigating factor, in which it has distinguished itself and has championed against other media outlets.

In this regard, it is clarified again that what is reproached here is not whether it participates actively or in any other way in the defense or with public recognition of women victims of gender-based violence, but the non-compliance with the GDPR by having published excessive data for the intended purpose, thereby contravening the GDPR.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

85/102

Article 5.1.c) of the same, conduct that is classified as an infringement in Article 83.5 of the aforementioned Regulation.

A.4.- Aggravating factor related to the categories of personal data affected by the infringement (Article 83.2.g of the GDPR)

DISPLAY argues that the names and surnames of women victims of gender-based violence do not constitute special categories of data as contemplated in Article 9 of the GDPR, nor are they personal data related to convictions and criminal offenses.

In this regard, it should be noted that the circumstance that may be taken into account when quantifying the sanction under Article 83.2.g of the GDPR refers to "the categories of personal data affected by the infringement," and not, therefore, to "special categories of data" as collected in Article 9 of the GDPR.

In this sense, as indicated both in the Initiation Agreement and in the Proposal for Resolution regarding

the concurrence of this aggravating factor, personal data of women victims of gender-based violence has been revealed, who are in a special risk situation and are afforded special protection. Therefore, it is not the same that the names and surnames of, for example, clients of a telecommunications company have been disclosed, as opposed to those of women victims of gender-based violence, especially when specific circumstances or protective measures they may have are indicated, which have a much more sensitive nature.

Furthermore, DISPLAY reiterates that the same circumstance of dealing with personal data of women victims of gender-based violence is being applied twice as an aggravating factor, which it understands constitutes a violation of the principle of non bis in idem.

In this regard, as already argued in the Proposal for Resolution, the first aggravating circumstance taken into account (Article 83.2.a GDPR) refers to the loss of availability of the affected personal data, as they have been published (loss of confidentiality). The aggravating factor focuses on the fact that, having been published (on a website), the loss of control is absolute and the high risk that this entails. Regarding this aggravating factor (Article 83.2.g of the GDPR), the focus is on the category of affected personal data, which is considered to have a sensitive nature due to being victims of gender-based violence.

A.5.- The link between the infringer's activity and the processing of personal data (Article 76.2.b of the LOPDGDD)

DISPLAY insists again that it does not carry out an activity linked to the processing of personal data, but rather engages in the activity typical of a digital information medium.

In this regard, reference should be made to the arguments previously presented concerning the aggravating factor related to the existence of intent or negligence in the infringement of the GDPR.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

86/102

Claimed party, in the sense that its activity of publishing information and news does indeed involve a continuous processing of personal data, characteristic of a digital communication medium.

B) Disproportion of the sanction in relation to the economic circumstances involved

DISPLAY raises two issues here again:

B.1. The very limited dissemination of the video and the null returns obtained

DISPLAY argues, providing supporting documentation in this regard, that the video only had 385 views, which translates into no benefit, which should be considered as a mitigating factor under Article 83.2.k) of the GDPR.

In response, it should be noted again that, regarding this criterion, Article 76.2 of the LOPDGDD, in its letter c), includes among the criteria that must be weighed when determining the amount of the sanction “the benefits obtained as a result of the commission of the infringement” and not the absence of these benefits. The Judgment of the National Court, dated 05/05/2021, refers to the necessity that the “budget” of fact contemplated in the norm must be present for a certain graduation criterion to be applied, and, as stated, the absence of benefits is not among the circumstances regulated in the cited article.

This graduation criterion is established in the LOPDGDD in accordance with the provisions of Article 83.2.k) of the GDPR, according to which administrative fines will be imposed taking into account any “aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement,” understanding that avoiding a loss has the same nature for these purposes as obtaining benefits.

If we add to this that the sanctions must be “in each individual case” effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR, admitting the absence of benefits as a mitigating factor is not only contrary to the factual premises contemplated in Article 76.2.c), but also contrary to what is established in Article 83.2.k) of the GDPR and to the principles indicated. Thus, valuing the absence of benefits as a mitigating factor would nullify the dissuasive effect of the fine, as it diminishes the effect of the circumstances that effectively impact its

quantification, providing the responsible party with a benefit to which they are not entitled. It would be an artificial reduction of the sanction that could lead to the understanding that violating the norm without obtaining benefits, financial or otherwise, would not produce a negative effect proportional to the seriousness of the infringing act. In any case, the administrative fines established in the GDPR, in accordance with what is established in its Article 83.2, are imposed based on the circumstances of each individual case and, in the present case, it is not considered that the absence of benefits is an adequate and determining graduation factor to assess the seriousness of the infringing conduct.

B.2. Disproportionate sanction in relation to the results of DISPLAY's activity

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
87/102

DISPLAY again claims that the proposed sanction exceeds one of the maximum limits established in Article 83.5, which is 4% of the annual turnover concerning the company's revenue for the fiscal year 2021, a date prior to the events for which the sanction is intended.

Furthermore, DISPLAY also indicates the result of losses for the fiscal year 2021, the amount of accumulated losses, and the revenue figures for the years 2017 to 2022, all to support that the sanction is disproportionate.

In this regard, it is appropriate to recall, as already indicated in the Proposal for Resolution, that Article 83.1 of the GDPR establishes that administrative fines for violations of the GDPR must be "...effective, proportionate, and dissuasive in each individual case," subsequently indicating in paragraph 2 of the aforementioned provision that "Administrative fines shall be imposed based on the circumstances of each individual case, as an additional or alternative measure to those contemplated..." (the emphasis is ours). It then establishes certain circumstances to be taken into account.

Thus, the calculation of the amount of fines is left to the decision of the supervisory authority, subject to the rules provided in the GDPR. In this context, the GDPR requires, as noted, that the amount of the fine be effective, proportionate, and dissuasive in each case (Article 83, paragraph 1, of the GDPR). Additionally, when setting the amount of the fine, the supervisory authorities will duly take into account a list of circumstances that refer to the characteristics of the violation (its severity) or the nature of the offender (Article 83, paragraph 2, of the GDPR). Finally, the amount of the fine shall not exceed the maximum amounts provided in Article 83, paragraphs 4, 5, and 6, of the GDPR. Therefore, the quantification of the fine amount is based on a specific assessment carried out in each case, within the parameters established by the GDPR.

Moreover, it should be noted that the calculation of a fine is not a mere mathematical exercise, as the circumstances of the specific case are the determining factors that lead to the final amount, which may be, in all cases and for each violation, a different amount up to the legal maximum.

Secondly, regarding the maximum limit, DISPLAY is charged with the violation of Article 5.1.c) of the GDPR, which is classified in Article 83.5.

In this regard, Article 83.5 of the GDPR states that violations of the provisions it indicates "...shall be subject to administrative fines of up to 20,000,000 EUR, or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount" (the emphasis is ours).

Therefore, it is not true, as the respondent seeks to assert, that in any case there exists a maximum limit of 4% of the total annual turnover, but rather that, in the present case, as determined by paragraph 5 of Article 83 of the GDPR transcribed, the limit would be 20 million euros for the violation committed.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
88/102

However, it is noted that in the resolution proposal, after analyzing the specific financial situation of the

respondent, the initially proposed sanction was reduced so that it would be more appropriate based on the circumstances of the case. Therefore, this allegation has already been taken into account. Furthermore, and without prejudice to what has been indicated regarding the fact that the maximum limit is not the 4% mentioned, in this case, that percentage would not be exceeded either, considering the total annual business volume of DISPLAY for the previous financial year (2022). Likewise, what is taken into account for the purpose of imposing the fine is the business volume and not the profits or losses of the company, in accordance with Article 83 of the GDPR.

In this regard, the Guidelines 04/2022 of the EDPB on the calculation of fines under the GDPR, version 2.0, adopted on May 24, 2023, state that “131. Article 83, paragraphs 4 to 6, of the GDPR establishes that the total worldwide annual turnover of the previous financial year will be used. Regarding the question of which event the term ‘previous’ refers to, the case law of the CJEU in competition law must also apply to GDPR fines, so that the relevant event is the fine decision issued by the supervisory authority and not the time of the infringement or the judicial decision.”

Finally, regarding the calculation of the sanction, the financial situation of the respondent is not the only factor to be considered, as the other circumstances taken into account in the present sanctioning procedure, which have already been referenced in this Legal Basis in connection with the allegations made, should not be overlooked and are again included in Legal Basis X of this resolution, to which we refer.

C) Disproportion in relation to other information media that committed the same act:

DISPLAY alleges that the instructor has omitted, when determining the amount of the sanction proposed for it, any reference to the sanctioning files that should have been initiated regarding the other information media that published the same video news provided by ATLAS, which are listed in the Provisional Measure Agreement contained in this file.

DISPLAY understands that in order to assess the arbitrariness and proportionality of the sanction proposed to it, it requests, in accordance with Article 76 of the LPACAP, the practice of documentary evidence consisting of incorporating into this file the resolution proposals or the sanctioning resolutions imposed by the AEPD in the sanctioning files that have been initiated for the publication of the same personal data that gives rise to the sanction proposed to DISPLAY.

In this regard, it should first be noted that the proportionality or otherwise of a sanction does not depend on the circumstances that occurred in other files concerning other subjects, since, as has been pointed out, Article 83.1 of the GDPR establishes that administrative fines for infringements of the GDPR must be “...effective, proportionate, and dissuasive in each individual case.”

89/102

continuation in section 2 of the aforementioned provision, which states that “Administrative fines shall be imposed based on the circumstances of each individual case, as an additional or substitute measure for the measures contemplated...” (the underlining is ours).

Therefore, the sanctions imposed on other subjects, in addition to the specific facts that occurred, take into account the specific circumstances of the case, including the specific circumstances of the infringing subject. Thus, in the present case, it should not be forgotten that the aggravating circumstance established in Article 83.2.e) of the GDPR has been applied, relating to “any previous infringement committed by the controller or the processor,” as they had been sanctioned by a firm resolution from this Agency not once, but twice previously for committing the same infringement of Article 5.1.c) of the GDPR. This, besides being an aggravating factor in itself, reflects that it is not the first time that the respondent has repeatedly incurred the same infringement within a short period of time and indicates their attitude towards compliance with data protection regulations, revealing the existence of persistent problems as the data controller, as well as the limited deterrent effect of the two previous sanctions.

Therefore, in matters of data protection, when analyzing the diligence of both parties in complying with the regulations, the circumstances of each case must be taken into account, and thus, there are no identical cases.

Furthermore, it is not appropriate to demand equality in illegality. The jurisprudence is clear on this matter. Thus, the Judgment of the National Court of April 28, 2023 (SAN 28.04.2023 REC. 409/2021) indicates that “It refers to a discriminatory sanctioning treatment since that fine or economic sanction

can be replaced by the measures of Article 58 GDPR, less burdensome measures such as a warning. And it refers to other infringements committed by other entities. Of course, the plaintiff tries to compare this situation with another sanctioning procedure that is mentioned, but we are not facing a discriminatory treatment or a violation of the principle of equality since it is a principle that only operates within the framework of legality when identical factual situations are treated differently without reasonable justification. As stated in the Supreme Court ruling of January 20, 2004, "equality must be asserted within legality, so that if the correct action of the Administration is the one now being judged, as we have declared, the one invoked as contrary to it was not, and therefore, it cannot be invoked to request that the appellant be given equal treatment, since, as this Chamber of the Supreme Court has declared in its rulings of June 16, 2003, July 14, 2003, and October 20, 2003, 'the principle of equality lacks relevance to protect a situation contrary to the legal system,' and this, as indicated by the very sentencing Chamber, regardless of the fact that the alleged administrative action contradicting the present one has not been proven."

In the same vein, the Supreme Court ruling of April 2, 2014 (Rec. 1916/2010) states that "legality prevails over a possible violation of the principle of equality." In this case, we are faced with an administrative infringement that is intended to be compared with another that has had a different solution, but from what can be observed in the allegation made by the plaintiff, it is hardly possible to make a comparison between one situation and another. Let us remember that according to the consolidated constitutional doctrine, to appreciate the concurrence of a violation of the principle of equality, certain conditions must be met.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

90/102

the following prerequisites: 1) the provision of a suitable term of comparison demonstrating the substantial identity of the legal situations that have received different treatment, 2) that the unequal treatment is not based on objective reasons that justify it, and 3) that the comparative judgment is developed within the framework of legality, as it is not permissible to invoke the principle of equality in illegality to perpetuate situations contrary to what is provided by the legal system. In this context, the conduct for which the plaintiff has been sanctioned and which is contrary to law does not allow for their responsibility to be mitigated by the fact that in other cases, which are unknown, the imposed sanction was not economic and was considered more beneficial.

Therefore, it is not appropriate to accept the evidence request made by DISPLAY as it is not appropriate to grant access to files related to sanctioning procedures in which it is not an interested party, and furthermore, for the reasons stated, it is also unnecessary since the sanction imposed on DISPLAY has taken into account specific circumstances that would not in any way be undermined or affected by the sanctions that may have been imposed on other subjects with different circumstances. Regarding the claim that it did not receive a copy of the file until after the evidence phase was conducted, it should be noted that this has not caused any defenselessness since this evidence period was opened to clarify certain facts questioned by DISPLAY, as well as to carry out the relevant evidence it requested in its written allegations to the Initiation Agreement, being duly denied those that were deemed inappropriate or unnecessary. Likewise, the practice of the evidence now requested would have also been denied, as it would be inappropriate and unnecessary, whether it had had the copy of the file before or after the evidence phase that was conducted.

3. Violation of the principle of typification.

Finally, it should be noted that DISPLAY has alleged a violation of the principle of typification arguing, on one hand, that it is not true that the personal data of 51 women victims of gender-based violence are visualized, but rather of 40, as well as arguing that it does not agree with the circumstances that have been taken into account to aggravate the sanction.

In this regard, it should be indicated that this is not related to the principle of typification in sanctioning matters, as the events that occurred constitute a violation of Article 5.1.c) of the GDPR, the infringement of which is typified in Article 83.5 of the GDPR, regardless of the number of victims of

gender-based violence affected.

Therefore, the arguments put forward by DISPLAY to allege the supposed violation of the principle of typification actually refer, on one hand, to the discussion about the proven fact that the data of 51 women victims of gender-based violence have been affected, an argument that has been adequately addressed in the previous points of this Legal Basis, and on the other hand, to DISPLAY's belief that the circumstances considered as aggravating factors of the sanction are not applicable, allegations that have also been duly responded to and argued in this Legal Basis.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
91/102

For all the above reasons, the allegations made are dismissed.

IV Right to Data Protection

Individuals have the power of disposition over their personal data, as well as over its dissemination, and undoubtedly, the person whose personal data is disseminated in violation of the legal order deserves protection.

Thus, the Constitutional Court ruling STC 292/2000, dated November 30, states that, “the content of the fundamental right to data protection consists of a power of disposition and control over personal data that enables the individual to decide which of those data to provide to a third party, whether the State or a private individual, or which data this third party may collect, and also allows the individual to know who holds that personal data and for what purpose, being able to oppose that possession or use.

These powers of disposition and control over personal data, which are part of the content of the fundamental right to data protection, are legally specified in the authority to consent to the collection, obtaining, and access to personal data, its subsequent storage and processing, as well as its possible use or uses by a third party, whether the State or a private individual. And this right to consent to the knowledge and processing, whether computerized or not, of personal data requires, as indispensable complements, on the one hand, the authority to know at all times who has that personal data and what use they are subjecting it to, and, on the other hand, the power to oppose that possession and uses.” In this regard, and regardless of what the legal basis legitimizing the processing may be, every data controller must respect the principles of processing set forth in Article 5 of the GDPR. We will highlight Article 5.1.c) of the GDPR, which establishes that:

“1. Personal data shall be

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’);”

However, we are dealing with a fundamental right that is not absolute, since, in certain cases, the Fundamental Right to Data Protection may yield to the prevalence of other rights and freedoms that are also constitutionally recognized and protected, such as the Fundamental Right to Freedom of Information, being weighed on a case-by-case basis.

Nevertheless, in the present case, as will be explained, it must be considered that the processing carried out by the responding party within the framework of freedom of information has been excessive, as there is no prevailing public interest in the dissemination of the names and surnames and specific protective measures of 51 victims of gender-based violence, making them clearly identifiable. When weighing the conflicting interests and considering the concurrent circumstances of this case, namely, the particularly sensitive nature of the personal data and the intense impact on the victims' privacy, the interest of the individuals concerned deserves greater protection.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
92/102

of the right to the protection of personal data and to not have it disseminated against the purported

public interest in its dissemination.

V Right to Information

In the conflict between the Fundamental Rights to Freedom of Information and the Fundamental Right to the Protection of Personal Data, although equal degrees of protection are recognized for both constitutional rights, the former is generally given precedence by our courts after evaluating and weighing all the elements at play.

However, preponderance does not mean prevalence when, considering all the concurrent circumstances in a specific case, the limits established by regulations and jurisprudence are exceeded. In this regard, the Article 29 Working Party in its Opinion 06/2014 on the concept of legitimate interest of the data controller under Article 7 of Directive 95/46/EC, when examining the legal basis of legitimate interest under Article 7.1.f) of Directive 95/46/EC, fully transferable to the current Article 6.1.f) of the GDPR, includes the right to freedom of expression or information as one of the scenarios in which the issue of legitimate interest may arise, asserting that, “without prejudice to whether the interests of the data controller will ultimately prevail over the interests and rights of the data subjects when the balancing test is conducted.”

VI Limits to the Fundamental Right to Freedom of Information

That said, the Fundamental Right to Freedom of Information is also not absolute. We can observe very clear limits established by the courts in the civil sphere, in relation to the Right to Honor, Personal and Family Privacy, and the Right to One's Own Image.

Thus, we will cite, among others, the Constitutional Court ruling STC 27/2020, of February 24, 2020 (amparo appeal 1369-2017), which states, in relation to the image of a person, and starting from the incontrovertible fact that it makes them identifiable, that:

“...the issue at hand is reduced to weighing whether the non-consensual reproduction of the image of an anonymous person, that is, someone who is not a public figure, but who suddenly and involuntarily acquires a role in the newsworthy event, in this case as a victim of the failed attempted murder by their brother and the subsequent suicide of the latter, constituted an unlawful intrusion into their fundamental right to their own image (Article 18.1 CE).

[...]

...that criminal events are newsworthy occurrences, even regardless of the private character of the person affected by the news. However, the limit lies in the individualization, directly or indirectly, of the victim, since this data is not of public interest because it lacks relevance for the information that is allowed to be transmitted (Constitutional Court rulings 20/1992, of February 20; 219/1992, of March 3).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

93/102

December; 232/1993, of July 12; 52/2002, of February 25; 121/2002, of May 20; and 127/2003, of June 30). Thus, it is currently recognized by Law 4/2015, of April 27, on the Statute of the Victim of Crime, in force since October 28, 2015, when it warns of the need “from public authorities [to offer] a response as broad as possible, not only legal but also social, to victims, not only repairing the damage within the framework of a criminal process but also minimizing other traumatic effects on a moral level that their condition may generate, all regardless of their procedural situation. Therefore, this Statute, in line with European regulations on the matter and with the demands posed by our society, aims, starting from the recognition of the dignity of victims, to defend their material and moral goods and, with that, those of society as a whole.” In cases such as those raised in this appeal, this Tribunal must grant relevance to the prevalence of the right to the image of the victim of the crime over the freedoms of information, since the graphic information became idle or superfluous due to the lack of real interest in the transmission of the information, in this case the apparent commission of a homicide and subsequent suicide.” (the underlining is ours).

We will add the Supreme Court ruling, from its First Chamber of Civil, 272/2011 of April 11, 2011 (rec. 1747/2008), in which, regarding the necessary data to provide information and the limits to public interest, it states that:

“b) Trivial information is not protected (ATC 75/2006), but the act of providing unnecessary data in a case of rape (the full name, the initials of the surnames, the portal of the street where the victim lived) that have no community relevance, do not respect privacy, only seek to satisfy curiosity, cause disturbances or discomfort, and unnecessarily reveal aspects of personal and private life, allowing neighbors, close persons, and family members to fully identify the victim and to know in detail an act that severely infringes upon their dignity (STC 185/2002) or about a disease that has no public interest and directly affects the irreducible sphere of intimacy and is revealed for the sake of a mere joke or jest (STC 232/1993).” (the underlining is ours).

Likewise, the Supreme Court ruling, from its First Chamber of Civil, Judgment 661/2016 of November 10, 2016 (rec. 3318/2014), regarding the capture and dissemination in court of the image of a victim of gender violence stated that:

“1.^a) The interest of the questioned information and the right of the defendant television channel to broadcast images recorded during the oral trial of the criminal case is not disputed, as there is no limitation in this regard agreed upon by the judicial body.

2.^a) The only contentious point is, therefore, whether the identification of the plaintiff as a victim of the crimes judged in that criminal case, through close-ups of her face and the mention of her first name and place of residence, was also included in the fundamental right of the defendant television channel to transmit truthful information or, on the contrary, was limited by the fundamental rights of the plaintiff to her personal privacy and her own image.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

94/102

3. Regarding this issue, the jurisprudence has recognized the general interest and public relevance of information about criminal cases (ruling 547/2011, of July 20), which is heightened in cases of physical and psychological abuse (rulings 128/2011, of March 1, and 547/2011, of July 20). However, it has also specified, concerning the identification of the individuals involved in the trial, that the accused and the victim are not on equal footing, as a complete identification of the accused is permissible, and not just by their initials, due to the nature and social significance of the crimes of abuse (ruling 547/2011, of July 20).

[...]

6. In conclusion, the defendant television channel should have acted with the prudence of a diligent professional and avoided broadcasting images that represented the appellant in close-up, either by refraining from airing the corresponding footage or by using technical procedures to blur her features and prevent her recognition (ruling 311/2013, of May 8). Likewise, it should have avoided mentioning her first name, because this information, insufficient on its own to constitute an unlawful intrusion, became relevant when pronounced on screen simultaneously with the image of the claimant and was accompanied by the mention of her place of residence, all of which were unnecessary for the essence of the content of the information, as demonstrated by news about the same trial published the following day in other media.

7. The identification of the claimant through her image and the indicated personal data, and its direct connection to an episode of gender-based violence and other serious crimes, when it was foreseeable that there would be simultaneous or subsequent revelation of data regarding how the victim and her aggressor met and the manner in which the criminal acts occurred, implies that the loss of anonymity violated both the claimant's right to her own image, due to the broadcasting of her physical features, and her personal and family privacy, to the extent that certain reserved data pertaining to her private life (such as her seeking to initiate a relationship online or the intimate content of some of her conversations), which lacked offensive significance in a situation of anonymity, became significant from the moment any person watching those news programs who resided in the victim's locality could know to whom they were referring. Thus, the psychological harm inherent to her status as a victim of the crimes was compounded by the moral harm resulting from the disclosure of private life details that she had not consented to make public.” (the emphasis is ours).

As we can see, there is a clear reference to the excessive treatment of personal data (some of which are not of an intimate nature) to provide the information, considering them entirely unnecessary given the prevailing circumstances. Occasionally, the courts refer to intimate data, but at times it concerns personal data that is not intimate, such as, for example, the image of a physical person obtained from a photograph published on a social network or the first and last names.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
95/102

VII Balance between the Fundamental Right to Freedom of Information and the Fundamental Right to the Protection of Personal Data

In the specific case examined, as indicated, the defendant published a news article with the headline “An elderly man has been arrested for abusing his wife for 56 years,” which concerns women over 65 years old who are at risk of gender-based violence. This was illustrated with a video showing a computer screen displaying an Excel sheet with the names and surnames of 51 victims of gender-based violence, as well as various classifications based on their specific circumstances (pending O.P., active without O.P., active unlocatable, new ceased). The news was obtained, under a content transfer agreement, from MEDIASET.

The Excel sheet shown in the video with the data of the individuals who are victims of gender-based violence was obtained from a recording of an interview conducted by MEDIASET at the Civil Guard barracks in ***LOCALITY.1, in the year 2010. During this interview, the screen of a computer displaying the Excel sheet with the aforementioned personal data of the victims of gender-based violence was recorded for a few seconds.

This is not, as in other jurisprudential cases examined, about giving precedence to one fundamental right over another, having to choose which one carries more weight in a specific case. Rather, it is about finding a balance between both in order to achieve the purpose of the first without undermining the second. The reconciliation of both rights is nothing new, as the European legislator mandates such reconciliation in Article 85 of the GDPR.

As we have seen earlier, the Fundamental Right to Freedom of Information is not unlimited, as the jurisprudential interpretation when confronting it with other rights and freedoms does not allow for its application in all cases and to all extents. Rather, the prevalence that courts usually grant it can be limited by other fundamental rights that must also be respected. This limitation is observed when the personal data provided were unnecessary for the essence of the content of the information.

We must consider the special circumstances present in the case examined. These are personal data of 51 women who are victims of gender-based violence, and let us remember that Law 4/2015, of April 27, on the Statute of the Victim of Crime, provides special protection for victims of violent crimes. It could even be the case that these individuals are also victims of crimes against sexual freedom or sexual integrity, for which there is also a special need for protection both in Organic Law 10/2022, of September 6, on comprehensive guarantee of sexual freedom, and in the aforementioned Statute of the Victim of Crime.

Precisely because the evident public interest in the news is not denied, given the general interest in cases of gender-based violence, in this specific case it is not about diminishing the Fundamental Right to Freedom of Information due to the prevalence of the Fundamental Right to the Protection of Personal Data, but rather about making them fully compatible so that both are absolutely guaranteed. That is, the freedom of information of the media is not called into question.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
96/102

of communication but rather the balancing with the right to data protection based on the proportionality and necessity of publishing personal data, in this case, of 51 victims of gender-based violence, as this

situation could have been easily resolved through the use of standard technical procedures to prevent such dissemination, such as pixelating the image where the computer screen shows the personal data of the victims.

Furthermore, we must emphasize that the victims are anonymous individuals and our Constitutional Court, as stated in Constitutional Court Judgment 58/2018, of June 4, asserts that public authorities, public officials, and public figures or those engaged in activities that entail public notoriety "voluntarily accept the risk that their subjective personal rights may be affected by criticism, opinions, or adverse revelations and, therefore, the right to information reaches, in relation to them, its maximum level of legitimizing effectiveness, insofar as their life and moral conduct participate in the general interest with greater intensity than that of private individuals who, without a vocation for public projection, are circumstantially involved in matters of public significance, to whom, consequently, a higher sphere of privacy must be recognized, which prevents granting general significance to facts or conduct that would have it if referred to public figures."

The Judgment of the Court of Justice of the European Union (Second Chamber), of February 14, 2019, in case C-345/17, Sergejs Buivids, mentions various criteria for weighing the right to respect for privacy against the right to freedom of expression, among which are "the contribution to a debate of general interest, the notoriety of the affected person, the subject of the report, the previous behavior of the interested party, the content, the form and the repercussions of the publication, the manner and circumstances in which the information was obtained and its veracity (see, in this sense, the judgment of the ECHR of June 27, 2017, Satakunnan Markkinapörssi Oy and Satamedia Oy v. Finland, CE:ECHR:2017:0627JUD000093113, paragraph 165)."

Thus, for a matter to be considered of general interest, of public relevance, it must not only be due to the person involved but also to the subject matter it refers to. Both requirements must be met, resulting, further to what has been stated in the previous paragraph, that in the case examined, the victims are not public individuals; rather, it is of great interest that they are not recognized by third parties, as this could imply a new penalty to the already suffered one. The victims are anonymous individuals and must remain so, in such a way that their fundamental rights are fully guaranteed. In the present case, (i) we are neither dealing with individuals of public relevance, in the sense that such relevance is sufficient to understand that it entails, ex lege, a dispossession of their fundamental right to the protection of their personal data, and (ii) while we are faced with "publicly relevant" facts, in the sense that they are revealed as "necessary" for the exposition of ideas or opinions of public interest, that necessity does not extend to providing data that identifies the victims.

Therefore, and as expressed by the Supreme Court in its judgment (civil) 697/2019, of December 19, the formation of a free public opinion does not require, nor justifies, that we...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

97/102

affecting the fundamental right to one's own image [in this case, to the protection of personal data] with such severity and in a manner that does not maintain the necessary connection with the identification of individuals who are victims of gender-based violence.

VIII Obligations of the data controller

Every data controller has obligations regarding data protection, as prescribed in the GDPR and in the LOPDGDD, particularly highlighting, in relation to our interests, the proactive responsibility, Article 5.2 of the GDPR, the assessment of risks, and the implementation of appropriate security measures. These obligations are even more relevant when, as in the case we are examining, the situation is particularly sensitive.

Such obligations do not diminish simply because we are dealing with a data controller that is a media outlet.

The dissemination of the names and surnames of 51 victims of gender-based violence turns them into identified individuals who can be recognized by third parties, which poses a very high and likely risk

that they may suffer harm to their rights and freedoms. This has occurred in other cases of dissemination of personal data of victims of gender-based violence. And this is when it is neither a proportional nor necessary processing in relation to the information purposes pursued.

IX Qualification and classification of the infringement

In accordance with the available evidence, it is considered that the respondent has processed data that was excessive as it was not necessary for the purpose for which it was processed.

The known facts that constitute an infringement, attributable to the respondent, of Article 5.1(c) of the GDPR, with the scope expressed in the previous Legal Grounds, imply the commission of the infringement classified in Article 83.5, paragraph (a) of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states that:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; In this regard, the LOPDGDD, in its Article 71 establishes that "Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 72 of the LOPDGDD indicates:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

98/102

Article 72. Infringements considered very serious.

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year limitation period, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

X Sanction for the infringement

In determining the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR have been observed, which state:

"Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 is effective, proportionate, and dissuasive in each individual case."

"Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters (a) to (h) and (j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented under Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

99/102

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the responsible party or the processor in relation to the same matter, compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

Regarding paragraph k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, “Sanctions and corrective measures,” provides:

“2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The ongoing nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having a data protection officer when it is not mandatory.

h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

In the present case, the following aggravating circumstances are considered concurrent:

- As aggravating factors:

- The scope or purpose of the data processing operation, as well as the affected parties (Article 83.2.a) of the GDPR): It is considered that the nature of the infringement is very serious since it entails a loss of disposition and control over the personal data (name and surname) of individuals who have been victims of gender-based violence, and by disseminating such personal data, there is a real risk that such individuals may be recognized by third parties, with the serious harm and detriment that this would cause them. Furthermore, the number of affected individuals is relevant, amounting to 51.

- The intentionality or negligence of the infringement by the claimed party (Article 83.2.b) of the GDPR): Although the Agency considers that there was no intentionality on the part of the media outlet, it concludes that it was negligent in not ensuring a procedure that guaranteed the protection of personal data in such sensitive circumstances, especially considering that it is an entity whose activity involves continuous processing of users' personal data.

It is particularly important to recall at this point the Judgment of the National Court of October 17, 2007 (rec. 63/2006), which states: “...the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard.”

- Any previous infringement committed by the responsible party or the processor (Article 83.2.e) of the GDPR): in the present case, the claimed party has been previously sanctioned by a firm resolution in the administrative route in the following sanctioning files:

PS/00194/2022: publication on the same website (www.publico.es) of the audio of the statement before the judge of a victim of multiple rape, to illustrate the news regarding the holding of the trial,

without distorting the victim's voice. The sanctioning resolution, dated May 27, 2022, which is firm in the administrative route, also determined the infringement of Article 5.1 c) of the GDPR precisely for understanding that, weighing the Fundamental Rights to Freedom of Information and to Data Protection, the claimed party has processed data that was excessive as it was not necessary for the purpose for which it was processed.

PS/00555/2022: publication, on the same website (www.publico.es) of an expert report in which the name and surname of a minor appear, without obfuscation, to illustrate news related to a well-known and media-covered judicial proceeding involving one of their parents. The sanctioning resolution, dated January 10, 2023, which is firm in the administrative route, also determined the infringement of Article 5.1c) of the GDPR precisely for understanding that, weighing the Fundamental Rights to Freedom of Information and to Data Protection, the claimed party has processed data that was excessive as it was not necessary for the purpose for which it was processed.

These previous infringements must be considered to assess the severity of the sanction, as they demonstrate that this is not the first time that the

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
101/102

The respondent repeatedly incurs the same infringement, which is indicative of the respondent's attitude towards compliance with data protection regulations, revealing persistent problems in this regard as the data controller.

-

Categories of personal data affected by the infringement (Article 83.2.g) of the GDPR): The dissemination of the news implies a certain possibility of recognizing 51 victims of gender-based violence, which constitutes a serious detriment to those affected, as such personal circumstances are linked to their safety, health, etc. Furthermore, as already indicated, victims of gender-based violence are characterized by being victims of violent crimes, for which they are granted special protection under the aforementioned Law 4/2015, of April 27, on the Statute of the Victim of Crime. It could even be the case that they are also victims of crimes against sexual freedom or sexual integrity, for whom a special need for protection is also provided in Organic Law 10/2022, of September 6, on comprehensive guarantee of sexual freedom, as well as in the aforementioned Statute of the Victim of Crime.

It is also considered appropriate to adjust the sanction to be imposed in accordance with the following circumstance regulated in Article 76.2 of the LOPDGDD as an aggravating factor:

-

The link between the infringer's activity and the processing of personal data (paragraph b), considering that the activity being carried out involves personal data.

The balance of the circumstances contemplated, with respect to the infringement committed by violating the provisions of Article 5.1 c) of the GDPR, allows for the imposition of a fine of 187,000 euros (one hundred eighty-seven thousand euros).

Therefore, in accordance with the applicable legislation and evaluated the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on DISPLAY CONNECTORS, S.L., with NIF B65749715, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, a fine of 187,000 € (ONE HUNDRED EIGHTY-SEVEN THOUSAND EUROS).

SECOND: TO NOTIFY this resolution to DISPLAY CONNECTORS, S.L.

THIRD: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public

Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the number of

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

102/102

procedure outlined in the heading of this document, in the restricted account No. IBAN:

ES00-0000-0000-0000-0000-0000, opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receiving the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

938-21112023

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es